TENDER

CLIENT

M/S.SAME DEUTZ - FAHR INDIA (P) LTD.

PROPOSED EXPANSION OF FACTORY BUILDING

PACKAGE: DOCK LEVELER

PMC

CUSHMAN & WAKEFIELD INDIA PRIVATE LIMITED

Prestige Polygon, No. 471, 6th Floor Anna Salai, Teynampet, Chennai, 600018

ARCHITECT

ARCH PROJECT CONSULTANTS PRIVATE LIMITED

First Floor, Mashkur Building, No 1, Krishnama Road, Nungambakkam, Chennai 34

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NOTICE INVITING TENDER

Date : _____

M/s _____,

Address: _____

_____

_____

Kind Attention: Mr. _____, Designation

Re: TENDER FOR **DOCK LEVELER** WORKS

Project: Proposed Expansion of Factory Building, **SAME DEUTZ-FAHR INDIA (P) LTD, Ranipet, Vellore DT.**

On behalf of **SAME DEUTZ-FAHR INDIA (P) LTD**, Cushman & Wakefield India Private Limited, invites you to submit a tender for the above-mentioned work which will form part of the Proposed Expansion of Factory Building

The Dock Leveller for the proposed expansion at premises of the Same Deutz Fahr India Private Limited, Ranipet.

The following documents are enclosed for your consideration / assessment and pricing:

1) General Terms & Conditions of Contract (Volume I)
2) Technical Specification (Volume II)
3) Bill of Quantities
4) Drawing Schedule (Annexure)

Please note the following points:

Hard copy Sealed Tenders should be addressed ONLY to

Mr. L. V. Surendharan,

SAME DEUTZ-FAHR INDIA (P) LIMITED (SDF)

72M, SIPCOT Industrial Complex,

Ranipet – 632 403, Tamil Nadu

Tel :+91-4172-24715663

super scribed **"Tender for Dock Leveler works"** for the Proposed Expansion of Factory Building and sent so as to reach not later than 17:00 of 18th November 2020.

5) Tenders shall remain open for acceptance by M/s. SDF / C&W, for a period of 60 (sixty) days from 19th November 2020.
6) The tenderer is required to return all the documents hard copy annexed hereto duly signed with seal to Client/ C&W before the stipulated date. Soft copies to be issued in a CD in the sealed cover along with the tender
7) Conditional Tender – Unacceptable
   a. M/s. SDF / C&W will not accept additional conditions by the tenderer, as the tenderers are expected to accept the various provisions and conditions in the tender documents. Contract Terms and Conditions are not negotiable.

b. The tenderer must sign and affix their seal in all pages of the tender documents, including Tender Specifications, Bills of Quantities and Tender Drawings and return the same.

8) M/s. SDF / C&W reserve the right to reject, without assigning any reasons any tender not strictly complying with the above procedures and stipulations.

9) M/s. SDF / C&W do not bind itself to accept the lowest or any tender and have the right to refuse any tender either in full or in part without assigning any reasons whatsoever. SDF / C&W also reserve the right to recall the tender. Also, M/s. SDF / C&W reserve the right to split the tender in any number of parts and to undertake supply of certain material.

10) Mode of Filling

a. The tender form must be filled in English and all entries must be made by hand and written in ink. If any of the documents is missing, or unsigned, the tender may be considered invalid by M/s. SDF / C&W in its absolute discretion.

b. All erasures and alterations made while filling the tender must be attested by the initials of the tenderer. Overwriting of figures is not permitted, failure to comply with either of these conditions will render the tender invalid and it will be the option of M/s. SDF / C&W to accept or reject the tender without assigning any reason. Should there be any difference between the rates and amount, only the figure in the amount column shall be considered for computation of the Tender sum. No unsolicited advice of any change in rate or conditions from the tenderer after the opening of the tender will be entertained.

c. Each of the tender documents should be signed by the person or persons submitting the tender in token of his/their having fully acquainted himself / themselves with the contract Terms, Specifications, Drawings etc., as laid down. Tenders with any of the documents not so signed will be rejected.

11) Binding: On receipt of intimation from M/s. SDF / C&W of the acceptance of his/ their tender, the successful tenderer shall be bound to implement the contract and within ten days thereof the successful tenderer shall sign an agreement in accordance with the draft agreement and the contract Terms, but the written acceptance by M/s. SDF / C&W of a tender will constitute a binding contract between the C&W and the tenderer so selected.

12) The Bill of Quantities submitted by the tenderer as part of price bid shall not be binding on M/s. SDF / C&W, for any increase or decrease in the quantities, on account of original scope.

13) The BOQ attached is only indicative and quantities to be worked based on the drawings by the vendor, taking in to account all site conditions. The tenderer shall include any item that tenderer feels important to the functionality of the works, over and above the specifications.

14) The tenderer should submit all the required documents as a sealed hardcopy ONLY and the submission of tender as a softcopy will be rejected.

The tenderer shall submit the documents with full details on the following subjects along with the tender. The evaluation of tender will take into consideration the detailed information provided by the tenderer.

1) Proposed Site Organization Chart.

2) Curriculum Vitae of Proposed Site Manager and Supervisory Staff.

3) Mobilization Schedule

4) Staff – (Technical and Administrative)

5) Labour (Month wise in the form of histogram)
6) Plant and machinery including laboratory equipment (description, year of manufacture, capacity, present condition, owned or hired, present location, availability for the work etc.).
7) Shuttering & Scaffolds.
8) Planning and execution plan including Construction Gantt Chart and PERT/CPM chart, for Shell & Core works to suit the progressive completion of works.
9) Quality Control Plan (at procurement stage and execution stage).
10) Authority approvals required with time line.
11) License from competent authorities entitling the tenderer to execute these works.
12) Monthly Cash Flow Chart.
13) References & Testimonials.
14) Average Power and Water requirement calculation
15) Work Execution logistics plan
16) Environment Health and Safety Policy
17) Special methodologies (esp. controlled blasting in the area.)
18) Project Housekeeping Team structure

The tenderer must comply with all requirements of the Conditions of offer and consideration will only be given to tenderers with complete offer submissions and those who exhibit sound policies regarding safety, quality assurance, industrial relations, environment and sincere commitment to the works schedule.

Pre-bid meeting will be conducted, and the details of venue and timing will be communicated at the earliest. You are requested to attend meeting for clarification of all the queries. The queries should reach us by email to Saravanan.shanmugam@cushwake.com, & Divakar.K@cushwake.com.

Should you require any clarifications / details, feel free to contact

Mr. Saravanan. S (9962510047) of C&W or

Mr. Divakar. K (7824880720) of C&W

Thanking you.

Yours faithfully,

For C&W Property Consultants India Private Ltd.

Saravanan- Senior Project Manager

CONDITIONS OF CONTRACT

CLIENT

M/S.SAME DEUTZ - FAHR INDIA (P) LTD.

DOCK LEVELER WORKS

Volume-I

PMC

CUSHMAN & WAKEFIELD INDIA PRIVATE LIMITED

Prestige Polygon, No. 471, 6th Floor Anna Salai, Teynampet, Chennai, 600018

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GENERAL CONDITIONS OF CONTRACT

1 DEFINITIONS:

In the Contract (as hereinafter defined) the following words and expressions shall have meanings hereby assigned to them, except where the context otherwise requires: (In alphabetical order)

1.1 Approved/Approval:
Approved/Approval shall mean approved/approval in writing

1.2 Approved Equal:
Approved Equal shall mean an alternative product or service approved by the Architect being equivalent to that specified in the Contract Documents

1.3 Architect:
Architect shall mean and their authorized nominees and representatives or such other firms/persons, as shall be nominated by the Owner from time to time.

1.4 Construction Programme:
'Construction Programme' shall mean the programme to be furnished by the Contractor along with the Tender as prescribed in Notice Inviting Tender and as accepted by the Owner.

1.5 Contract:
The Contract shall mean the agreement between the Owner and the Contractor for the proper execution and successful completion of the Work in accordance with the Contract Documents and further documents as may be expressly incorporated in the letter of intent/ acceptance.

1.6 Contractor:
The Contractor shall mean the person or persons, firm, company or consortium whose tender has been accepted by the Owner and includes the Contractor's legal representatives, successors and permitted assigns.

1.7 Contractor's Representative:
The Contractor's Representative shall mean the person or party duly appointed by the Contractor, act for and on its behalf on a day-to-day basis during the construction of the Work and the Project. Any action to be taken by the Contractor may be taken on the Contractor's behalf by the Contractor's Representative. The Contractor's Representative shall be considered a "key person" for purposes of Section 11.1 of the General Terms of Contract. The Contractor shall provide an authority letter designating the Contractor's Representative for the project.

1.8 Contract Documents:
The Contract Documents shall collectively mean the documents to be listed in the Contract between the Owner and the Contractor and all modifications thereof and additions thereto incorporated in and made to any of those documents during the term of the Contract.

1.9 Contract Price:
Shall mean the total of price referred to in the Contract Documents for the Contractor's performance of the Work.
The Contract Price is inclusive of all applicable, imposts or levies or duties of

any kind whatsoever. The contract Price shall be all inclusive price for completion of the works under the contract and the Owner shall not be required to pay any other amounts or charges of any kind whatsoever in relation to execution of the project by the contractor as per the contract. Provided however that in case of any increase in current taxes or fresh imposition of any tax or other duties, such tax or other duties shall be borne by the party responsible to bear the same as per the applicable laws. The Owner shall not be responsible in any way whatsoever to pay any additional amount over and above the Contract Price.

The Contract is neither a fixed lump sum contract nor a piece work contract but is an item rate contract to carry out the Work according to the actual measured quantities at the rates contained in the schedule of rates and probable quantities as provided in the Priced Bill of Quantities with Detailed Specifications. Item rates quoted in the bid proposal will be firm until the end of the contract.

The Contract Price shall not exceed the amount as indicated in the Letter of Intent/Purchase Order. Amounts in excess of this number, not approved in advance by the Owner's Representative shall be at the Contractor's expense. The Contractor has to closely monitor the quantities and cost and obtain an Approval from the Owner well in advance for any change outside the scope of the Work which would cause the cost of the Work to exceed the Contract Price as indicated in the Letter of Intent. Prices will be firm until the final completion of the contract

1.9.1 Price Adjustment

No escalation on prices and wages will be paid in this Item rate Contract. The BOQ Rates are firm and fixed and are inclusive of all Variations and Cost escalations till Completion of the work.

1.10 Consultant:

Shall mean any person or persons duly appointed by the Owner/Project Managers'/Architects' to act as 'CONSULTANT' to render consultancy services in any area/field of activity connected with and arising out of the Contract under a separate agreement setting out the consultant(s) responsibilities and terms.

1.11 Defect(S) Liability Period:

Defect(s) Liability Period shall be after Virtual Completion and any period extended as a result of rectification of the Work/change orders, between the Virtual Completion and the Final Completion of the Work, and during which period the Contractor shall be bound to replace and/or rectify and make good all defective materials, equipment and/or workmanship which arise in the Works or come to notice subsequent to the Virtual Completion of the Works and prior to the Final Completion of the Works without requiring the Owner to bear any additional charges whatsoever. It being agreed that a minimum period of 12 months from the Virtual Completion shall be the Defect Liability Period, unless otherwise specified by the Owner. It being further clarified that all complaints/defects logged/identified by the Owner until the last date of Defect Liability Period shall be rectified to the satisfaction of the Owner even if such rectification process continues post the Defect Liability Period.

1.12 Drawings:

'Drawings' means all drawings, details and sketches along with the technical information therein, furnished by the Architect/ Consultant to the Contractor

under the Contract and any modifications of such drawings or such other drawings as may be from time to time be furnished or approved in writing by Project Manager. All shop drawings, samples, patterns, models, operation and maintenance manuals, Product data and other technical information of a like nature submitted by the Contractor shall be referred to as 'Drawings'.

1.13 EHS Plan

"EHS plan" means Environmental, Health and Safety Plan as per standards.

1.14 Final Completion:

Final Completion will be deemed to have been achieved when at the end of the Defects Liability Period, all snags identified by the Architect have been remedied to the satisfaction of the Project Manager, a Final Completion Certificate has been issued by the Architect when all the requirements of the Contract have been met and complied with and when all the defective items of Work and defects have been replaced and/or rectified and made good as directed by and to the satisfaction of the Owner.

1.15 Force Majeure:

Force Majeure are risks due to riots (other than those among Contractor's or its subcontractor's/ supplier's employees) and Electrical commotion (in so far as both these are uninsurable), war (whether declared or not), invasion, act of foreign enemies, hostilities, Electrical war, rebellion, insurrection, military or usurped power, an act of Government, an act of God, such as lightening, unprecedented floods, tornado, and damage from aircraft not attributable to the contractor and which act or event is beyond the reasonable control and not arising out of the fault of the contractor and the Contractor has been unable to overcome such act or event by the exercise of due diligence and reasonable efforts, skill and care, including through expenditure of reasonable sums of money.

1.16 Headings:

The headings in these General Conditions of Contract shall not be deemed to be part thereof or to be taken into consideration in the interpretation or construction thereof or of the Contract.

1.17 Letter of Intent

'Letter of Intent' shall mean the document issued to the successful tenderer by the Owner signifying the Owner's in-principle intent to enter into the Contract

1.18 Measurement Books:

The "measurement books" shall mean the books maintained during the currency of the project to record all measurements qualifying for payment. The contractor shall maintain measurement books of all work done by them. The contractor shall get the measurement books verified by the Project Managers periodically

1.19 Nominated Sub Contractor:

"Nominated Sub-Contractor" refers to those specialists, tradesmen and others, whose credentials as well as quotations are evaluated and approved by the Owner/ Project Manager and then nominated for executing special works or supplying special equipment or materials, for which provisional sums are included in the Contracts. Such agencies shall be deemed to have been employed by the Contractor alone.

1.20 Owner:
The Owner shall mean M/s. Same Deutz Fahr India Private Limited and the term Owner includes successors and assigns.

1.21 Owner's Representative:
Owner's Representative shall mean an employee of the Owner duly authorised to represent the Owner at site

1.22 Project:
Project shall mean the total execution of the Work performed under this Contract for the "Project Site" at 72M, SIPCOT Industrial Complex, Ranipet – 632 403, Tamil Nadu, India

1.23 Public Holiday
'Public Holiday' shall mean any day which is declared as a public holiday by the State Government of Tamil Nadu.

1.24 Project Coordination Services
'Project Coordination Services' refers to those services, which need to be carried out by the Contractor in coordinating its work with the other agencies working at the Site as per instructions of the Owner / Architect/ Project Manager. Such services shall be at no extra cost to the Owner and must be to the full satisfaction of the Architect / Project Manager/Owner

1.25 Project Manager
The 'Project Manager' shall be **M/s. Cushman & Wakefield (India) Pvt. Ltd., having their office at** Prestige Polygon, No. 471, 6th Floor Anna Salai, Teynampet, Chennai, 600018. The Project Manager shall be authorized to represent and act on behalf of the Owner on a day-to-day basis during all stages of the Project. All communications, approvals and decisions to be taken in connection with the project shall be channelled through the Project Manager.

1.26 Provisional Sum: Nil

1.27 Records and Audits
'Records and Audits' shall mean the books and records required to be maintained by the Contractor in such manner, so as to enable the Owner/ Project Manager to carry out effective financial control.

1.28 Retention Money
'Retention Money' shall have the same meaning ascribed to it in the Schedule of Fiscal Aspects**.**

1.29 References and Cross-References To Clause And Sub-Clause Numbers
Unless specifically stated otherwise, all references and cross-references made to clause and sub-clause numbers in these General Conditions of Contract refer to the clauses and sub-clauses of the General Conditions of Contract itself.

1.30 Schedule of Rates
'Schedule of Rates' shall refer to the rates forming the basis for the Contract Price, as provided in a schedule to the Contract

1.31 Singular and Plural:
Words in the singular also include the plural and vice versa where the context

requires.

1.32 Site:

The Site shall mean the location at 72M, SIPCOT Industrial Complex, Ranipet – 632 403, Tamil Nadu, India

1.33 Specifications:

"Specifications" means the technical specifications for the Work included in the Architect's Drawings and the Land Grading / Structural/ PEB/ Civil / Electrical/ Interior/ MEP/ Other Works Technical Specifications, and any modification thereof or addition thereto.

1.34 Sub-Contractors:

"Sub-Contractors" shall mean the persons, firms, companies or agencies who after approval of the Owner/ Owner's Representative/ Project Manager, have entered into a direct Contract with the Contractor in respect of any part of the Work and any later package of the Project, and include the Sub-Contractors' legal representatives, successors and permitted assignee. The Contractor shall have full responsibility for the actions and work of any Sub-contractor whether contracted by the Contractor to perform portions of the Work or any later package of the Project.

1.35 Tender:

"Tender" shall mean the Contractor's priced offer for execution and completion of Work and remedying any defects arising therein, in strict accordance with the Contract Documents as issued with the Tender and as per the agreement signed by the Contractor thereafter.

1.36 Tender Documents:

"Tender Documents" shall mean the Contractor's Proforma of Bank Guarantee for Performance Bond, the Proforma of Bank Guarantee against Mobilization Advance, and Notice Inviting Tender, General Conditions Of Contract, Special Conditions Of Contract, Works Technical Specifications, Bill Of Quantities With Detailed Specifications, Environmental, Health & Safety (EHS) Plan, Preliminary Project Construction Schedule, Drawing – Site Location, Drawings Of Architectural & M&E Services Works and any other related documents.

1.37 Temporary Works:

Temporary works mean all temporary works of every kind required for the execution of the Work by the Contractor

1.38 Terms "and", "or", "and/or":

The terms "and, "or", "and/or" used in context with the description or enumeration of two or more items or components of work of documentation or anything similar shall mean as is relevant and applicable to the text.

1.39 Tests on completion:

Tests on completion shall mean all the system testing required to be done by the Contractor, to the entire satisfaction of Architect/ Consultant, Owner and Owner's representative, prior to Handing over the project to the Owner.

1.40 Vendors:

"Vendors" shall mean and include all suppliers, contractors, sub-contractors, nominated sub-contractors engaged for the Project.

1.41 Virtual Completion:

Virtual completion will be deemed to have been achieved upon a Virtual Completion Certificate being issued by the Architect/ Project Manager, when the Work, according to the Owner, Architect and the Project Manager, has been completed in every respect in conformity with the Contract Documents and are ready and fit for the intended purpose, complete with all systems and services having been tested and commissioned.

1.42 Written Notice:

Written Notice shall be deemed to have been duly served if delivered in person to the authorized representative of the firm / company for whom it is intended or if hand delivered at and a written delivery receipt obtained from such person. In case where written notice is sent by fax or courier service or speed post with acknowledgement to the last business address known to the party who gives the notice it shall be deemed to have duly served when it is actually served upon the other party.

1.43 Works:

"Works" shall mean and include all materials, plant and machinery, equipment and labour necessary to execute the Project in full compliance with the requirements of the Contract Document.

1.44 Working day:

A working day is defined as any day between Monday and Saturday, both inclusive, and excluding any Public Holiday as notified by the Government of India/State Government.

2 SCOPE, EXTENT, INTENT AND OTHERS

2.1 Scope:

The general character and the scope of the Work shall be as illustrated and defined in the Drawings, Specifications, Schedule of Rates and other Contract Documents.

The quantities indicated in the BOQ are approximate and may increase or decrease. The final value of work done shall be based on the actual quantity executed at site multiplied by fixed unit rates. The contractor shall have no claim for any increase or decrease in quantities up to any extent.

2.2 Extent:

The Contractor shall carry out and complete the Work under the Contract in every respect, and work shall include the supply of all labour, equipment, materials, plant and machinery, tools, transportation, form work, scaffolding and all things necessary for the proper execution and successful completion of the Work in accordance with the Contract Documents to the directions and satisfaction of the Project Manager, Architect and the Owner. The Contractor shall be fully responsible and liable for all matters in connection with or arising out of or being a result or consequence of its carrying out or omitting to carry out any part of the Work. Where any parts of the Work may be executed by or through Sub-Contractors, such responsibility and liability of the Contractor shall cover and extend to the work of all such Sub-Contractors.

2.3 Intent:

The Contract Documents shall be binding on the Contractor/ Contractor's Representatives/ Sub-Contractors as the case may be. Wherever it is

mentioned in the Contract Documents that the Contractor shall perform certain work or provide certain facilities and services, it is understood that the Contractor shall do so at its own cost. Materials or work described in the Contract Documents which have a well known technical or trade meaning, shall be held to refer to such recognised standards as are applicable to them.

2.4 Instructions of Project Manager:

The Architect may from time to time, through the Project Manager, issue further supplementary Drawings, written instructions, details, directions, and explanations, which shall be collectively referred to as the 'Instructions of Project Manager'. The Contractor shall forthwith comply with and duly execute the work comprised in such Instructions of Project Manager, provided always that verbal instructions, directions and explanations given to the Contractor or Contractor's Representative by the Architect or Project Manager shall, if involving a variation, be confirmed in writing immediately thereafter by the Project Manager.

2.5 Approval of Project Manager:

Approval of the Project Manager shall always mean approval in writing. The onus shall be on the Contractor to obtain all the necessary approvals in writing. Such approvals, however, shall not relieve the Contractor of any of its responsibilities under the Contract.

2.6 Increases/Decreases to scope of Work:

The Owner reserves the right to increase or decrease the scope of the Work on any or all items or to change the nature of the Work involved in any or all items or to completely delete any items of the Work under the Contract. The Contractor shall not be entitled to claim for loss of anticipated profits, for mobilization of additional resources, or for any other such reason on account of these change orders. In the event that the Owner elects in writing to add an item to scope of the project or to delete an item from its scope, the Owner shall be entitled to increase/ reduce (as the case may be) an appropriate amount from the Contract Price.

The quantities indicated in the BOQ are approximate and may increase or decrease. The final value of work done shall be based on the actual quantity executed at site multiplied by fixed unit rates. The contractor shall have no claim for any increase or decrease in quantities up to ± 20% (Twenty Five Percentage).

2.7 Items of work for completion:

The Contractor is bound to carry out any items of Work necessary for completion of the Work (a) even though such items of work may not be expressly be described in the Contract Documents Or (b)if such work is necessary in the sole opinion of the Owner/Project Manager.

2.8 Access for Owner, Architect and Project Manager:

The Owner, Owner's Representative, Project Manager, the Architect, and their respective consultants shall at all times have access to the Work and the Site and to the workshops or other places of the Contractor where the Work is to be so executed and in workshops or other places of Sub-Contractors and suppliers. The Contractor shall by a term in its Sub-Contracts so far as possible, secure a similar right of access to those workshops or places for the Owner, Owner's Representative, Project Manager, Architect, and their respective consultants and shall do everything for the purposes of carrying out inspections to ascertain and ensure that Work is being carried out in conformity with the

Contract Documents or for any other purpose in connection with the Work under the Contract.

3 PROJECT MANAGER/ OWNER'S REPRESENTATIVE, CONTRACTOR AND CONTRACTOR'S REPRESENTATIVE:

The status, duties and responsibilities of the Project Manager/ Owner's Representative, and Contractor/ Contractor's Representative shall be as detailed below:

3.1 Role and responsibilities of the Project Manager:

i. The Project Manager shall be responsible for the day-to-day supervision, progress monitoring, co-ordination and direction of the Project, and generally to ensure that the Work is carried out in all respects in strict conformity with the Contract Documents.

ii. The Project Manager shall have the authority to stop the Work whenever such stoppage may be necessary to ensure the proper execution of the Project. The Contractor shall provide all the necessary facilities to the Project Manager in the performance of his duties as a Project Manager and shall comply with all instructions as may be issued by the Project Manager. The Contractor shall refer all matters relating to the performance of the Contract to the Project Manager. The Contractor shall not be entitled to claim extensions, extra costs or losses in this regard.

iii. The Project Manager shall observe sound and established engineering practices using latest standards, codes and regulations, as applicable for the purpose specified and suitable for respective uses intended. Supervision over the Contractor shall be maintained by Project Manager who shall exercise constant and continuous supervision and control over quality, workmanship and materials, plant, machinery, equipment etc. used for the Project as and when may be required.

iv. Project Manager will work in close co-operation and co-ordination with the Architect and the Owner for the execution of the Project in accordance with the Contract Documents.

v. All communication by the Contractor with the Owner or the Owner's consultants shall be done through the Project Manager.

3.2 Decisions:

The Project Manager in consultation with the Owner and/ or Architect/ Consultant, shall make decisions on all matters relating to the execution and progress of the Project, including the claims and queries of the Contractor. The decision, opinion, direction and interpretation of the Project Manager (in consultation with Owner and/ or Architect/ Consultant), with respect to any or all matters including the following matters shall be final and binding on the Contractor, except for matters involving financial implications which shall be decided in consultation with and with the prior written approval of the Owner. Notwithstanding the generality of the foregoing, unless stated to the contrary below, the decision of the Project Manager in respect of the following actions shall be binding upon the Contractor:

i. Any discrepancy in the Drawings and Specifications;
ii. The removal and/or re-execution of any work already executed by the Contractor.
iii. The dismissal from the Site of any person employed upon the Work by the

Contractor or the Sub-Contractor.

iv. The opening up for inspection of any part of the Work covered up.
v. All materials and workmanship used by the Contractor or the Sub-Contractors.
vi. Everything that must be provided or done by the Contractor in order to properly execute and successfully complete the Work under the Contract.
vii. Delay and extension of time involved in the execution of the Works (only with prior approval of Owner).
viii. Supervising the replacing and/ or rectifying and making good all defective items of work and during the Defects Liability Period.
ix. Removal of any material/equipment/plant and machinery brought by the Contractor to the Site for execution of the Work.

3.3 Role and responsibilities of the Contractor's Representative:

i. The Contractor's Representative shall represent the Contractor at the Site. The Contractor's Representative shall be on Site at all times during performance of the Work and the Project Coordination Services and shall be responsible for the day-to-day interaction with the Project Managers.

ii. The Contractor's Representative shall have adequate experience in handling similar kind of projects, competent enough and have the authority to make and communicate all decisions called for in this Contract to be made by the Contractor. The Contractor's representative may be required to produce appropriate documentation and referrals in respect of previous assignments. The Contractor's Representative shall be responsible for the day-to-day supervision and oversight of the Project Coordination Services, including, without limitation, the EHS Plan implementation.

iii. The Contractor shall submit to the Owner the name and other details of the Contractor's Representative within 10 days of execution of contract.

3.4 Contractor's responsibilities:

The Contractor shall have the following responsibilities in carrying out the Work and the Project Coordination Services.

i. The Contractor shall, on the instruction of the Project Manager/ Owner's Representative, immediately dismiss from the Work any person employed thereon by him who may, in the opinion of the Project Manager and Owner's Representative, be incompetent or who engages in unlawful or disorderly conduct, and such persons shall not be re-employed on the Work without the prior written permission of the Project Manager.

ii. Contractor shall indemnify the Owner for loss suffered by the Owner on account of any act/ omission/ neglect of the Contractor's workers, employees and Sub-contractors etc.

iii. The Contractor shall comply with all safety standards to the satisfaction of the Owner's Representative/ Project Manager.

iv. The Contractor shall take full responsibility for the management & supervision of the Sub-contractors and the Nominated Sub-Contractors and the Contractor's Representative. The Contractor shall act as an independent contractor in the performance of its obligations under the Contract. The employees and the Sub-contractors utilised by the Contractor shall not be construed as the Owner's employees and shall

work under the control and management of the Contractor who shall be solely responsible for their acts. The Contractor shall be solely responsible for the payment of compensation and all statutory benefits of its employees and the employees shall be informed that they are not entitled to any of the Owner's employee benefits. The Contractor and not the Owner shall be solely responsible for payment of all statutory payments including without limitation, provident fund, workers' compensation, disability benefits and unemployment insurance or for withholding and paying employment taxes for the Employees. The employees and the Sub-contractors shall affirm they are not employees of the Owner for any purpose and that they shall not exercise any rights, seek or be entitled to any benefit accruing to the regular employees of the Owner.

v. The Contractor shall ensure that all Sub-contractors engaged by it exercise such skill, care and technical competence to represent a high standard within their respective professions or trades as is appropriate for the satisfactory execution of their work and services.

vi. The Contractor shall exercise constant and continuous supervision and control over the workmanship, materials, plant, machinery, equipment etc used in the Work and report on the status of the same to the Owner's Representative and the Project Manager as and when required in terms of the Contract.

vii. The Contractor shall be responsible for obtaining all necessary permits, approvals, certificates and the like and submit the same to the Project Manager prior to the commencement of the Works.'

viii. All the obligations and responsibilities of the Contractor under the Contract shall be duly fulfilled subject to the satisfaction of the Owner's Representative and the Project Manager.

ix. Any activity conducted, or responsibility assumed by the Owner's Representative or the Project Manager shall not relieve the Contractor of any of its obligations and responsibilities under the Contract.

x. The Contractor shall observe sound and established engineering practices in the execution and completion of the Works in accordance with the Contract. The Contractor shall use latest standards, codes and regulations, as applicable for the purpose specified and suitable for respective uses intended. The Contractor must keep at site the latest IS codes for quick referencing.

4.0 SITE:

4.1 Contractor to satisfy itself about site conditions:

The Contractor represents that before tendering for the Work, the Contractor has visited the Site and satisfied itself about the Site conditions for construction and for logistics and smooth flow of workmen and materials as well as permission from appropriate governmental authorities for this purpose. The Contractor has examined the Site and taken note of the correct dimensions of the Work, and facilities for obtaining any special articles called for in the Contract Documents. The Contractor has also made its own assessment and obtained all information on the Site constraints and on all matters that will affect the execution, continuation, progress, and completion of the Works. Any extra

claims made in consequence of any misunderstanding, incorrect information on any of these points or on the grounds of insufficient description or information shall not be entertained or allowed at any stage

4.2 Access to site by the Contractor:

The access to the Site will be given immediately on award of the Contract to the Contractor and the Site shall be shared with other Vendors as applicable. The Contractor shall upon being given such access commence the Work and diligently proceed with the execution of the Work in accordance with the Contract Documents. Access to the Site by the Contractor shall be merely a licence for carrying out the construction of the Work under the Contract, and the Contractor shall not by his being allowed such entry on the Site, acquire any right, lien or interest either in the Work carried out by them under the Contract or anything appurtenant or attached thereto or to any part of the Site, and its claim will only be in the nature of money found due and payable to them in accordance with the payment certificates under the provisions contained herein. The Work shall be free from all liens, charges and claims of whatsoever nature from any party other than the Owner. The Owner shall have a lien over all work performed by the Contractor, Sub-Contractor and Vendors and also for the materials and equipment brought on Site by them.

5 TYPE OF CONTRACT:

The Contract shall be an item rate Contract only to execute the Project according to the actual measured quantities, at the rates contained in the Schedule of Rates and probable quantities as provided in the Priced Bill of Quantities with detailed specifications. The Contractor shall be entitled to payment, in Indian Rupees, of no more than the Contract Price as stated in the Letter of Intent, in consideration of the Work performed and for the completion of the Work to the satisfaction of the Owner/ Owner's Representative/ Project Manager. The Contractor understands and agrees that the amount payable is assessed on a re-measurable basis in accordance with the tendered rates. However, the Contract Price may be altered on account of a change order issued in accordance with Clause 31 hereto. The Contract Price shall include payment for the supply of all labour (including payment to the Sub-Contractors), equipment, materials, plant and machinery, tools, transportation, framework, scaffolding, construction of Electrical works and shall also include all applicable taxes including the GST, duties, octroi, levies, royalties, fees, insurance premiums, contributions towards employees benefits including ESI and PF and funds, provision and distribution of power and water and all services and activities constituting the Scope of Work defined in the General Conditions of Contract. The Contract Price shall also include the Contractor's establishment, infrastructure, overheads and all other charges, and shall generally be inclusive of every cost and expense required by the Contract to be borne by the Contractor and necessary for the proper execution and successful completion of the Work under the Contract in conformity with the Contract Documents and the best engineering and construction practices and to the satisfaction of the Architect, Project Manager, Owner's Representative and the Owner.

No escalation of the prices shall be allowed during the period of the Contract for any reasons whatsoever and the prices quoted by the Contractor shall be deemed to be fixed and constant throughout the duration of the Project.

6 TAXES, DUTIES ETC.:

As part of the Contract Price, the Contractor shall, in connection with the Work, include all applicable duties, GST, and any other taxes including but not limited to the above on

the Work, levies or royalties payable on the materials and equipment forming part of the Work, now or hereafter imposed, increased or modified from time to time and shall also include any other statutory obligations and no claims on this account shall be entertained or allowed at any stage subsequently by the Owner. The Contractor shall co-operate with and render all necessary assistance to the Owner to enable the Owner to avail of Modvat facility and/or recovery of other indirect taxes, duties and the like. Works Contract Tax (WCT), wherever applicable, shall be deemed to be included in the price quoted by the contractor. The WCT shall be deducted by the Owner and deposited with the authorities. A copy of the receipt shall be made available to the Contractor. In case the Contractor is eligible for concessions/ rebates on the WCT, he shall submit all documentary proof to the Owner for claiming reduced deduction.

7 NOTICES, FEES, BYE-LAWS, REGULATIONS, ETC.:

The Contractor shall comply with all applicable laws and government acts including the by-laws or regulations of local authorities relating to the Work in so far as construction, fabrication and installation activities are concerned, and it shall obtain from the local authorities all permissions and approvals required for the plying of trucks, construction of machinery etc., and also for construction of temporary offices, labour camps, stores and other temporary structures in connection with the Work, and the Contractor shall give all notices and pay all fees and charges that are and that can be demanded by law thereunder. In the Contract Price for the Work, the Contractor shall allow for such compliance and work, and for the giving of all such notices, and shall include the payment of all such fees and charges. However, no title or proprietary interest of any kind shall be created in favour of the Contractor by virtue of erection of the temporary structures.

8 LICENCES AND PERMITS:

The Contractor shall directly obtain all licences and permits for the materials under Government control, and those required to be obtained by the Contractor for the execution of the Work. The Contract Price shall include all transportation charges and the other expenses that may be incurred in this connection. The Contractor shall be responsible for obtaining specific permissions from the local/ State/ Central governmental authorities in this regard.

9 ROYALTIES AND PATENT RIGHTS:

All royalties or other sums payable by the Contractor in respect of the supply and use of any patented articles, processes or inventions for the carrying out of the Work as described by or referred to in the Contract Documents, shall be deemed to have been included in the Contract Price. The Contractor shall keep the Owner indemnified against all such demands as may arise on account of payment of royalties.

10 INSURANCE:

Before commencing the execution of the Work, the Contractor, without limiting his obligations and responsibilities under this Contract shall insure in the joint names of the Contractor and Owner, against his liability for any material or physical damage, loss or injury which may occur to any property, including that of the Owner/ Project Managers/ Architects, Sub-Contractors, Vendors or to any person including any employee of the Owner/ Project Managers /Architect, Sub-Contractors, Vendors or a member of the general public, by or arising out of the execution of the Work or in carrying out the Contract.

The contractor shall ensure that the Owner and Project Manager are named as an additional beneficiary in all such insurances obtained. The contractor shall provide a copy of such policy on or before the date of execution of the Contract.

The Contractor shall insure against all such liabilities and shall continue such insurance during the currency of the Contract including the Defects Liability Period. Premium for all

insurance policies shall be paid and borne by the Contractor and shall not be reimbursable.

The Contractor shall produce to the Project Manager all certificates of insurance with in 7 (seven) days from the date of letter of intent/award. These certificates shall be fully executed and shall state that the policies cannot be cancelled until completion of the Contract.

The Contractor shall obtain written confirmation of similar certificates from all Sub-Contractors and thereby assume responsibility for any claims or losses to the Owner resulting from failure of any of the Sub-Contractors to obtain adequate insurance protection in connection with their work and shall indemnify the Owner accordingly.

It shall be obligatory for the Contractor to obtain and retain for all relevant times the insurance cover (in the joint names of the Contractor and Owner) under the following policies:

10.1 Contractor's All Risk Insurance Policy to inter alia cover the following:

i. The entire contract value (including the Contract Price plus 10% of the Contract Price for the period of completion of the Works.
ii. Electrical commotion, riots, war and other disturbances
iii. All Plant and machinery owned by the Contractor for the project.
iv. Damage insurance against loss or damage by fire or any other disaster to the works.

10.2 Third party Insurance Policy

The contractor shall take a Third party insurance to cover for any damages to third party. This policy shall be effective up to the end of the Project including any extensions granted and shall include any damage to the properties including surrounding and adjacent properties and/or injury including death to the persons of the general public and anyone else deemed to be third party subject to individual claims not exceeding Rs. 500,000/- limited to a maximum sum of Rs.50 Lakhs.

10.3 Workman’s Compensation Policy

Policy to cover Contractor's liability under Workmen's Compensation Act 1923, Minimum Wages Act 1948, Contract Labour (Regulation and Abolition) Act 1970 and other relevant Acts listed elsewhere to cover the Contractors liability under the applicable labour laws. This shall be for the period up to Final Completion of the Work. The Contractor’s liability under this policy shall also include the Sub-contractor’s liability under the applicable labour laws.

10.4 Failure to insure:

If the Contractor fails to comply with the terms of this clause, the Owner may effect the insurance and deduct the expenses from any moneys that may be or become payable to the Contractor or may, at his option, refuse payment of any monies to the Contractor until the Contractor complies with this condition.

10.5 No limit to liability:

In addition to the liability imposed by law upon the Contractor for injury (including death) to persons or damage to property by reason of the negligence of the Contractor or his agents, which liability is not impaired or otherwise affected hereby, the Contractor hereby assumes liability for and agrees to hold the Owner harmless and indemnifies him from every expense, liability, payment, claim by reason of any injury (including death) to persons or damage to property suffered on account of any act or omission on the part of the Contractor, his

employees, agents, servants, workmen, suppliers or any of his Sub-Contractors, or any person directly or indirectly employed by any of them or from the conditions of the Site or any part of the Site which under the control of the Contractor or its employees or any of its Sub-Contractors, or any one directly or indirectly employed by either of them or arising in any way from the Work.

11 CONTRACTOR'S SITE ORGANIZATION, INFRASTRUCTURE AND RESOURCES:

11.1 Contractor's representative and supervisory staff.

i. The Contractor shall at its cost provide and ensure continued effective supervision of the Work with the help of the Contractor's Representative, assisted by full time qualified, experienced and competent engineers, supervisors, Safety officers, Safety stewards and adequate staff, to the satisfaction of the Owner's Representative and the Project Manager for the entire duration of the Work.

ii. The Contractor shall submit its proposed site organization chart for the approval of the Project Manager, Owner's Representative and the Owner.

iii. The Contractor's Representative shall be on the Site at all times as the Work and the Project progresses and shall be responsible for carrying out the Work to the true meaning of the Drawings, Specifications, Conditions of Contract, Schedule of Rates, the other Contract Documents, and instructions and directions of the Owner's Representative and the Project Manager.

iv. The instructions and directions given in writing to the Contractor's Representative or to any of its assistants at the Site by the Owner's Representative or the Project Manager shall be deemed to given to the Contractor officially. Attention is called to the importance of the Contractor requesting written instruction from the Owner's Representative or the Project Manager before undertaking any Work where the Project Manager's and/or Owner's Representative direction or instructions are required. Any such Work done in advance of such instructions will be liable to be removed at the Contractor's expense and will not be paid for unless specifically approved in writing by the Project Manager and/or Owner's Representative, as the case may be. It shall be the Contractor's responsibility to provide written intimation to Owner's Representative or the Project Manager, well in advance, all through the execution of the Project, if the work is likely to get disrupted or delayed due to non-issuance of drawings/ instructions.

v. All key staff employed at the Site by the Contractor shall be considered essential to the performance of the Work and the Project Coordination Services, and all key staff shall be subject to the approval of the Owner's Representative. However, such approval shall not relieve the Contractor of any of its contractual obligations with respect to the staff employed by the Contractor. No staff including the resident engineer and other technical supervisory staff shall be removed or transferred from the Work without the prior written permission of the Owner's Representative or Project Manager.

vi. The Owner's Representative and Project Manager shall, however, have the authority to order the removal from Site of any undesirable personnel from Contractor's side due to their misconduct, incompetence or negligence in the performance of their duties. If key staff becomes unavailable for performing the Work or the Project Coordination Services for reasons beyond the Contractor's control, the Contractor shall immediately notify the Owner's Representative to evaluate the impact of the same on the project. Prior to substitution or addition of any key staff, the Contractor shall obtain the Owner's Representative's written consent as to the acceptability of replacement or additions to such personnel.

vii. The Contractor shall at all times be solely responsible for the acts, omissions, defaults and neglect of all of its representatives, agents, servants, workmen and suppliers and those of its Sub-Contractors.

11.2 Man-power, plant and machinery:

i. The Contractor shall at its own cost provide and install all equipment, materials, plant, cranes, hoists, ladders, machineries / Rock cutting breakers in sufficient numbers and scaffolding, necessary for the execution of the Work in conformity with the Contract Documents to the satisfaction of the Owner's Representative and Project Manager. All machines, tools, trucks, formwork material, man-power and everything else necessary for the proper and satisfactory execution and completion of the Work in accordance with the Contract Documents shall be provided by the Contractor at its own cost.

ii. The Contractor shall within one week of the award of Contract submit a complete list of its manpower, plant and machinery for the approval of the Owner's Representative and Project Manager, which approval however, shall not relieve the Contractor of any of its responsibilities, obligations and liabilities under the Contract. The Contractor shall augment its manpower, plant and machinery without extra cost to the Owner whenever required or so directed by the Owner's Representative/Project Manager in order to conform to the approved construction programme for the achievement of milestones and Virtual Completion of the Work.

iii. All the tools, equipment and machinery provided by Contractor for the execution of the Project should be in perfect condition. Any fault or non-operation of the tools, equipment and machinery, shall be rectified immediately by the Contractor and no time extension to the approved construction programme shall be allowed at all in the event of some fault of non-operation of tools, equipment and machinery.

11.3 Contractor store, site offices and other facilities:

The Contractor shall at his own cost provide for the following:

i. A temporary store shall be constructed by the Contractor at a mutually agreeable space within the Site. In the event of store being on upper floor or in an area with basement, the floor loading, and the stacking must be as per the Owner's representative or Project Manager's standards, specifications and guidelines issued to the Contractor in this regard.

ii. The Contractor shall, as per the requirements indicated by Project Manager, also be responsible for providing a signage board at the project site (of size as determined by Project Manager), which will indicate the name of the Project and project facilitators.

iii. For the projects requiring on-site testing facility, the Contractor shall also set up laboratory facility and install all the necessary testing equipment, with valid calibration. In case of any discrepancy or disagreement by the Consultant /Project Manager /Owner's representative in tests conducted at site, or cases where tests are required to be conducted by an external agency on directions by the Project Manager/ Owner's representative, such tests would be conducted at ELECTRICAL AID or any other testing laboratory accredited by National Accreditation Board for Testing and Calibration Laboratories (NABL), Department of Science and Technology Government of India, in the fields of Mechanical, Chemical and Non-Destructive Testing as per ISO 17025-2005**.** All expenses towards such tests shall be fully borne by the Contractor.

iv. The Contractor shall be responsible for obtaining specific permissions from the local/ State/ Central governmental authorities in this regard.

11.4 Security:

The Contractor shall at its own cost provide at all times adequate number of watchmen/ security personnel to guard the Site, the materials and equipment, to the satisfaction of the Owner's Representative/ Project Manager. The Contractor shall at all times be fully responsible for the security of all materials and equipment on the Site, whether its own or those of any Sub-Contractor. Neither the Owner nor the Owner's representative / Project Manager shall be responsible for any loss due to theft, fire, accident or any other reasons, whatsoever. Additionally, the Contractor shall, within seven days of the execution of the Contract, provide all necessary details of the security agency providing the watchmen/ security personnel for obtaining the written approval of the Project Manager.

11.5 Project Manager's Site Office, Telephone **and other facilities**:

Not Applicable

11.6 Survey Equipment:

The Contractor shall arrange at its own cost, the survey equipment and surveyor has to be stationed full time at site till the completion of the Project.

11.7 Sanitary Convenience:

The Contractor shall install and provide for adequate sanitary equipment in accordance with the Owner representative/ Project Manager's guidelines issued to the Contractor in this regard. The Contractor shall provide for separate arrangements for male and female workers/ staff and employees at the Site. The contractor shall be responsible for the complete maintenance of the toilet facility throughout the tenure of the project.

11.8 Water and electricity:

Water for Construction and other use:

The contractor shall make his own arrangements for water for the work and nothing extra shall be paid for the same. Quality of water to be tested. For this purpose, the contractor shall arrange for adequate storage arrangements so that sufficient quantity of water is available at all times to meet the contractor's construction, curing and all other requirements. The contractor should submit his plans on this facility for the approval of the Engineer. The water used by the contractor shall be fit for construction purposes to the satisfaction of Engineer. The water proposed to be used should be tested by the contractor at his cost. Adequate storage of water shall be made available always by the contractor to ensure continuous work without stoppage for want of water.

Power (Electricity) Supply:

The contractor shall make his own arrangements for power supply at his cost. All the works shall be done as per Indian Electricity rules. The temporary lines / structures shall be removed by the contractor at his own cost after completion of the work. If there is any hindrance to the other works due to these lines / structures, during the progress of work the same shall be realigned at the contractors cost. The contractor is responsible to make adequate infrastructure and standby facilities for the continuous supply of electric power required for the satisfactory execution of the work without stoppage. The contractor should submit his plans on this facility for the approval of the Project Manager.

11.9 Scaffolding, Staging, Guard Rails, Barricades:

The Contractor shall at its cost provide steel scaffolding, staging, guard rails,

barricades and safety barriers around all openings and at all edges, temporary stairs and other temporary measures required during the Project. The supports for the scaffolding, staging guard rails, barricades and safety barriers and temporary stairs shall be strong and adequate for the particular situations, tied together with horizontal pieces and braced properly. The temporary access to the various parts of the building under construction shall be rigid and strong enough to avoid any chance of mishaps. The entire scaffolding arrangement together with the staging, guard rails, barricades and safety barriers, and temporary stairs shall be to the approval of the Project Manager which approval shall not relieve the Contractor of any of its responsibilities, obligations and liabilities in relation to the safety requirements and for timely completion of the Work in accordance with the approved construction schedule. The use of wooden scaffolding on the Site is strictly forbidden.

11.10 Safety Equipment:

The Contractor shall provide all the personal protective equipments like safety helmets, safety boots/shoes, protective clothing, etc., at its own cost to the Owner's, Owner's Representatives, Project Manager's, Architect's & their team within three days from the execution of the Letter of Intent of the Tender.

11.11 Temporary Task Lighting and Temporary Ventilation:

The Contractor shall make its own arrangement in respect of the provision of adequate lighting at all places where its workmen are engaged for carrying out the Work in a proper, safe and satisfactory manner. The contractor shall also provide general lighting in common areas such as entrances, staircases, etc with minimum LUX level requirements besides illuminating the work places. The Contractor shall, at its cost, make necessary arrangements in respect of provision for means of proper ventilation (natural as well as artificial) at all places where its workers are engaged in carrying out the work.

11.12 Protection of Environment:

The Contractor understands that the Site must be free from pollutants at the time of access to the Site and commencement of the Work. The Contractor shall comply with all applicable environmental laws and regulations and shall ensure that the Site is and remains free from pollutants till the end of the Project. The Contractor shall ensure inter alia, that neither the soil nor the ground water is polluted or contaminated by fuels or lubricants emitted by machinery operated on the Site or by other dangerous or poisonous substances which are or are deemed to be hazardous to the environment. Notwithstanding the above, the Contractor shall comply with all the directions and decisions of the Project Manager in this regard and all applicable environmental legislations in relation to the same including obtaining statutory consents and approvals as may be required.

11.13 First Aid Equipment:

The Contractor shall establish a fully equipped and staffed first aid centre on the Site to deal with accidental injuries and workers health.

11.14 Labour hutment:

The Contractor shall provide at his own cost labour hutment/staff quarters complete with standard ventilation, lighting and sanitation facilities. **Space shall not be provided within the Site area for such hutments/Staff quarters**

12 LABOUR REGULATIONS:

12.1 Regulations:

The Contractor shall be solely responsible for full compliance with the provisions under all the applicable labour laws and/or regulations such as Payment of Wages Act 1948, the Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996, Employees Liability Act 1938, Workmen's Compensation Act 1923, Industrial Disputes Act 1947, the Maternity Benefit Act 1961, the Employees Provident Funds and Miscellaneous Provisions Act, 1952, the Employees State Insurance Act, 1948, the Contract Labour (Regulation and Abolition) Act 1970 and the Factories Act 1948 or any modifications thereof or any other law relating thereto and rules there under introduced from time to time. The Contractor shall assume liability and shall indemnify the Owner from every expense, liability or payment by reason of the application of any labour law, act, rules or regulations existing or to be introduced at a future date during the term of the Contract. Insurance cover towards the above shall be effected by the Contractor as called for in clause 10. In general, in respect of all labour directly or indirectly employed in the Work for the performance of Contractor's part of the Contract, the Contractor shall comply with all the rules framed by the Government authorities concerned from time to time for protection of the health and welfare of the workers. The contractor shall obtain a valid registration of Establishment under BOCW- Building & Other Construction workers (Regulation of Employment & Conditions of Service) Act 1996. The Contractor shall obtain a valid licence under the Contract Labour (R & A) Act 1970 and the Contract labour (Regulation and Abolition) Central Rules 1971 and under any other applicable rules before the commencement of the Work and continue to have a valid licence until the completion of the Project.

The contractor shall submit proofs of compliance to all statutory laws as applicable to the Project Manager/Owner’s representative as and when asked for.

12.2 Child Labour:

The Contractor shall not employ any labour less than 18 years of age on the job. If female labour is engaged, the Contractor shall make necessary provisions at its own expense for safeguarding and care of their children and keeping them clear of the Site. No children shall be permitted on the Site.

12.3 Payment of wages:

The Contractor shall be responsible for the payment of wages to the labour employed by him either directly or through Sub-Contractors, as per the provisions of the Contract Labour (Regulation and Abolition) Act 1970 and the Contract Labour Regulation and Abolition of Central Rules 1971. The Contractor shall abide by the provisions of the Payment of Wages Act, the Minimum Wages Act and other labour laws and regulations applicable to the labour engaged in the Work, as laid down by the concerned local authorities. The Contractor shall, within, 7 days of issuance of Letter of Intent, furnish a copy of the current minimum wages applicable to the workmen engaged on the Project, as notified by State or Central regulatory authorities, applicable to the region of the Project, for all trades involved in its Work

12.4 Model Rules:

The Contractor shall at its own expense comply with or cause to be complied with, Model Rules for labour welfare framed by Government or other local bodies from time to time for the protection of health and for making sanitary

arrangements, Malaria control, etc. for workers employed directly or indirectly on the Work and in the workers hutment area. In case the Contractor fails to make arrangements as aforesaid, the Owner shall be entitled to do so and recover the cost thereof from the Contractor.

12.5 Safety Codes:

In respect of all labour, directly or indirectly employed on the Project for the performance and execution of the Contractor's Work under the Contract, the Contractor shall at its own expense arrange for all the safety provisions as listed in (i) Safety codes of C.P.W.D. and Bureau of Indian Standards, (ii) The Electricity Act, (iii) The Mines Act, and Regulations, Rules and Orders made there under and such other Acts (Central or State) as applicable.

All precautions as stated in the safety clause are the minimum necessary and shall not preclude the Contractor taking additional safety precautions as may be warranted for the particular type of work or situations. Mere observance of these precautions shall not absolve the Contractor of its liability in case of loss or damage to property or injury to any person including but not limited to the Contractor's labour, the Owner's, Architect's, Owner's Representative's and Project Manager's representatives or any member of the public or resulting in the death of any of these.

Protective gear such as safety helmets, boots, belts etc. shall be provided by the Contractor at its own cost to all its man-power at the Site. The Contractor shall impose such requirements on all Sub-Contractors and Vendors also. It shall be the responsibility of the Contractor to ensure that such protective gear is worn at all times by all personnel working at the Site during the term of the Project. The Owner and Project Manager/ Owner's Representative shall each have the right to stop any person not wearing such protective gear from working on the Site.

In case the Contractor fails to make arrangements and provide necessary facilities as aforesaid, the Owner shall be entitled to do so and recover the costs thereof from the Contractor. The decision of the Owner's Representative in this regard shall be final and binding on the Contractor.

12.6 Safety/Site Conditions

The Contractor shall take full responsibility for the adequacy, stability and safety of all Site operations and ensure that the methods of carrying out the Work and the Project by the Contractor including its workmen, employees, Sub-Contractors and Vendors meet all the necessary safety standards including but not limited to requirements of the tender document. In order to fulfil this obligation, the Contractor shall appoint a permanent Safety Officer for the Site. The Contractor shall institute and implement to the satisfaction of the Project Manager a construction safety programme, including:

i. Preparing a Site-specific written safety programme consistent with the of the tender document, Indian law and best practices. As a minimum, the programme shall require applicable safety equipment for all workers, use of barriers and barricades around potentially dangerous areas, protection of workers working under elevated conditions, accident reporting, first aid provisions etc.

ii. Weekly safety reviews and 'risk assessments' shall be carried out in conjunction with the Project Manager and the Owner in order to identify

potential safety hazards and to mitigate against them.

iii. The Contractor will be required to provide all personnel entering the Site an identity and safety rules card and verbal explanation of the safety programme.

iv. The Contractor shall mandate that all Sub-Contractors and other workers under the responsibility of the Contractor (including the Vendors or later phases of the construction of the Project) to adhere to the written safety programme as per approved format.

v. The Contractor shall have the full responsibility for maintaining the Site in good and clean condition and removing all trash and debris on a daily basis to the satisfaction of the Project Manager. The Contractor is responsible for providing adequate sanitary facilities and maintaining them in a clean and healthy condition. If the Contractor fails to comply to the above conditions, the Project Manager shall have the authority to get the same cleaned by an external agency and debit the same to the Contractor's account.

If, by reason of any accident, or failure, or other event occurring to, in, or in connection with the Project, or any part thereof, either during the execution of the Work, or during the Defects Liability Period, any remedial or other work is, in the opinion of Owner's Representative or the Project Manager urgently necessary for the implementation of the safety programme of the Project by the Contractor and the Contractor is unable or unwilling at once to do such work, the Owner's Representative or the Project Manager shall be entitled to employ and pay such other persons to carry out work as the Owner's Representative or the Project Manager may consider necessary in this regard. If the work or repair so done by the Owner's Representative or the Project Manager is work which, in the opinion of the Owner's Representative or the Project Manager, the Contractor is liable to do at its own cost, then all costs consequent thereon or incidental thereto shall be recoverable from the Contractor and may be deducted by the Owner's Representative or the Project Manager from any of the Retention Money (as defined in Schedule of fiscal aspects) and any moneys due or to become due to the Contractor and the Owner's Representative or the Project Manager shall notify the Contractor accordingly, provided that the Owner's Representative or the Project Manager shall, as soon after the occurrence of any such emergency as may be reasonably practicable, notify the Contractor thereof.

The Contractor shall ensure that all operations by the Contractor, its workmen, employees, Sub-Contractors to complete the Project and the remedying of any defects therein shall, so far as compliance with the requirements of this Agreement permit, be carried on so as not to interfere unnecessarily or improperly with:

a) the convenience of the public, or
b) the access to, use and occupation of public or private roads, railways and footpaths to or of properties whether in the possession of Owner or of any other person.
c) the Owner's operation and utilization of the facility at the Site; and
d) the Work of Vendors.

If any hazardous or obnoxious materials (as defined by Indian law) are specified for use or are being used by Vendors, the Contractor shall keep record of such material and forthwith give written notice to the Owner and shall ensure that the Sub-Contractors and Vendors, as applicable, use, store and dispose of such hazardous or obnoxious materials strictly in accordance with all applicable

laws.

12.7 Additional Safety Regulations:

The Contractor shall continuously maintain adequate protection for the Work against fire and other hazards and shall protect the Owner's property and the Site from damage or loss during the performance of this Contract. The Contractor also shall adequately protect property adjacent to the Site.

The Contractor shall take all necessary precautions for the safety of its employees, Subcontractors and the Vendors performing the Work and shall comply with all applicable safety laws and regulations to prevent accidents or injury to persons on, about, or adjacent to the Site.

The Contractor shall be responsible for co-ordinating a safe working programme with the Owner's Representative and the Project Manager. Such a programme shall include, and the Contractor shall be responsible for maintaining, the following safe working conditions and practices:

i. All combustible material, food matter, garbage, scrap, and other debris generated during the performance of the Work shall be collected and removed from the Site daily. Arrangements for scrap burning should be discussed with Owner's representative.

ii. An adequate number and type of fire extinguishers shall be provided at the Site for fire control and shall be kept/maintained in satisfactory and effective working condition, at all times.

12.8 Requirement of Fire Extinguishers

Each gas welding or burning, arc welding unit, tar pot, or open flame unit requires a fire extinguisher with it during operation.

12.9 Requirement of Equipment

The availability of fire blankets is recommended at the Site. Other equipment related conditions are as follows:

i. The Contractor shall use all equipment which is in good condition. The Contractor shall not use or permit to be used the Owner's equipment and the Owner shall not use the Contractor's equipment without prior written permission of the other.

ii. When working in an occupied building or area, the Contractor must before commencement of work familiarise itself with the hazards of that area, such as the location of flammable substances and toxic fumes.

iii. Materials and equipment intended for installation in the Work as well as the Owner's equipment and materials already in place are to be protected at all times from debris, weather, or any damage. The Contractor shall take all steps necessary to ensure the preservation condition of such equipment.

iv. The Contractor's materials, tools, and equipment shall be stored only in areas approved by the Owner for this purpose.

v. Site access and parking by the Contractor's personnel shall be at locations designated by the Owner/ Project Manager. Only the Contractor's personnel necessary for the performance of the Work shall

be permitted access to the Site. The Contractor and its employees and Sub-contractors shall adhere to all speed limits and traffic regulations at the Site.

vi. The Contractor and its employees and subcontractors shall strictly obey all "No Smoking" restrictions.

vii. The Contractor shall not operate or use or manipulate utilities at the Site without the Owner's prior written approval.

viii. No valves shall be turned off or on, or electrical disconnect switches operated except in an emergency. Any required utility "shut downs" will be scheduled and co-ordinated by the Owner's Representative.

ix. The Contractor shall make any requests for utility manipulation or "shut downs" in writing to the Project Manager at least five days advance notice.

12.10 Safety with regard to site and housekeeping:

i. The use of intoxicants or unlawful drugs at the Site, in any degree, shall be strictly prohibited. The Contractor shall rigorously enforce this regulation.

ii. When overhead work is in progress in or around an occupied area, signs to denote such work prominently displaying "Overhead Work" shall be used or the area shall be protected by barricade.

iii. Dusty work, such as concrete breaking or demolition, in or near occupied areas, shall proceed only after wetting down the area and taking steps necessary to prevent dust from penetrating occupied areas and creating a nuisance.

iv. Care shall be taken not to block any door, passageway, safety exit, fire fighting equipment, or safety equipment with materials or equipment.

v. Contractor shall maintain general cleanliness at site. All waste and debris shall be stored at designated place and disposed regularly.

vi. Materials must be piled, stacked, or stored in a neat and orderly manner. All stacking, whether inside or outside a building, shall be parallel to or at right angles to the building line or fence.

vii. When noisy operations of a prolonged nature are necessary in or near an occupied area, arrangements must be made with the Owner's Representative for scheduling to minimize any nuisance in the occupied area.

12.11 Non-compliance of Regulations

If the Project Manager or the Owner's Representative notifies the Contractor of non-compliance with the foregoing regulations, the Contractor shall immediately, if so directed, or in any event not more than Twenty-four (24) hours after receipt of such notice, make all reasonable efforts to correct/ rectify such non-compliance. If the Contractor fails to do so, the Owner may suspend all or any part of the Work. The, Owner shall lift the suspension of the Work only upon the satisfactory corrective action undertaken by the

Contractor in this regard. The Contractor shall not claim any extension of time to complete the Work or additional fees due to any such work suspension.

12.12 Implementation of Safety Measures

Notwithstanding anything herein before contained, particularly in clause 12.5, 12.6 and 12.7, the Contractor shall be liable to ensure and implement all safety measures, whether or not statutorily prescribed, to safeguard, preserve and protect the life, health and welfare of every workman employed/deployed/engaged directly or indirectly by the Contractor on the Site and in relation to or connected with the Work and all Vendors employed in later phases of the Project in addition to installing, providing every prescribed safety and protective equipment, clothing etc., and the mere absence of any reference to or specification of a particular statute or rule or regulation in this Contract shall not absolve the Contractor of an obligation to comply with every such law, rule or regulation. The obligations stipulated in clauses 12.5, 12.6 and 12.7 shall not in any manner be deemed to limit or restrict any obligation or duty that any law, rule or regulation may otherwise impose upon the Contractor. The Contractor shall be liable for all consequences/liabilities arising out of its violating any of the aforesaid provisions, including fines, penalties, compensations, damages, prosecutions, proceedings, medical expenditure and costs, rehabilitation costs and all other expenses connected therewith.

13 CONTRIBUTION TOWARDS EMPLOYEE BENEFITS, FUNDS ETC.:

The Contractor shall include in the Contract Price all expenses necessary to meet its obligations for making contributions toward employee benefits funds (Such as provident fund, ESI benefits, old age pension and/or any other benefits/compensation legally payable) in compliance with all the statutory regulations and requirements. All records in this connection shall be properly maintained by the Contractor and produced for scrutiny by the concerned authorities, the Project Manager and the Owner whenever called for.

14 SETTING OUT AND SITE SURVEYS:

The Contractor shall establish, maintain and assume responsibility for all bench marks and grid lines, and all other levels, lines, dimensions and grades that are necessary for the execution of the Work, in conformity with the Contract Documents. The Contractor shall establish its relation to the permanent benchmarks and boundary lines established at the Site. The Contractor shall verify and co-relate all the survey data available at the Site before commencing the Work and shall immediately report in writing any errors or inconsistencies to the Project Manager. Commencement of Work by the Contractor shall be regarded as its acceptance of the correctness of all survey and setting out data available at the Site and no claims shall be entertained or allowed in respect of any errors or discrepancies found at a later date. If at any time error in this regard appears during its progress of the Work, the Contractor shall at its own expense rectify such error to the satisfaction of the Project Manager/ Owner.

The approval by the Project Manager of the setting out by the Contractor shall not relieve the Contractor of any of the responsibilities, obligations, and liabilities under the Contract.

The Contractor shall be entirely and exclusively responsible for the horizontal, vertical and other alignment for all levels and dimensions and for the correctness of every part of the Work, and he shall rectify effectively any errors or imperfections therein. All such rectifications shall be carried out by the Contractor at its own cost and to the instructions and satisfaction of the Project Manager

The Contractor shall employ qualified surveyors with proper well calibrated levelling instruments say Total Station & Other Levelling Instruments to carry out all the surveys and setting out works in this regard.

15 DRAWINGS, SPECIFICATIONS, INTERPRETATIONS ETC.:

Within 10 days from the issue of Letter of Intent, the Contractor shall be furnished by the Project Manager and/or Owner's Representative with one copy each of the Conditions of Contract, Specifications, and Schedule of Rates, without cost to Contractor for its own use and for the use of its Sub-Contractors until the completion of the Contract. Additional copies of Contract Documents will be supplied on payment at actual cost basis. Two copies of the working drawings shall be provided by the Architect through Project Manager to the Contractor as the Work progresses. The time and the date for the provision of the Drawings shall be mutually agreed between the Contractor and Owner's Representative/Project Manager/Architect in conformity with the construction programme and with due regard for the need to order and specify materials and equipment to the Site. Additional copies of the construction status drawings will be supplied on payment at actual cost basis.

In general, the Drawings shall indicate the dimensions, positions and type of construction, the Specifications shall stipulate the quality and the methods and performance criteria, and the Schedule of Rates shall indicate the rates for each item of work for evaluating change orders. However, the above Contract Documents being complementary, what is called for by any one shall be binding as if called for by all.

Matters not contained in the Specifications and in case of any ambiguities in the written Specifications of the Contract, the Works shall be executed as per relevant BIS codes and CPWD Specifications in that order of preference. If such codes have not been framed, the decision of the Architect/Consultants shall be final.

Any Work indicated in the Drawings and not mentioned in the Specifications or vice versa, shall be deemed as though fully set forth in the Drawings or Specifications as the case may be. Work not specifically detailed, called for, marked or specified, shall be the same as similar parts that are detailed, marked or specified.

From time to time during the progress of the Work, the Contractor will be issued with revisions of Drawings and written instructions by the Project Manager in connection with and necessary for the proper execution and successful completion of the Work. All such revisions of Drawings and written instructions shall be part of the Contract Documents and the Contractor shall be bound to carry out the work that is shown and detailed on all such Drawings and shall be bound to follow and comply with all such Instructions.

All Drawings and their subsequent revisions will be issued to the Contractor by listing such Drawings on the transmittals by the Project Manager. The Contractor shall maintain a Drawing register listing all Drawings and their latest revisions. All superseded Drawings shall be so stamped and withdrawn from circulation at the Site. It shall be the responsibility of the Contractor to ascertain and ensure that all the Work is carried out in accordance with the latest revisions of the Drawings issued to him. Should the Contractor fail to do so, all the rectifications and remedial work that may be required to conform to the latest revisions of the Drawings shall be at the Contractor's sole expense.

Wherever it is mentioned in the Conditions of Contract, Specifications, and other Contract Documents that the Contractor shall perform certain work or provide certain facilities, it is understood that the Contractor shall do so at its own cost, unless otherwise provided in the said Documents.

The Contractor shall immediately in writing bring any errors or inconsistencies in the Drawings and Specifications to the attention of the Project Manager for interpretation or correction before proceeding with the affected portion of the Work, and no claims or losses alleged to have been caused by such discrepancies shall be entertained or allowed at any stage. Local conditions which may affect the Work shall likewise be brought to the Project Manager's attention at once. If at any time it is discovered that work, which has been done or is being done is not in accordance with the approved Drawings and Specifications, the Contractor shall correct the work immediately. Correction of such work shall be at the expense of the Contractor and shall not form a basis for any claims for payment or extension of time. The Contractor shall carry out all the rectification work only after obtaining the approval for the same from the Project Manager

The Contractor, in the execution of the Work, shall make no deviations from the Drawings, Specifications, and other Contract Documents. Interpretations and clarifications shall be issued by the Project Manager which shall be binding on the Contractor.

No scaling of any Drawing shall be done to obtain the dimensions. Figured dimensions on the Drawings shall be used for carrying out the Work. Drawings with large scale details shall take precedence over small scale Drawings. Where any Drawings and details have not been provided but are necessary for the execution of the Work, it shall be the responsibility of the Contractor to seek these drawings and details in writing from the Project Manager at least four weeks prior to the latest date by which the Contractor needs these drawings and details to suit the programmed execution of the Work. No extension of time shall be allowed for any delays caused due to the Contractor's failure to seek such details.

Drawings, Schedule of Rates, Specifications, and other Contract Documents, and all copies thereof furnished by the Project Manager shall be treated the Owner's property at all times. Such Drawings, Schedule of Rates, Specifications, and other Contract Documents shall not be used on any other work and shall be returned to the Owner at its request or at the completion of the Work in accordance with the Contract.

In case of any discrepancy in the interpretation of drawings, the decision of the Project Manager/Owner shall be binding.

16 ASSIGNMENT AND SUBLETTING

The Contractor shall not assign this Contract or any part of it. The Contractor may, however, sub-contract any part of the Work with the prior written consent of the Project Manager and the Owner's Representative .The Owner/ Owner's representative/ Architect/ Project Manager reserves the right to review and approve each Sub-contractor which the Contractor recommends at any time to engage to perform any services before such Sub-contractor is hired or performs any service. Any permission to sub-contract any parts of the Work shall not relieve the Contractor from any of its responsibilities, obligations, and liabilities under this Contract.

17 NOMINATED SUB-CONTRACTORS:

As soon as practicable, but at **least one week** before awarding any sub-contract, the Contractor shall submit to the Architect, Project Manager and the Owner's Representative in writing the names of the Nominated Sub-Contractors proposed for any part of the Work, for the approval of the same by the Architect, Project Manager and the Owner's Representative. The Contractor shall employ such Sub-Contractors only after he has received confirmation in writing of such approval from the Project Manager and the Owner's Representative. Such approval, however, shall not relieve the Contractor of any of its responsibilities, obligations and liabilities under the Contract. The Contractor shall be responsible for the acts, defaults, omissions and neglect of all Sub-Contractors

and their agents, servants and workmen. The Contractor shall not employ any Sub-Contractor to whom the Project Manager or the Owner's Representative object and/or does not approve. The Architect may by written instruction inform the Contractor, waiving the need for the Architect to specifically approve the Sub-Contractors in addition to the approval of the Project Manager.

18 SEPARATE CONTRACTS:

The Owner reserves the right to enter into separate other contracts in connection with the Project. The Contractor shall afford other contractors reasonable opportunity for their access to the Site, for the storage of their materials, and for the execution of their work, or if specified give assistance to such contractors for such purposes as are specified. The Contractor shall properly connect and co-ordinate its Work with that of the other contractors that may be employed or engaged by the Owner. If any part of the Contractor's Work depends for its proper execution or results upon the work of any other contractor, the Contractor shall inspect and promptly report in writing to the Project Manager, any defects in such work that render it unsuitable for such proper execution and results. The Contractor's failure to inspect and report such defects shall constitute as an acceptance of the other contractor's work as fit and proper for receiving the work of the Contractor.

19 CO-ORDINATION OF WORK:

At the commencement of the Work, and from time to time, the Contractor shall co-operate with other contractors, Sub-Contractors, persons engaged on separate contracts in connection with the Project, Vendors and the Project Manager and with the Owner's Representative for the purpose of the co-ordination and execution of various phases of the Project. The Contractor shall determine and ascertain from the Vendors and persons engaged on separate contracts, in connection with the Project, the extent of all chasings, cutting and forming of all openings, holes, details of all inserts, sleeves, etc. that are required to accommodate the various services.

The Contractor shall determine and ascertain the routes of all services and positions of all floor and wall openings, outlets, traps, the details of all inserts, equipment and services and shall carry out the construction and making good of all "builder's work" in accordance with and as shown, described and/or measured in the Drawings, Specifications, and other Contract Documents. Also, the Contractor shall ensure that all required services, inserts, sleeves, embedment etc. are in place/position before he proceeds with its work. Should the Contractor fail to comply with these requirements and the consequence of such failure necessitates the breaking, re-doing and making good of any work, then the cost of all such breaking, re-doing and making good of any work shall be to the account of the Contractor and shall be borne by him. No breaking and cutting of completed work shall be done unless specifically authorised in writing by the Project Manager. No work shall be done over broken or patched work without first ascertaining that the broken surface is adequately prepared and reinforced to receive and hold further work, as determined by the Project Manager.

In order to ensure proper co-ordination is being undertaken, weekly meetings, chaired by the Project Manager, will be held with the various contractors and at which co-ordination will be discussed and minutes of actions proposed circulated.

20 WORK ON NON-WORKING DAYS:

If it is necessary for the Contractor or any Sub-Contractor to work on days other than Working Days or outside the normal working hours in order to keep up to the time schedule and meet the Construction Programme, the Contractor shall obtain the prior approval of the Project Manager in writing. Even if any work is carried out at site on a non-Working day with prior written permission of the Project Manager, the Contractor

shall be solely responsible for extra cost including but not limited to wages. Applicability of all other terms and conditions of contract on such days would be same as applicable for a Working day.

21 MATERIALS, WORKMANSHIP, STORAGE, INSPECTIONS ETC.:

21.1 Materials and workmanship:

The Contractor shall be responsible for the establishment of a full and comprehensive quality control system for the Work. The system shall include, but not be limited to, the means of controlling the testing and receipt of materials, the inspection of the Work, the filing and ordering of Drawings and correspondence and the duties and responsibilities of staff members.

All materials and equipment to be incorporated in the Work shall be new and original. The materials, equipment, and workmanship shall be of the best quality of the specified type, in conformity with Contract Documents and the best engineering and construction practices, comply with the Specifications and to the entire satisfaction of Project Manager. This requirement shall be strictly enforced at all times and stages of the Work and no request for change whatsoever shall be entertained on the grounds of anything to the contrary being the prevailing practice. The Contractor shall immediately remove from the Work any materials, equipment and/or workmanship which, in the opinion of the Project Manager are defective or unsuitable or not in conformity with the Contract Documents and best engineering and construction practices, and the Contractor shall replace such rejected materials, equipment and/or workmanship with proper, specified, and required and approved materials, equipment and/or workmanship, all at its own cost within a period of seven (7) days from the date of issuance of such notice.

The Contractor shall, whenever required to do so by the Project Manager immediately submit satisfactory evidence and necessary test results as to the kind and quality of the materials and equipment.

21.2 Special makes or brands:

Where special makes or brands are called for, they shall be mentioned as a standard brand or make. Other brands or special makes of equivalent quality may be used provided the substituted materials are equivalent to the brand specified, and prior approval for the use of such substituted materials is obtained in writing from the Project Manager. Unless substitutions are approved by the Project Manager's in writing in advance, no deviations from the Specifications and other Contract Documents shall be permitted. The Contractor shall indicate and submit written evidence of the substituted material or equipment called for in the Specifications and other Contract Documents that are not obtainable for incorporation in the Work within the time limit of the Contract. Failure to indicate this in writing within two weeks of the signing of the Contract will be deemed as sufficient cause for denial of any request for an extension of time because of the same.

Alternative equivalent brands if suggested by the Contractor during construction may be considered provided the suggested brand fully meets the requirements and is acceptable to the Project Manager. Any variation in price due to the use of alternate brands shall be permissible provided it is pre-approved in writing by the Owner's Representative's.

21.3 Proper scheduling and delivery of materials:

All materials and equipment shall be scheduled and delivered so as to ensure a

speedy and uninterrupted progress of the Work, and the same shall be properly stored.

21.4 List of Materials:

Within seven (7) days of the signing of the Contract, the Contractor shall submit for the approval of the Project Manager a complete list of all materials and equipment the Contractor and its Sub-Contractors propose to use in the Work, of definite brands or makes, which differ in any respect from those specified, or the particular brand where more than one is specified as standard. The Contractor shall also list items not specifically mentioned in the Contract Documents, but which are reasonably inferred and are necessary for the proper execution and successful completion of the Work.

21.5 Storage of materials and equipment at site

The Contractor shall, at its own cost, provide adequate storage sheds and yards at the Site, at locations pre-approved by the Project Manager, for all materials and equipment that are to be incorporated in the Work. This shall be for all the materials and equipment, supplied by the Contractor or any Sub-Contractor. In addition to being water-tight and weather-proof, the storage facilities shall be of such a manner that all the materials and equipment are adequately protected in every way from any deterioration or contamination or damage whatsoever, and to the complete satisfaction of the Project Manager. The method of storing of all the materials and equipment shall be in conformity with the Specifications and/or to the directions and instructions of the Project Manager. At no time shall any material or equipment be stored in open or in contact with the ground. Should any of the materials or equipment deteriorate or be contaminated or damaged in any way due to improper storage or for any other reason then such materials and equipment shall not be incorporated in the Work and shall be removed forthwith from the Site and the replacement of all such materials and equipment shall be entirely at the cost and expense of the Contractor. The Contractor shall also be responsible for providing, at its own cost, proper and adequate security for all the materials and equipment stored at the Site so as to prevent any theft, pilferage etc., and the Contractor shall be responsible and liable for all the matters in connection with such security or the lack thereof. Where, after permission has been sought and obtained from the Project Manager, any material or equipment is kept on any portion of the structure, this shall be done in such a manner as to prevent any overloading whatsoever of the structure, to the complete satisfaction of the Project Manager. The cost associated with any damage to any portion of the structure in this respect shall be to the account of the Contractor and shall be borne by him.

Should delays be caused on account of removal and replacement of any materials or equipment or on account of any lack of security, the Contractor shall not be entitled to any extension of time or increase in the Contract Price.

Wherever applicable the storage of materials shall be in accordance with the relevant Indian Standard Specifications.

21.6 Right Type of Workmen, Plant and Machinery, Jigs, Tools, Etc.:

The Contractor shall employ the right type of workmen, plant and machinery, jigs, tools etc. to fabricate and/or install all materials and equipment. Such material and equipment shall be fabricated and/or installed without any damage and in accordance with the material/ equipment manufacturer's instructions and manuals, and to the satisfaction of the Project Manager.

21.7 Inspection:

All materials, equipment, and workmanship shall be subject to inspection, examination and testing at all times and stages during construction, manufacture and/or installation, by the Project Manager and they shall have the right to reject and order the removal and replacement of any defective material, equipment and / or workmanship or require its correction and rectification. The Contractor shall not proceed with any operation or sequence or trade of the Work until the previous operation or sequence or trade has been inspected and approved by the Project Manager. No embedded items or any other work shall be covered up unless these have been inspected and approved by the Project Manager. The onus shall be on the Contractor to get such inspections carried out and obtain such approvals. Should the Contractor fail to comply with these requirements, then all additional or redoing of work necessitated as a consequence thereof shall be at the Contractor's cost and expense. No inspection or approval shall relieve the Contractor of any of its responsibilities, obligations and liabilities under the Contract. No defective workmanship shall be repaired or patched up in any way without inspection and direction of the Project Manager.

Rejected workmanship shall be immediately corrected and rectified and rejected materials and equipment shall be removed and replaced with proper, specified and required materials and equipment, by the Contractor to the approval and satisfaction of the Project manager. The cost of all such correction and rectification and such removal and replacement shall be to the account of the Contractor and shall be borne by him, and also, the Contractor shall be responsible for all delays in this regard. The Contractor shall promptly segregate and remove the rejected materials and equipment from the Site and shall not reuse them in the Work. If the Contractor fails to proceed at once with the correction and rectification of rejected workmanship and/or the removal and replacement of rejected materials and equipment, the Owner shall have the right to employ other persons / agencies to correct and rectify such workmanship and/or remove and replace such materials and equipment, and recover the cost thereof from the Contractor, or the Owner may terminate the right of the Contractor to proceed further with the Work.

The Contractor shall furnish promptly and without any charge, all facilities, access, labour, materials, plant and tools required and necessary for enabling the Project Manager, to carry out inspections and tests in a safe and convenient manner. The Contractor shall ascertain and ensure that the facilities and access provided for the carrying out of all inspections are completely safe in every respect and the Contractor shall be fully responsible and liable for all matters in connection with such safety.

21.8 Testing:

All the tests on materials, equipment, and workmanship that shall be necessary in connection with the execution of the Work, as decided by the Project Manager and as called for in the Contract Documents, shall be carried out at the cost of the Contractor at the place of work or of manufacture or fabrication or at the Site or at an approved testing laboratory or at all or any such places. The Contractor shall provide all transportation, assistance, instruments, machines, labour and materials as are required for the examining, measuring and testing as described above, and all expenses connected with the tests as described above shall be borne by the Contractor.

21.9 Certificates:

The Contractor shall furnish, at its own cost, test certificates for the various materials and equipment as called for. Such test certificates shall be from the manufacturer for the particular consignment/lot/piece and shall be duly authenticated by respective consultants. The details in respect of the test certificates shall be as decided by the Project Manager (in consultation with consultants) for the relevant items.

21.10 Removal of Improper Work & Materials

The Project Manager shall, during the progress of the Works, have power to order in writing from time to time the removal from the Works within such reasonable time or times as may be specified in the order, of any materials which in the opinion of the Project Manager are not in accordance with the Specifications or the instructions of the Project Manager, the substitution of proper materials, and the removal and proper re- execution of any work executed with materials or workmanship not in accordance with the Drawings and Specifications or instructions, and the Contractor shall forthwith carry out such order at his own cost. In case of default on the part of the Contractor to carry out such order, the Employer shall have the power to employ and pay other persons to carry out the same, and all expenses consequent thereon, or incidental thereto, as certified by the Project Manager shall be borne by the Contractor, or may be deducted by the Employer from any monies due, or that may become due, to the Contractor.

21.11 Default of Contractor in Compliance

If the Contractor after receipt of written notice from the Project Manager requiring compliance within ten days fails to comply with such further Drawings and/or Project Manager's instructions the Owner may employ and pay other persons to execute any such work whatsoever that may be necessary to give effect thereto, and all costs incurred in connection therewith shall be recoverable from the Contractor by the Owner on the Certificate of the Project Manager as a debit or may be deducted by the Owner from any moneys due to the Contractor.

21.12 Inspection & Testing during manufacture

The Architect/Consultant/Project Manager/Owner shall be entitled during manufacture to inspect, examine and test on the Contractor's premises during working hours the materials and workmanship and check the progress of manufacture of all fabrication materials to be supplied under the Contract, and if part of the said materials is being manufactured on other premises the Contractor shall obtain for the Architect/Consultant/Project Manager/Owner permission to inspect, examine and test as if the said Plant were being manufactured on the Contractors premises. Such inspection, examination or testing if made shall not relieve the Contractor from any obligation under the Contract

21.13 Dates for Inspection & Testing

The Contractor shall agree with the Architect/Consultant/Project Manager/Owner the date on and the place at which any plant/works will be ready for testing as provided in the Contract and unless the Architect/Consultant/Project Manager/Owner shall attend at the place so named on the date agreed the Contractor may proceed with the tests, which shall be deemed to have been made in the Architect's/Consultant's/Project Manager's/Owner's presence, and shall forthwith forward to the Project Manager duly certified copies of the test readings. The Project Manager shall give the Contractor 24 hours notice in writing of

his/Architect's/Consultant's/Owner's intention to attend the tests.

21.14 Facilities for Testing at Manufacturer's Works

Where the Contract provides for tests on the premises Of the Contractor or of any Sub-contractor the Contractor shall provide such assistance, labour, materials, electricity, fuel, stores, apparatus and instruments as may be requisite and as may be reasonably demanded to carry out such tests efficiently.

21.15 Certificate of Testing

As and when fabrication materials shall pass the tests referred in this, the Project Manager shall furnish to the Contractor a certificate in writing to that effect.

21.16 Rejection

If as a result of such inspection, examination or test of the Works the Project Manager shall decide that such material is defective or not in accordance with the Contract he shall notify the Contractor accordingly stating in writing his objection and reasons therefore. The Contractor shall with all speed make good the defect or ensures that the material complies with the Contract. Thereafter, if required by the Project Manager/Consultant/Owner Representative, the tests shall be repeated under the same terms and conditions save that all reasonable expenses to which the Owner may be put by the repetition of the tests shall be deducted from the Contract Sum

21.17 Delivery of Material &Equipment

Unless the Project Manager shall otherwise direct, no material shall be delivered to site until the Project Manager shall have issued, in respect of such material, a Certificate under Clause 30 (vi) (Certificate of Testing). Likewise, Fabrication Materials or Contractor's Equipment shall be delivered to Site only upon an authorization in writing applied for and obtained by the Contractor from the Project Manager. The Contractor shall be responsible for the reception on site of all Materials and Contractor's Equipment delivered for the purposes of the Contract

21.18 Inspection & Testing and Re-inspection & Testing

All deficiencies revealed by testing and inspection shall be rectified by the Contractor at his own expense and to the satisfaction and approval of the Project Manager. Rectified components shall be subject to retesting and re-inspection.

21.19 Inspection Reports

The Contractor shall provide the Project Manager with five copies of reports of all inspections and tests.

22 CONSTRUCTION DOCUMENTATION:

22.1 Procedure for documentation

The Contractor shall have a well-established system for all kinds of construction documentation generated on the Project. The Project Manager shall conduct an alignment session with Contractor at the time of kick-off meeting, explaining to the Contractor with respect to the Standardized procedures to be adopted for specific documentation like Technical Submittals, Request for Information, Non-conformance notices, Change requests, Schedules, Drawings, etc. The Contractor shall be responsible to follow those procedures, wherever applicable to them, for the execution of

work. Immediately after the contract award, Project Manager shall arrange for a Kick-off meeting and contractor shall be bound to fulfil all the requirements mentioned in that meeting.

22.2 Submission of Material Samples, Shop drawings etc

After the award of the Contract, the Contractor shall furnish for the approval of the Architesct, all samples of materials and shop drawings called for in Contract Documents or required by the Project Manager, which are required for immediate start of Work. During the project execution, the material samples shall be submitted well in advance of the upcoming activity. The samples and shop drawings shall be delivered as directed by the Project Manager. No extra payment shall be due to the Contractor for submission of material sample and preparation of shop drawings. A schedule giving dates of the submission of samples and shop drawings shall be included in the time schedule. Samples / materials approved by the Project Manager/ Architect/ Consultant, shall be kept at Site under safe custody of Contractor and on completion of the Work handed over to the Owner.

22.3 As built drawings

The Contractor shall during the course of execution, prepare and keep updated a complete set of " as-on-date as built drawings" reflecting current status of construction, marked with each and every change from the Contract drawings. Three sets of "as built" drawings as agreed shall be supplied to the Project Manager upon completion of project, along with a soft copy of the drawings in AutoCAD format (specified version) at no extra cost to the owner.

23 CONSTRUCTION PROGRAMME, SCHEDULES AND PROGRESS REPORTS:

23.1 Construction Programme:

i. Every Contractor must furnish along with its tender an overall construction programme utilizing a known CPM software package like Microsoft Project, latest version. The construction programme shall clearly show all the sequential activities of work required to be carried out from the commencement of the Work up to the Virtual Completion. Work associated with each of the packages works shall be clearly identifiable.
ii. The construction programme shall be based on the required milestones as indicated in the "Schedule of fiscal aspects" in Clause 54
iii. The Tenderers proposed construction programme and payment milestones shall elaborate in detail on relevant milestones and comment on Construction Programme enclosed.
iv. Every week, or sooner if required by the Project Manager, the approved programme charts shall be reviewed in relation to the actual progress of the Work and shall be updated as necessary. If at any time it appears to the Project Manager that the actual progress of the Work does not conform to the approved programme, the Contractor shall produce, at its expense and without reimbursement therefore, a revised programme showing the modifications to the approved programme and the additional input of resources by the Contractor necessary to ensure completion of the Work within the time stipulated for completion.
v. Every week, in the Construction Progress meeting, the contractor will present its "Two week Look Ahead" schedule
vi. The submission to and approval by the Project Manager of such programmes or the furnishing of such particulars shall not relieve the Contractor of any of its responsibilities, obligations and liabilities under the Contract.

23.2 Construction Schedules:

Along with the construction programme described in Clause 23.1, the Contractor shall also submit the following schedules:

i. Manpower Schedule
ii. Plant and Equipment Schedule
iii. Materials Schedule (including status and mobilisation programme)
iv. Material samples Schedule
v. Shop drawings Schedule (including status and delivery)

23.3 Daily site reports:

The Contractor shall throughout the contract period, submit daily site reports to the Project Manager and the Owner's Representative. The reports will include, but not be limited to:

i. Record of the Site progress
ii. Number of employees, workmen. Labour engaged on the Site
iii. Number of men employed on individual trades
iv. Plant and machinery at site (including an indication as to whether the plant is working or standing)
v. Notification of accidents
vi. Material received at site on that specific day
vii. Events influencing the progress of the Work

23.4 Employee Records

The records should include all staff employed by the Contractor as Sub-contractors

23.5 Site Register:

The Contractor shall maintain a site register that records the name and time of arrival and departure, at Site, of any visitors and entry of material.

23.6 Progress Reports:

At the end of each fortnight, the Contractor shall submit a weekly progress report in a format agreed with the Project Manager. The reports shall include 2 sets of progress photographs taken from pre-determined locations, which illustrate the progression of the Work.

24 BUREAU OF INDIAN STANDARDS:

24.1. Indian Standards Specifications

A reference made to any Indian Standards Specifications in the Contract Documents shall imply reference to the latest version of that Standard, including such revisions/amendments as may be issued, during the currency of the Contract, by the Bureau of Indian Standards and the corresponding clause/s therein shall hold valid in place of those referred to. The Contractor shall keep copies at the Site of all latest publications of relevant Indian Standard Specifications applicable to the Work at the Site, as listed in the Specifications.

24.2. Amendments to BIS

If any Amendments to BIS codes is announced after finalization of the Contract the same shall be deemed to be incorporated into the specifications, wherever applicable.

24.3. Tolerances:

In case the work does not conform to the dimensions and limits of tolerances specified in the Contract Documents and/or the Indian Standard Specifications the Contractor shall be liable for all costs and expenses incurred for rectifications and/or replacements of any other Contractor's and/or Sub-Contractor's work required, in accordance with the directions of the Project Manager, for the proper installation of the finishing elements and/or equipment, and/or for structural purposes. The Project Manager's decision in this respect shall be final and binding on the Contractor and Sub-Contractors, and all such costs and expenses shall be recovered from the pertinent Contractors and Sub-Contractors and shall be deducted by the Owner from any money that may be payable or that may become payable under the Contract to such pertinent Contractors and Sub-Contractors for and on behalf of the Contractor.

25 PROTECTION OF WORKS:

The Contractor shall take full responsibility for the proper care and protection of the Work carried out in respect of the Project from commencement until completion and handing over of the Project to the Project Manager. The Contractor shall protect and preserve the work carried out in respect of the Project in every way from any damage, fire or accident, including by providing temporary roofs, boxing or other construction as required by the Project Manager. This protection shall be provided for all property on the Site as well as adjacent to the Site. The Contractor shall adequately protect, to the satisfaction of the Project Manager, all the items of finishing work to prevent any chipping, cracking, breaking of edges or any damage of any kind whatsoever and to prevent such work from getting marked or stained or dirty. Should the Contractor fail to protect the work in respect of the Project or any part thereof and should any damage be caused to the same, the Contractor shall be responsible for all replacement and rectification, as directed by the Project Manager, and all costs and expenses in connection with such replacement and rectification shall be to the account of the Contractor and shall be borne by it.

The Contractor shall in connection with the Work provide and maintain at its own cost all lights, security guards, fencing and anything else necessary for the protection of the Work and for the safety of the public and everyone associated with the Work, all to the approval and satisfaction of the Project Manager.

All operations necessary for the execution of the Work shall be carried out so as not to interfere with the convenience of the public, or with the traffic, or the access to, use and occupation of public or private roads and footpaths or of properties whether in the possession of the Owner or of any other person. The Contractor shall hold the Owner harmless and indemnify the Owner in respect of all claims, proceedings, damages, costs, charges, and expenses whatsoever arising out of or in relation to any such matters.

26 CLEANING OF WORKS AND CLEARING OF SITE:

The Contractor shall maintain the Site and all Work thereon in neat, clean and tidy-conditions at all times. The following shall be ensured by the contractor in the regard:

i. The Contractor shall remove all rubbish and debris from the Site on daily basis and as directed by the Project Manager. Suitable steel skips shall be provided at strategic locations around the Site to receive waste and packaging materials.

ii. Just prior to the Virtual Completion of the Work, or whenever so directed by the Project Manager, the Contractor shall carry out all the work necessary to ensure that the Site is clear and the Work are clean in every respect, the surplus materials, debris, sheds and all other temporary structures are removed from the Site, all plant and machinery of the Contractor are removed from Site, the areas under floors are cleared of rubbish, the gutters and drains are cleared, the doors and sashes are

eased, the locks and fastenings are oiled, all electrical, plumbing and other services are tested and commissioned, the keys are clearly labelled and handed to the Project Manager, so that at the time of Virtual Completion the whole Site and the Work are left fit for immediate occupation and use, to the approval and satisfaction of the Project Manager, and the Owner's Representative.

iii. Should the Contractor fail to comply with the cleaning requirements, whether progressively or before completion, or fail to clear the Site as directed and required, then the Project Manager, after giving due notice in writing to the Contractor, shall have the right to employ other persons or agencies to carry out the cleaning and/or clearing work and all costs incurred on such work shall be recovered from the Contractor and shall be deducted by the Owner from any money that may be payable or that may become payable to the Contractor.

27 METHOD OF MEASUREMENT:

To evaluate any additional work instructed under change orders by the Project Manager or the Owner's Representative, the standard method of measurement shall be in accordance with the Standards laid down by Bureau of Indian Standards shall be followed. However, if definite methods of measurements are stipulated in the Schedule of Rates or Specifications, then the same shall supersede BIS methods and shall be followed. In the event of any dispute with regard to the method of measurement of any work, the decision of the Project Manager shall be final, and binding and no extra claims shall be entertained or allowed at any stage in this regard.

28 COVERING UP:

The Contractor shall give at least 24 hours clear notice in writing to the Project Manager before covering up any of the Work in foundations or any other such areas in order that inspection of the Work may be carried out for maintaining proper quality control. In the event of the Contractor failing to provide such notice he shall, at its own expense, uncover such Work as required to allow the inspection to be taken and thereafter shall reinstate the Work to the satisfaction of the Project Manager.

29 PAYMENTS AND SECURED ADVANCE:

All payments for works shall be in accordance with the Schedule of Fiscal Aspects as in Clause 55

29.1 Running Bills

The Contractor shall prepare measured bills as directed by the Project Manager (detailed measurement, abstract sheet, purchase bills, deviation statement for ongoing and completed work, materials reconciliation statement and any specific instructions which may be given in this regard by the Project Manager and other supporting documents) as per the billing cycle mentioned in the Schedule of fiscal aspects and submit the same to the Project Manager in three (3) copies, for checking and issue of interim certificate..

29.2 Payment Certificate

The Project Manager shall issue a payment certificate within the number of working days as reflected in Schedule of Fiscal aspects as specified in Clause 55, from the date of the bill received from the Contractor for the value of work (net amount due to the contractor after deductions) executed by the Contractor, provided all supporting detailed measurements, purchase bills, abstract sheets and other supporting documents requested by the Project Manager are furnished at the time of submission of such bills. Thereafter, the Contractor shall be paid by the Owner of certified amount (after deduction of

applicable TDS), within the number of days as specified in Schedule of Fiscal aspects as specified in Clause 55

29.3 Retention Money & Final Bill

As per the Schedule of Fiscal Aspects as specified in Clause 55

29.4 Withholding of payments

The Project Manager may withhold payment on account of subsequently discovered evidence, and nullify the whole or a part of any payment certificate to such extent as may be necessary to protect the Owner from loss on account of including but not limited to the following:

i. Defective work not remedied by the Contractor, Non Compliance notices not attended by the Contractor.
ii. Failure of the Contractor to make payments properly and regularly to its own workers, to its Sub-Contractors, to its suppliers.
iii. Damage by the Contractor to the work of other Contractors, Sub-Contractors or Vendors.
iv. A reasonable doubt that the Contract cannot be completed for the balance unpaid amount.
v. A reasonable doubt that the Contractor intends to leave work items incomplete.
vi. Failure of the Contractor to execute the Work in conformity with the Contract Documents.
vii. Failure of the Contractor to meet or keep-up with the approved Construction Programme on which the agreed payment schedule is based.
viii. Failure of the Contractor to comply with and fulfil all contractual obligations and liabilities stipulated in the Contract Documents.
ix. Failure of the contractor to submit proofs of payment of necessary ESI, PF payments for his workers.
x. Failure of the contractor to implement safe work practices at site as per the requirements of the contract

30 RECTIFICATION OF IMPROPER WORK NOTICED:

If it shall appear to the Project Manager or the Owner's Representative during the progress of the Work that any work has been executed with unsound, imperfect or unskilful workmanship or with materials of any inferior description or that any materials or articles provided by the Contractor for the execution of the Work are unsound or of a quality inferior to that contracted for or otherwise not in accordance with the Contract, the Contractor shall, on demand in writing from the Project Manager, specifying the work, materials or articles complained of, notwithstanding that the same may have been passed and certified by the Project Manager, forthwith rectify or remove and reconstruct the work so specified in whole, or in part as the case may require or , remove the materials or articles so specified and provide other proper and suitable materials or articles at its own proper charge and cost and in the event of its failing to do so within a period so specified by the Project Manager in its demand aforesaid, the Project Manager may rectify or remove and re-execute the work or remove and replace the materials or articles complained of as the case may be by engaging a third party contractor at the risk and expense in all respects of the Contractor, and deduct the expenses from the Retention Money or any sums that may be due at any time thereafter may become due to the Contractor or from its performance bond, the performance bond executed by the Contractor.

31 CHANGE ORDERS:

31.1 Change in scope of work:

The Owner reserves the right to alter the Scope of Work (as defined in Clause

2.6 above) and consequently the Contract Price shall be suitably adjusted for such changes by reference to the rates in the Schedule of Rates. The Project Manager shall issue all change orders only after obtaining the prior written consent of the Owner's Representative. Project progress should not be hampered.

31.2 Rates for additional, altered or substituted work

If the rates for the additional, altered or substituted work are not specifically provided in the Schedule of Rates then such rates shall be derived from the rates that are specified for a similar class of work in the Contract. The Project Manager's interpretation in consonance with the Owner as to what is a similar class of work and its decision on the method in which the rate is to be derived shall be final and binding on the Contractor.

If the rates for the additional, altered or substituted work cannot be determined in the manner specified above, then the rates for such work shall be determined on the basis of actual consumption of materials, and actual use of labour and plant and machinery, as detailed below:

i. Cost of materials supplied by the Contractor, at not more than prevailing market rates, actually incorporated in the Work.
ii. Cost of labour actually used at the Site on the Work at prevailing rates of labour.
iii. Cost allocation toward the Work for the use of any plant and machinery at the Site, on actual basis.
iv. **15%** of the actual costs in respect of (a), (b), and (c) above, towards Contractor's establishment and all other costs and overhead and profit plus taxes as applicable to this contract shall be reimbursed. Contractor's overheads and profit shall not be allowed on free issue items.

31.3 Schedule of Plant rates

The Contractor shall provide a schedule of plant rates. If the Contractor and the Project Manager cannot agree on a rate as determined in accordance with Clause 31.2, then the Project Manager, in consonance with the Owner, may determine a reasonable rate which shall be final and binding on the Contractor. If this is not acceptable by the contractor then, at the Owner's option, the Project Manager, in consonance with the Owner, may order and direct the work to be carried out by such other persons or agencies as he may think fit, and such other persons or agencies shall not, in any manner be prevented or obstructed in their work or from entering upon the Work by the Contractor for the purpose of carrying out such work. The Contractor shall not be entitled to any payment whatsoever in connection with such work carried out by such other persons or agencies.

31.4 Approval from Owner/Owner's representative

Before the Contractor undertakes any extra work, he shall ensure that he has received a specific Change Authorization, signed by the Owner/Owner's representative from the Project Manager. No additional payments shall be made to the Contractor without prior agreement and receipt of the necessary signed Change Order. Each Change Order shall clearly state the value of the additional work agreed to and signed for by the Owner.

The Contractor shall at monthly intervals submit to the Project Manager an account giving particulars, as full and detailed as possible, of additional work ordered in writing by the Owner and which the Contractor has executed during

the preceding month. If any Change Order instructed by the Owner/Owner's representative causes a delay in the completion of the Work causing the Contractor to overrun the time fixed for completion of the Work, the Owner shall agree, following joint review of the circumstances with the Project Manager as to the extent of the delay, to postpone the time for completion of the Work by the period of delay, provided the Contractor has notified the Owner in writing, of such expected delay before such Change Order is actually issued by the Owner/Owner's representative.

32 DEDUCTIONS FOR UNCORRECTED WORK:

If the Project Manager deems it inexpedient to get corrected or rectified any work of the Contractor which is defective or damaged or of substandard quality or is generally not in accordance with the Contract Documents, then an equitable and appropriate deduction shall be made thereof from the Contract Price, and the Architect's and Project Manager's decision in this respect shall be final and binding on the Contractor.

Furthermore if, by reason of any accident, or failure, or other event occurring to, in or in connection with the Work, or any part thereof, either during the execution of the Work or during the Defects Liability Period, any remedial or other work or repair shall, in the opinion of the Project Manager, be urgently necessary for the safety of the Work, or any part thereof, and the Contractor is unable or unwilling to immediately do such work or repair, the Owner may employ and pay other persons or agencies to carry out such work or repairs as the Project Manager may consider necessary. If the work or repair so done by the other persons or agencies is work which, in the opinion of the Project Manager, the Contractor was liable to do at its own expense under the Contract, then all expenses incurred by the Owner in connection with such work or repair shall be recovered from the Contractor and shall be deducted by the Owner from any money that may be payable or that may become payable to the Contractor or from the Contractor's Performance Bond.

33 TIME FOR COMPLETION:

33.1 Time-essence of contract:

The time allowed for carrying out the Work as entered in the tender shall be strictly observed by the Contractor and shall be deemed to be of the essence of the Contract and shall be reckoned from the date of award of the Contract. The Work shall proceed with due diligence until Final Completion. The Contractor shall prepare a Construction Programme with time schedule keeping in view the completion period stipulated for specific portions of the Work and also the overall completion time and submit the same for the approval of the Project Manager and the Owner's Representative. The Contractor shall comply with the time schedule as approved by the Project Manager and the Owner's Representative. In the event of the Contractor failing to comply with the overall and individual milestones contained in the time schedules, he shall be liable to pay liquidated damages as provided for in this Contract as specified in the Schedule of Fiscal Aspects Clause 55.

33.2 Causes of delay for which claims for extension of time may be considered;

The Contractor shall be entitled to claim for extension of time, subject to the conditions stated herein, should he be delayed or impeded in the execution of the Work by reason of the following:

i. Force Majeure;

ii. Delay in the receipt of 'Good for Construction' Drawings from the Architect provided that, in the opinion of the Project Manager, the Contractor has made every effort and endeavour to minimize the effect of such delays.
iii. Any approved changes in the scope of work directed by Owner, Architect, Consultant which in the opinion of the Project Manager entail the requirement of additional time for completion of the Work.

33.3 Extension of Time

In respect of items (i), (ii) and (iii) above, the Contractor shall submit in writing to the Project Manager its intention to claim for an extension of time within seven (7) working days of any of the above mentioned reasons or events causing a delay. Any claim of extension of time in respect of item (c) shall be notified by the Contractor before such Change Order is actually issued. The Contractor shall thereafter detail and submit its claim for the extension of time within fourteen (14) working days of such delay having occurred. If the Contractor does not comply with both these conditions for each and every delay caused by any of the above mentioned reasons or events then he shall not be entitled to any extension of time.

33.4 Claim of Extension of Time

The Project Manager shall study and verify the particulars of the claim for extension of time submitted by the Contractor and shall then send it to the Owner with recommendations to reject or amend or accept the claim. The Project Manager shall notify the Contractor in writing the decision on such a claim. The decision conveyed by the Project Manager in this regard shall be final and binding on the Contractor. Should the decision involve acceptance of the claim as it is or in amended form, the Project Manager shall extend the time by notifying the Contractor in writing for completion of the Work by such period and the time for completion of the Work so extended shall for all purposes of the Contract be deemed the time specified for completion of the Work. No extension of time shall be granted separately for any concurrent or parallel activities, and only a delay, caused by any of the above mentioned reasons or events, in a critical activity, which has a direct effect on the overall completion of the Work, shall form a basis for granting extension of time.

33.5 Deletions or changes in the scope of the Work

Should any deletions or changes in the scope of the Work reduce the time required to complete the Work under the Contract, then the time savings accruing from such deletions may be considered by the Project Manager in off-setting the durations awarded for an extension of time.

34 NO FINANCIAL OR OTHER COMPENSATION FOR DELAYS BY CONTRACTOR:

The Contractor shall not be entitled to any compensation for any loss suffered by him on account of delays in commencing or in executing or in completing the Work, whatever might be the cause of the delay.

35 COMPENSATION FOR DELAYS CAUSED BY OWNER:

Not Applicable.

36 PROPRIETY OF EXECUTED WORK:

All executed work, whether in part or in whole shall be the exclusive property of the Owner. The Project Manager, the Owner, the Contractor or any of its Sub-Contractors or their employees or workmen or servants or agents shall not be entitled to the use of any such work except for the purpose of carrying out subsequent work that is required to be carried out under the Contract or to complete the Project. The Owner shall have the right to occupy

and take over the Work or any part thereof at any time during the progress of the Work or upon their completion, irrespective of any pending claims or disputes that the Contractor may have against the Owner.

37 INDEMNITY:

37.1 Indemnity by Contractor:

The Contractor shall indemnify, defend and hold and keep indemnified, the Owner from and against all actions, suits, claims costs, liabilities and demands brought or made against the Owner in respect of any matter or thing done or omitted to be done by the Contractor or any of its Sub-Contractor(s) or their employees, workmen, representatives, agents, servants or suppliers in the execution of or in connection with the Work or the Contractor's or Sub-Contractor's performance under this Contract and against any loss or damage to the Owner in consequence of any action or suit being brought against the Contractor or any of its Sub-Contractor(s) or their employees, workmen, representatives, agents, servants or suppliers for anything done or omitted to be done in execution of the Work and the Project Coordination Services under this Contract, including but not limited to meeting the Project milestones, non-compliance with the applicable laws and regulations of the government and local authorities, not obtaining the relevant licences and permits, infringing any patents rights and specifically regarding use, storage and disposal of hazardous materials. The obligations of the Contractor under this clause shall survive till the closure of Defects Liability period.

37.2 Indemnity by Sub-Contractors:

The Contractor shall ensure that the Sub-Contractors indemnify, defend and hold, and keep indemnified the Owner harmless from all actions, suits, claims, costs, fines, judgements and liabilities in respect of any matter or thing done or omitted to be done by the Sub-Contractors or their employees, workmen, representatives, agents, servants and suppliers in execution of or in connection with the Work or arising out of or in any way alleged to be in connection with Sub-Contractors' performance under this Contract, including but not limited to, not meeting the Project milestones, non-compliance with the applicable laws and regulations of the government and local authorities, not obtaining the relevant licences and permits, infringing any patents rights and specifically regarding the storage, use or disposal by the Sub-Contractors of hazardous materials in, on or under the Site or at any location whatsoever in connection with the Project in any way. The Sub-Contractors' responsibility under this indemnification shall also include any and all hazardous materials introduced to the Site by their agents, representatives, employees, workmen, servants and suppliers. The obligations of Sub-Contractors under this clause survive till the closure of Defects Liability period.

38 CORRECTION OF WORK BEFORE VIRTUAL COMPLETION OF WORKS:

The Project Manager and the Owner’s Representative shall jointly conduct an extensive inspection just prior to the Virtual Completion of the Work and shall prepare a list of materials, equipment, and workmanship which are defective or damaged or of substandard quality or improperly executed or generally unacceptable due to not being in conformity with the requirements stipulated in the Contract Documents. The Contractor shall promptly remove, replace, re-execute, rectify and make good, to conform to the requirements stipulated in the Contract Documents and to the satisfaction of the Project Manager and the Owner’s Representative all such materials, equipment, and/or workmanship included or itemised in the said list and the Contractor shall bear and pay for all expenses in connection

therewith and consequent thereon and incidental thereto, including the cost for all remedial work on the work of other contractors destroyed or damaged by such removal, replacement, re-execution, rectification and making good. If the Contractor fails to remove, replace, re-execute, rectify and make good the rejected materials, equipment, and/or workmanship within a reasonable time, fixed by written notice, the Owner may employ and pay other persons or agencies to carry out such removal, replacement, re-execution, rectification and making good and all expenses incurred in connection therewith, including all damages, losses and expenses consequent thereon and incidental thereto shall be recovered from the Contractor and shall be deducted by the Owner from the Contract Price or any money that may be payable or that may become payable to the Contractor.

39 VIRTUAL COMPLETION OF WORKS:

i. The Works shall be considered as virtually complete only upon fulfilment of the procedure laid down in clause 38 above, and only after the Work has been completed in every respect in conformity with the Contract Documents and after all the systems and services have been tested and commissioned, and after the Site has been cleared and the Work cleaned in accordance with Clause 26 and when the Project Manager has certified in writing that the Work is Virtually Complete. The Defects Liability Period shall commence from the date of such Certificate of Virtual Completion.

ii. Prior to the Virtual Completion, if the Owner decides to occupy any portion of the Work or use any part of any equipment, the same shall not constitute an acceptance of any part of the Work or of any equipment, unless otherwise so stated in writing by the Project Manager.

iii. Prior to the issue of the Virtual Completion Certificate, the Contractor shall submit and hand-over to the Owner's Representative the keys to all locks, all operation and maintenance manuals for systems and services, any spares called for in the Contract, and everything else necessary for the proper use and maintenance of the Work complete with all systems and services.

40 LIQUIDATED DAMAGES / PROGRAMME CHART / MILESTONES:

As per the Schedule of Fiscal Aspects specified under Clause 55.

41 PENALTY / FINE:

41.1 Non Compliance to Safety codes

If the Project Manager notifies the Contractor of non-compliance with safety codes as in clause no. 12.5-12.12 and guidelines and standards, the Contractor shall immediately if so directed or in any event not more than 12 hours after receipt of such notice, make all reasonable effort to correct such non-compliance.

41.2 Levy of penalty/ fines:

If the Contractor fails to do so, the Project Manager shall have authority to levy penalty/ fines as may be determined based on the severity of the violation. The Project Manager shall establish the list of violations and the fines associated with non-compliance of the safety codes to a maximum . Each such non compliance shall be treated as a breach of the contract.

42 GUARANTEES:

i. The Contractor understands and agrees that the Owner is expressly relying and will continue to rely on the skill and judgement of the Contractor in executing the Work and remedying any defects in the Work. The Contract represents and warrants that (i) it shall perform the Work in a timely manner, in strict accordance with the Contract

Documents, and consistent with generally accepted professional, construction and construction-supervision practices and standards provided by an experienced and competent professional contractor and construction supervisor rendered under the same or similar circumstances, and (ii) it is and will be responsible to the Owner for the acts and omissions of all Sub-Contractors and their respective employees, agents and invitees and all the persons performing any of the Work.

ii. Besides the guarantees required and specified elsewhere in the Contract Documents, the Contractor shall in general guarantee all work executed by the Contractor and the Sub-Contractors for a period of 12 months from the date of issue of the Virtual Completion Certificate. Those parts of the Work or equipment or installations, for which extended guarantee periods are stipulated elsewhere in the Contract Documents, shall be guaranteed for such periods that are so stipulated. The duration of the Defects Liability Period, unless specified otherwise, shall be the extent of length of such guarantee periods.

iii. The Contractor represents, warrants and guarantees to the Owner, inter alia that:

- The construction of the Project shall be approved and would be capable of use, operation, performance and maintenance for accomplishing the purpose for which it has been built and acquired.
- The Work shall comply with the Specifications, Drawings, and other Contract Documents.
- The Work shall, for a period of 12 months from the date of issue of the Virtual Completion Certificate, be free from all defects and the Project shall be of structural soundness, durability, ease of maintenance, weather tightness etc.
- The materials, workmanship, fabrication and construction shall be of specified and agreed quality and all materials shall be new.
- The Work performed for the Owner shall be free from all liens, charges, and claims of whatsoever nature from any party other than the Owner.

iv. Where, during such guarantee periods as mentioned above, any material or equipment or workmanship or generally any item of work fails to comply or perform in conformity with the requirements stipulated in the Contract Documents or in accordance with the criteria and provisions of the guarantee, the Contractor shall be responsible for and shall bear and pay all costs and expenses for replacing and/or rectifying and making good such materials, equipment, workmanship, and items of work and, in addition, the Contractor shall be also responsible for and shall bear and pay all costs and expenses in connection with any damages and/or losses suffered as a consequence of such failure.

v. All guarantees required under the Contract shall be in the format approved by the Owner and submitted to the Architect and the Owner by the Contractor when requesting certification of the final bill.

43 STATUTORY APPROVALS FOR BUILDING WORKS:

The Contractor is responsible to arrange for the visit of statutory authorities and obtaining all necessary approvals pertaining to their part of the work. Also the Contractor shall be required to provide full coordination to the other vendors in case the statutory approval of other contractor/ vendor has an interface with the work executed by this Contractor. Contractor shall make sure to start this process well in advance so that approvals are obtained on time and prior to the scheduled virtual completion Date.

44 PROJECT CLOSE-OUT DELIVERABLES:

The Contractor shall be responsible to provide all the Project close-out deliverables as per

the Tender Documents, prior to submitting its final bill. Such deliverables shall include but not be limited to:

i. As-Built Drawings - 3 sets(hard copy as well as soft copy);
ii. O&M Manuals –
iii. Guarantees/ Warrantees
iv. Special warranties
v. Extra material/ Attic stock – as specified
vi. Operations Training for the Facilities Management staff of the Owner;
vii. Statutory approvals
viii. Testing and commissioning reports
ix. Contact list –
x. Handing over/ taking over certificate duly accepted by Owner –

Operations Training shall be scheduled in consultation with Project Manager. Contractor shall be responsible to videotape all the training sessions and provide two copies of the recording to Owner representative/ Project Manager, as part of Project Closeout documentation.

45 DEFECTS LIABILITY:

45.1 Maintenance by contractor during Defects Liability Period:

All defective items of work and defects noticed and brought to the attention of the Contractor during the Defects Liability Period shall be promptly and expeditiously attended to and replaced and/or rectified and made good by the Contractor at its own cost, to the complete satisfaction of the Project Manager and the Owner's Representative.

45.2 Replacement and/or rectification and making good by contractors of all defective materials, equipment and/or workmanship during defects liability period:

The Contractor shall replace and/or rectify and make good, at its own cost, and to the satisfaction of the Project Manager and the Owner's Representative, all defective items of work and defects arising, in the opinion of the Project Manager, from materials, equipment, and/or workmanship not performing or being in accordance with the Drawings or Specifications or the instructions of the Project Manager and or other Contract Documents or the best engineering and construction practices, and which may appear or come to notice within 12 months after Virtual Completion of the Work, that is within the Defects Liability Period as per the following:

i. Any item, material or matter repaired or replaced shall receive a new Defects Liability Period of the same duration (*12 months*) beginning upon the date on which the said item is repaired or replaced , material or matter is returned for use to the Owner, provided that the aggregate guarantee period shall not exceed 12 months.

ii. The Contractor shall be also liable for all costs associated with damages and/or losses which are a consequence of such defective items of work and defects, and such costs shall be recouped by Project Manager from the Contractor and shall be recovered from the Retention Money held and/or from the Contractor's final bill (if the final bill has not been certified and paid for at the time). Such defective items of work and defects as mentioned above shall, upon instruction and direction in writing of the Project Manager and within such time as shall be specified therein, be replaced and/or rectified and made good by the Contractor at its own cost.

iii. In case of default or failure by the Contractor to replace and/or rectify and make good such defective items of work and defects, the Owner may employ and pay other persons or agencies to replace and/or rectify and make good such defective items of work and defects, and all costs, damages, losses and expenses therefore, consequent thereon and incidental thereto shall be to the account of the Contractor and such costs, damages, losses, and expenses shall be recouped by the Owner from the Contractor and shall be recovered from the Retention Money held and/or from the Contractor's final bill (if the final bill has not been certified and paid for at the time).

iv. Should the Retention Money held (and the amount in respect of the final bill if it has not been certified and paid for at the time) be insufficient to meet such costs, damages, losses and expenses, as determined by the Project Manager and Architect, the Contractor shall be legally bound to pay the balance amount due under the claim to the Owner within one month of receiving notification to that effect from the Architect and Project Manager. In the event of failure on the part of the Contractor to pay the balance amount due within one month as stated above, the Owner shall be entitled to invoke the performance bond and the Contractor shall raise no objection in this regard.

v. In respect of those parts of the Work for which longer guarantee periods are stipulated elsewhere in the Contract Documents, the Defects Liability Period for such parts of the Works shall be until the end of the respective guarantee period that is stipulated for each such part.

46 FINAL COMPLETION OF THE WORK:

The Work shall be considered as finally complete at the end of the Defects Liability Period subject to the Contractor having replaced and/or rectified and made good all the defective items of work and defects in accordance with clause above, to the satisfaction of the Project Manager, Architect, Owner and provided that the Contractor has performed all its obligations and fulfilled all its liabilities under the Contract, and when the Project Manager has certified in writing that the Works are finally complete. Such Final Completion in respect of those parts of the project, for which extended guarantee periods are stipulated elsewhere in the Contract Documents, shall be achieved at the end of such stipulated guarantee periods.

47 FORCE MAJEURE:

47.1 The right of the Contractor to proceed with the Work shall not be terminated because of any delay, subject to the time limits set forth in this clause, in the execution of the Work due to unforeseeable causes beyond the control and without the fault or negligence of the Contractor, or the Sub-Contractors, being Acts of God or that of the public enemy, restraints of Governing States, fires and floods. The following events are explicitly excluded from Force Majeure and are solely the responsibilities of the non-performing party: a) any strike, work-to-rule action, go-slow or similar labour difficulty (b) late delivery of equipment or material (unless caused by Force Majeure event), (c) economic hardship and (d) changes in applicable laws.

47.2 If the Contractor is wholly prevented from the performance of the Contract for a period in excess of thirty (30) consecutive days because of a Force Majeure, the Owner may terminate this Contract by fifteen (15) days written notice delivered to the Contractor, and if the period of the Force Majeure exceeds one hundred and twenty (120) consecutive days, the Contractor may

terminate this Contract by fifteen (15) days written notice to the Owner. In the event this Contract is so terminated, the Contractor shall be paid for the costs of the Work actually executed up to the date of termination. Such costs shall not include loss of profits or for any other expenses of the Contractor or Sub-Contractors such as salaries or wages of the employees or workers, hire charges for plant and machinery, expenses towards maintenance of establishment, demobilization, break charges or any other expense. Failure to agree on an equitable settlement shall be deemed to be a dispute.

48 TERMINATION OR SUSPENSION OF THE CONTRACT BY THE OWNER:

48.1 If the Contractor shall be adjudged bankrupt or if he should make a general assignment for the benefit of its creditors, or if a receiver shall be appointed on account of its insolvency /bankruptcy, or if he should persistently or repeatedly refuse to carry out the Works diligently, or if he should fail to provide enough skilled workmen or materials or equipment or plant and machinery or tools or anything else necessary for the progress of the Work in accordance with the approved Construction Programme, or if he should fail to make prompt payments to Sub-Contractors or to suppliers for materials or equipment or to its workers, or if he should persistently disregard laws or ordinances of the Central/ State or local governments or disregards the instructions of the Project Manager or the Owner's Representative, or if he should be guilty of a violation or breach of any provision of the Contract, or if he has abandoned the Contract, or if he has failed to commence the Work within the time specified or if he has suspended the Work, then the Owner, may without prejudice to any other right or remedy, and after giving the Contractor seven days notice in writing, terminate the Contract and take charge of all materials, equipment, tools, and plant and machinery thereon and use these as the Owner's property for the completion of the Project. In such case the Contractor shall be entitled to receive any payment for the Work completed by him only after the Project is completed. If the amount due to the Contractor for the Work carried out by him as per the Contract terms exceeds the expenses incurred by the Owner, including for additional management and administrative services, for completing the Project and in respect of the damages and/or losses suffered by the Owner due to the Contractor's default, then such excess shall be paid to the Contractor within three months of the final completion of the Project. If such expenses for completing the Project and in respect of the damages and/or losses suffered by the Owner exceed the amount due to the Contractor, then the Contractor shall pay the difference to the Owner within one month of receiving the notice to that effect from the Project Manager or the Owner's Representative. The expenses incurred by the Owner for completing the Work and in respect of the damages and/or losses suffered by him due to the Contractor's default, shall be certified by the Project Manager and its decision on this matter shall be final and binding on the Contractor.

48.2 The Owner may terminate the Work for convenience at any time for reasons other than for cause, without prejudice to any claims that the Owner may have against the Contractor, by giving the Contractor at least seven days' prior written notice thereof. In such event, the Owner shall pay the Contractor for such portions of the Work as are completed and properly invoiced under the provisions for final payment in Clause 30 hereof for Work performed prior to termination. In no event, shall the total payments made to the Contractor exceed the Contract Price, and, prior to full payment, the Contractor shall comply with the requirements for the release of claims and other documentation as appropriate as provided for under the provisions for final payment in Clause 30 hereof. The Owner's sole liability to the Contractor for termination pursuant

to this Clause 48.2 shall be determined in accordance with this Clause 48.2 only and the Contractor shall not be entitled to any further payments, including without limitation, loss of anticipated profits or any other claims of whatsoever nature.

48.3 The Project Manager or the Owner's Representative may suspend at any time and for any reason any part of or the whole of the Work by giving at least 24-hours' written notice thereof to the Contractor, specifying the part of the Work to be suspended and the effective date of such suspension. The Contractor shall cease work on said part of the Work on the effective date of such suspension but shall continue to perform any unsuspended part of the Work. During a suspension, the Contractor shall only be reimbursed for the cost of the unsuspended Work related to (a) the Contractor's employees whose work has been approved by the Project Manager, and (b) such other items authorized by the Owner pursuant to a Change Order. The Owner may, at any time, authorize resumption of the suspended part of the Work by notifying the Contractor of the part of the Work to be resumed and the effective date of suspension withdrawal. The Work should be properly resumed by the Contractor after receipt of such notice. The Owner's sole liability to the Contractor for suspension shall be determined in accordance with this Clause 48.3 and any approved Change Order, and the Owner shall not be liable for any other damages, including without limitation, loss of anticipated profits or any other claims of whatsoever nature.

49 INTELLECTUAL PROPERTY RIGHTS:

49.1 It is hereby acknowledged and agreed that the Owner has commissioned the Work in connection with the Project and accordingly ownership of all intellectual property rights, including but not limited to property rights in the design and in all Drawings, Specifications and documents prepared by the Architects, the Contractor and any Sub-Contractors or Vendors belongs and shall be assigned solely to the Owner who shall be entitled to deal with the designs, Drawings, Specifications and documents in whole or in part, in any manner in the Owner's sole discretion. The Contractor hereby disclaims any right whatsoever on these intellectual property rights in which cases the Owner shall be duly informed in that regard. This intellectual property right entitlement shall extend to any maintenance, repair and renewal, reinstatement and enlargement of the Project. The Contractor shall ensure that any provisions of this type necessary to protect the intellectual property rights of the Owner are included in all its contracts with Sub-Contractors.

49.2 All communications, whether written or oral, including but not limited to this Contract, its Annexures, Drawings, data sheets, Specifications, bills of material, sketches, calculations, designs and all other materials shall be treated as confidential and shall be the exclusive property of the Owner unless otherwise agreed in writing and must be given to the Owner upon request, but in any event all such materials shall be delivered to the Owner upon termination/expiry of this Contract.

49.3 The Contractor agrees that it and its employees, agents, Sub- Contractors and consultants shall not (without the prior written consent of the Owner) during the term of this Contract or thereafter, disclose, make commercial or other use of, give or sell to any person, firm or corporation, any information received directly or indirectly from the Owner or the Architect or acquired or developed in the course of the Work, Project or this Contract, including by way of example only,

ideas, inventions, methods, designs, formulae, systems, improvements, prices, discounts, business affairs, trade secrets, products, product specifications, manufacturing processes, data and know-how and technical information of any kind whatsoever unless such information has been publicly disclosed by authorised officials of the Owner. The Contractor agrees that prior to assigning any employee or agent or hiring any Sub -Contractor or consultant to work on this Project, such employee, agent, Sub-Contractor or consultant shall be required to execute a document containing in substance and form, a confidentiality provision similar to this provision.

49.4 The Contractor shall not, without the Owner's prior consent:

- take any photographs or videos of the Project (or any part thereof) for use otherwise than in connection with carrying out and completion of the Project;
- write for publication, or cause, information or comment or pictures about the Project;
- supply to any third person such as actual and prospective Owners, contractors, publishers, other interested parties and the like, the designs and any articles or information relating to the Project; and
- give interviews to the press including television, radio print and the like regarding the Project or the Contractor's involvement in the Work.

49.5 Notwithstanding the foregoing, this provision shall not limit the obligation of the Contractor to take photographs and/or videos on a regular basis for the purpose of providing the progress reports required by this Contract.

49.6 The Contractor, Sub-Contractors and their respective employees, representatives, agents, servants, workmen and suppliers shall not, during or after the termination/expiry of this Contract, disclose any information pertaining to this Contract or the Project to any person without the prior written consent of the Owner except when called upon to do so by a valid and lawful direction or order of a statutory or Government authority or an order of a court of law or where any of the parties require production of this document and related information for establishing their respective legal rights.

50 SETTLEMENT OF DISPUTES / ARBITRATION:

50.1 All disputes and differences of any kind whatsoever arising out of or in connection with this Contract whether during the progress of the work or after their completion shall be referred in writing by the Contractor to the Owner's Representative, and the Owner shall within 10 days from receipt make and notify its decisions thereon in writing to the Contractor.

50.2 Decisions, directions, clarifications, measurements, drawings and certificates with respect to any matter the decision for which is specially provided for by these or other special conditions to be given and made by the Owner's Representative or by the Project Manager are matters which are referred to hereinafter as exempted matters and shall be final and binding upon the Contractor and shall not be set aside on account of non-observance of any formality, any omission, delay or error in proceeding in or about the same or on any other ground or for any reason and shall be without appeal. They shall be specifically excluded from the scope of arbitration proceedings hereinafter referred to.

50.3 Subject to the aforesaid in the event of any dispute or difference between the parties hereto as to the construction or operation of this Contract, or the respective rights and liabilities of the parties on any matter in question, dispute or difference on

any account or as to the withholding by the Owner of any certificate to which the Contractor may claim to be and entitled to or if the Owner fails to make a decision within the aforesaid time, then and in any such case, but except in any of the exempted matters referred to in the above clause, the Contractor after 90 days of its presenting final claim on the disputed matters, may demand in writing that the dispute or difference be referred to and settled by a sole arbitrator mutually acceptable to the Owner and the Contractor,. In the event the parties fail to appoint a mutually acceptable arbitrator, the parties shall approach the appropriate court for appointment of the sole arbitrator. The award of the Arbitrator shall be final and binding on both the parties. The provision as per the Arbitration and Conciliation Act 1996 shall apply to such arbitration. The arbitration venue shall be at Chennai. The procedure for the arbitration shall be determined by the arbitrator. Costs of such arbitration shall be equally shared between the Owner and the Contractor.

50.4 The Contractor shall not, except with the consent in writing of the Owner, the Architect, in any way delay the carrying out of the Work by reason of such matter, question or dispute being referred to arbitration but shall proceed with the work with all due diligence and shall, until the decision of the arbitrator is given, abide by the decision of the Architect and no award of the arbitrator shall relieve the Contractor of its obligations to adhere strictly to the Owner, the Owner's Representative's or the Project Manager's instructions with regard to the actual carrying out of the Work except as specifically affected by such award

51 GOVERNING LAW:

The governing law of the Contract shall be Indian law. Any disputes related or arriving out this agreement shall be subject to the exclusive jurisdiction of courts of Chennai.

52 STANDARDS OF CONDUCT:

52.1 Maintenance of appropriate Business standards

The Contractor, in performing its obligations under this Contract, shall establish and maintain appropriate business standards, procedures and control, including those necessary to avoid any real or apparent impropriety or adverse impact on the interests of the Owner. The Owner will in no event reimburse the Contractor for any costs incurred for purposes inconsistent with such policies.

52.2 Compliance with laws, rules and regulations:

Contractor represents, warrants, certificates and covenants that in connection with performance under this Contract that:

i. It shall, and the Work to be provided hereunder shall, comply with all applicable local, State, and Central laws, rules and regulations, including but not limited to those governing building constructions, environmental, safety of persons and property, Employees State Insurance, Workmen's Compensation, Provident Fund and applicable industrial/labour laws, and land development laws, rules and regulations.
ii. No services provided hereunder will be produced using forced, indentured or convicted labour or using the labour of persons in violation of the minimum working age law in the country where the Work are rendered;
iii. It shall comply with all laws regarding improper or illegal payments, gifts or gratuities; and Contractor agrees not to pay, promise to pay or authorize the payment of any money or anything of value, directly or indirectly, to any person or entity for the purpose of illegally or improperly inducing a decision or obtaining or retaining business or any advantage in connection with this Contract;
iv. It has not paid or provided and shall not pay, any gratuity for the benefit of

any agent, representative or employee of the Owner other than in accordance with the Owner's applicable policies; and

v. It has not, and shall not, engage in any sharing or exchange of prices, costs or other competitive information or take any other collusive conduct with any third party supplier or bidder in connection with the preparation or submission of any bid or proposal to the Owner or the negotiation of this Contract.

vi. It will also comply with all rules and regulations of the Owner which may be in effect at the Facility site regarding employment, passes, badges, smoking, fire prevention, safety and conduct or property. On behalf of the Owner, Contractor shall request and monitor that any Contractor, Sub-Contractors, vendors and each of their employees observe such rules and regulations.

53 WARRANTY AS TO DOCUMENTS SUBMITTED TO OWNER AUDIT:

The Contractor represents that all Documents, including invoice, vouchers, and financials to settlements, billings and other reports submitted or to be submitted by the Contractor to the Owner in support of an application payment are true, correct, complete and accurate in all respects. Upon request of the Owner, the Contractor agrees to cooperate fully with the Owner in the conduct of a joint audit of the billings by the Contractor for the Work.

54 ACCOUNTS AND AUDIT:

The Contractor agrees to maintain true and accurate financial statements and books of accounts, recording all income and expenditure in relation to the Project ("**Books of Accounts**"). The Books of Accounts shall, at all times, be maintained at the Site. The Contractor agrees that the Owner, Architect and the Project Manager shall have the right to conduct (or cause to be conducted) an independent audit of the Books of Accounts at any time during the subsistence of the Contract. Additionally, the Contractor agrees that the Books of Accounts shall be maintained for a minimum of 60 months subsequent to the expiry/termination of the Contract

Liability

Notwithstanding anything to the contrary herein or the Contract, in no event shall Owner be liable to the contractor for any indirect, incidental, consequential, special or exemplary damages, nor for any damages as to lost profit, data, goodwill or business, nor for any reliance or cover damages arising out of either the performance or non-performance of any terms of this Contract by the Owner or enforcement of any rights of the Owner hereunder, even if Owner was advised about the possibility of the same.

55 SCHEDULE OF FISCAL ASPECTS

Sr No.	Description	
A	**Commencement/ Completion**	
I	**Mobilization period**	From the date of issuance of LOI, a mobilization period of 7 days shall be allowed to the Contractor to mobilize its resources at site.
Ii	**Scope of Work**	Dock Leveler works
Iii	**Commencement of work**	The Work shall commence on date of issue of LOI.
Iv	**Completion of Work**	As per Annexure – 1.
v	**Contract Validity**	120 days
B	**Payment terms**	
I	**Mobilisation Advance**	After the contract agreement is signed, if required, 10% of the contract value will be paid as Interest Free mobilization advance against submission of bank guarantee from any Nationalized Bank for an amount equivalent to 10% of contract value valid upto contract duration + 6 months, which will be recovered in full through the Running Account Bills on Pro-rata basis starting from the subsequent Running Bill to that in which the total value of work done exceeds 10% of contract value and shall be fully recovered by the time the Cumulative Work Done Certified Amount / Bill Value reaches 80% of the Contract Value. Contractor needs to submit the bank guarantee extension 20 days prior to its expiry date; if any required.
Ii	**Earnest Money Deposit**	NA
Iii	**Performance Bank Guarantee**	1. The successful tenderer should furnish a Performance Bond in the form of a Bank Guarantee from a Nationalized Bank approved by the Owner, for the value 10% of contract value within fifteen (15) days from the date of LOI. The bank guarantee shall be in the approved format and valid till Final Completion of Contract + 12 months 2. The performance guarantee shall not bare any interest. The owner shall have the right to invoke the Bank guarantee to recover any money that may be payable by the contractor, in case of non-performance. All compensation or other sums of money payable by the contractor to the Owner under the terms of this contract shall be recovered from the Contractors performance guarantee whenever the retention held and any money that may be payable under the contract by the contractor to the Owner are insufficient to enable such recoveries. 3. Contractor needs to submit the bank guarantee extension 20 days prior to its expiry date; if any required. Performance Bank Guarantee shall be valid till completion of Defects Liability Period

Iv	**Retention Money**	Deduction towards retention money shall be made in every Running bill at 5% of the value of work certified, towards retention. On virtual completion of works, the contractor will be released 2.5% of the amount and balance 2.5% in cash will be released after successful completion of Defects liability period provided the Works are free from defects and the Contractor has rectified all defects identified by Owner's Representative / Project Manager. Accepting Bank Guarantee for retention will at the sole discretion of the Owner's representative / Project Manager. The BG must be in format approved by the Project Manager. The retention money shall not carry any interest. B.G shall be from Nationalized Bank only.
V	**Material Advance**	*NA*
Vi	**Payment by the owner**	• Mobilisation Advance Payment shall be made by the Owner within 15 working days after Submission of BG / Date of Agreement. • Running Bills Payments shall be made by the Owner within 14 Working Days after certification by project managers.
vii	**Liquidated Damages**	The Project will be monitored milestone wise as per Annexure 6. In the event of delay in the completion of any milestone of the project beyond the dates specified in this document, then liquidated damages for such delay shall be levied on the contractor. These liquidated damages shall be calculated at the rate of one percentage (1%) per week or part thereof of delay, of the mile stone financial programme value subject to a maximum of 10% of the Contract value. The liquidated damages shall be recovered from the Running Account Bills. If the value of the liquidated damages is more than the interim bill, the remaining amount shall be recovering from Retention money. If total completion is achieved within Final Stipulated Milestone as per bid document, then any liquidated damages levied in respect of earlier milestones shall be waived.
viii	**Defects Liability**	12 Months from the date of Final Handing Over.
Ix	**Insurance**	a) Contractor's All Risk (CAR) Policy shall be directly taken by the Contractor for the entire scope of works. b) Contractor to provide Policy to cover Erection All Risk (EAR) c) Contractor to provide Policy to cover Contractor's liability under Workmen's Compensation Act 1923, Minimum Wages Act 1948, Contract Labour (Regulation and Abolition) Act 1970 and other relevant labour legislations. d) Insurance cover against damage or loss due to any reason in respect of material, equivalent and/or work done. Limit of liability shall not be less than the value of such materials at any stage of the contract, for the period of completion including the Defects Liability Period. The Contractor shall produce to the Project

		Manager all certificates of insurance within 10 days from the date of issue of LOI.
X	**Statutory requisites**	Contractor has to comply with the following statutory requirements a) Contractor has to obtain labour license for the project prior to start of works and submit the Labour license copy b) Contractor has to comply with ESI and PF regulation and has to submit the ESI & PF challans deposited against workmen at site with details along with RA bills. c) Contractor has to comply with the local laws and regulation including but not limited to Contract Labour Regulation, etc. All records in this connection shall be properly maintained by the Contractor and produced for scrutiny by the concerned authorities, the Project Manager and the Owner whenever called for. d) Contractor to maintain muster roll cum wages register and submit the same on monthly basis along with the bills.
C	**Bills**	
i	**Running Bills**	The bills in triplicate shall be submitted to the Project Managers along with all supporting documents. Only one bill per calendar month shall be admitted.
ii	**Certification**	The Project Managers shall certify the Running bill within 15 working days. The final bill will be certified within 45 working days of the receipt of bill along with all supporting documentation provided the bills meet the acceptance criteria. Contractor should submit the bill along with the RA bill submission check list format. Bills not meeting the RA bill submission check list will not be accepted at any circumstances. The Bill shall be submitted along with the check list provided by the project managers. No bill will be accepted without the check list and supporting documents.
iii	**Payment Terms:**	Payment shall be made as follows: 10% Advance along with PO 50% on Supply at site 30% on Erection 10% on Testing, Commissioning, & Handing Over 5% Retention amount will be retained in all Payments The payment will made after deduction of Mobilization advance and Retention and completion of work as per Contract if any. Further any other statutory deductions and other recoveries if any will be done as per contract.
iv	**Supporting Documents**	Bills will not be accepted/ received by the Project Managers if bills are not in the correct format as prescribed by the Project Managers or are not presented along with material invoices/ delivery challans, measurement sheets, rate analysis, invoice submission check list etc.

v	**Tax Deduction at Source**	Tax shall be deducted as applicable at Source in accordance with the statutory requirements from all payments made to the Contractor, including that in respect of the Mobilization advance, if paid
vi	**Income Tax**	Income tax at the rate prevailing at the time of payment will be deducted from each Running bill and Final bill, together with any other prescribed statutory deductions
vii	**Period of raising Final bill**	Within 4 weeks of virtual completion of works and submission of handing over documents duly approved by the Project Manager.
D	**Site facilities**	
i	**Labour Hutment /Staff quarters**	Space will be not be provided for labour hutment or staff quarters
E	**Third party testing of installations**	PMC / client shall have the right to ask for third party testing of welding quality check / Fabrication and other installations done by the vendor. PMC will identify the Third party vendor and vendor should give all necessary support for testing. All cost involved for Third party testing shall be borne by the vendor / contractor and no cost on this aspect shall be additionally paid to the contractor
F	**Storage of construction materials by the vendor**	Vendor should arrange on their own covered space for storage of all the items for the Project. PMC/ Client shall give open to sky area No claim on loss or theft of materials at site can be claimed by vendor in this aspect. Further till final handover is done to Client it is the responsibility of the vendor to safeguard all the supply and erected materials. Any security deployment required need to be planned by the vendor.


Daily Safe Working Cycle
Morning Safety Meeting (All Workers)
Hazard Identification Activity (All Work Teams)
Prior-to-Work Inspection (Mechanics, Electricians, Operators, Engineers, Competent Persons, Scaffolders, etc.)
Safety Inspection (Project Managers, Site Agents, etc.)
Guidance & Supervision at Work (Team Representatives, Foreman, etc.)
Process Safety Discussion (Project Managers, Site Agents, Foreman, Subcontractor Representatives, etc.)
Tidying up after Work (All Workers)
Final Check after Work (Team Representatives, Foreman, etc.)

Introduction

The following sections provide general guidelines and procedures for construction safety. This guideline covers the following topics.

Particulars

- General construction Guidelines
- Barrier and Guards
- Heavy equipment safety
- Hoists
- Scaffolding
- Access
- Hazard & accident/incident reporting
- Contractors & subcontractors tools &equipment's
- Hazardous materials
- Dust and fume control
- Fire hazards and precaution
- Machinery safety
- House-keeping / hygiene
- Noise
- Working at height
- Plant services
- Electrical safety
- Warning signs and notices
- Housekeeping plan.
- Monthly activity safety plan
- Daily / Monthly safety report.
- Weekly safety observation rounds by project heads.
- Checklist
- compliance to HSE guideline

General Construction Guidelines

Construction work can be particularly hazardous. Personal protective equipment, fire safety Electrical safety and other precautions are essential for safe construction work. Refer to other chapter manual for more information.

Follow these guidelines when visiting or working at construction site:

Do not walk, stand, or work under suspended loads. If you raise a load, be sure to crib, block, or otherwise secure the load as soon as possible. Avoid placing unusual stain on equipment or materials. Be prepared for unexpected hazards.

BARRIERS AND GUARDS

Contractor employees must use barriers and guards as necessary to protect employees, Sub contractors and visitors from physical hazards. If you suspect a hazard is not sufficiently protected, notify attending workers or the Safety officer immediately.

Note:

Barriers, guards, and warning signs are required to ensure safety against existing hazards.

Types of Barriers and Guards

Standard types of barriers and guards include the following:

Guardrails and handholds / tap / toe board / cones

Other physical barriers and solid separator (dust barriers, hazard barriers, temporary walkways, etc,.)

Note:

Signs that state DANGER, WARNING, and OR CAUTION are also important when barriers or guards are necessary

Remember to make signs legible, visible, and brief,

Areas that needs barriers or guards

Any area that poses a physical threat to workers and / or pedestrians requires protection include the following:

Stairways/hatches/chutes/open manholes/elevated platforms/areas with moving machinery/excavation sites /construction sites/temporary wall or floor openings doors opening into construction sites.

Using barriers and guards

The following list provides guidelines for using barriers and guards:

Notify the office for visitors with disabilities when barriers are used. When necessary, reroute pedestrian and vehicular traffic to completely avoid a construction site. Guard any

permanent ground opening into which a person could fall with a guardrail, load-bearing cover, or other physical barrier.

- Ensure that temporary floor openings, such as pits and open manholes, are guarded by secure removable guardrails. If guardrails are not available have someone guard the opening.
- Ensure that all stairways, ladder ways, hatchways, or chute floor openings have handrails or hinged covers.
- Ensure that enclosed stairways with four or more steps have at least one railing, and that open stairways with four or more steps have two railing.
- Ensure that all platform and walk ways that are elevated or located next to moving machinery are equipped with handrails, guardrails or toe board
- Barricade any wall opening through which a person or tools could fall. Use gates, doors, guardrails, or other physical barriers to block the opening.
- Mark and guard any excavation that is deeper than 12 inches.
- Mark and/or guard potholes and sidewalk damages as appropriate.

Heavy equipment safety

When using heavy equipment, there are five basic guidelines that employees must always follow to ensure safety:

Know how to properly operate the equipment you are using.

Do not use heavy machinery when you are drowsy, intoxicated, or taking prescription medication that may affect your performance.

Use only equipment that is appropriate for the work to be done.

Inspect your equipment to ensure that it is in good working condition before beginning a job, in addition, ensure that regular inspections and maintenance are conducted as appropriate.

Do not stress or overload your equipment. Accidents do not just happen, they are caused. Therefore, employees should also follow these guidelines

Ensure the following before leaving equipment unattended:

- All buckets, blades, etc. are on the ground.
- Transmission is in neutral
- Engine is off.
- Equipment is secure against movement.
- Never get on or off moving equipment.

- Do not attempt to lubricate or adjust a running engine.
- Turn the engine off before refuelling.
- Keep all shields and safety guards in place.
- Avoid underground utilities and overhead power lines.

The following sections provide basic guidelines for working with forklifts, front end loaders, and backhoes.

Hoists.

Only authorized employees may use hoists to move heavy objects and equipment. When using hoists, remember to follow the five safety guidelines for working with heavy equipment. In addition follow the guidelines in the following sections.

Hoisting guidelines

The following are general guidelines for working with hoists:

- Never walk, stand, or work beneath a hoist. Isolate hoisting area with barriers, guards, and signs, as appropriate. Never exceed the capacity limits of your hoist
- Wear gloves and other personal protective equipment, as appropriate. when working with hoist.
- Wear gloves and other personal protective equipment, as appropriate, when working with hoist and cables.
- Ensure that hoists are inspected regularly. Always hold tension on the cable when reeling it in or out. When the working is complete, always rig the hoist down and secure it.
- When the load block or hook is at floor level or its lowest point of travel, ensure that at least two turns of rope remain on the drum.
- Be prepared to stop operations immediately if signaled by the safety watch or another person.

Picking up loads with hoists

Ensure that the hoist is directly above a load before picking it up. This keeps the hoist from becoming stressed. Picking up loads at odd angles may result in injury to people or damage to the hoist.

Do not pick up loads by running the cable through, over, or around obstructions. These obstructions can foul the cable or catch on the load and cause an accident.

Avoiding electrical hazards with hoists.

Do not hoist loads when any portion of the hoisting equipment or suspended load can come within 6 feet of high-voltage electrical lines or equipment.

If you need to hoist near high voltage electrical lines or equipment, obtain clearance from your supervisor first.

Inspecting hoists

Hoists should be inspected daily. If there is any question about the working condition of a hoist, do not use it,

Hoist inspectors should note the following:

The hooks on all blocks, including snatch blocks, must have properly working safety latches.

All hooks on hoisting equipment should be free of cracks and damage.

The maximum load capacity for the hoist must be noted on the equipment cables and wiring should be intact and free of damage.

Scaffolding

When employees must conduct construction work above the ground and away from solid platforms, scaffolds may be appropriate. The following list provides guidelines for using small scaffolds. Larger scaffolds must be designed and erected in accordance with applicable standards.

Ensure that scaffold anchors are sound, rigid, and capable of supporting the maximum intended load without shifting.

Note:

Scaffolds and their components should be capable of supporting at least four times their maximum load. For freestanding, mobile scaffolds, the height should not exceed four times the minimum base dimension. Of workers are riding the scaffolding however, the base dimension should be at least one half the heights.

Do not use unstable objects such as barrels, boxes, bricks or blocks to support scaffolds or planks.

Keep floors free of debris where mobile scaffolds are used.

Lock scaffolds with wheels into position.

Install guardrails, mid rails, or toe boards on the open sides and ends of platforms that are more than 4 feet above the ground or floor level. Use lifelines for scaffolds that are more than 10 feet off the ground.

Either overlap multiple planking and platforms by 12 inches or secure them to ensure stability.

Note:

- Planks must extend over end supports between 6 and 18 inches.
- Secure scaffolds to permanent structures with anchor bolts or other means.
- Do not load scaffolds in excess of their maximum load limits.
- Repair damaged scaffolds immediately.

- Do not work on scaffolds in high winds or during storms.
- Do not allow tools, equipment, or other debris to accumulate on scaffolds.
- Dismantle and remove scaffolds when they are no longer needed.
- Do not use temporary scaffolding as a permanent installation.

Access

Any means of access to the places at which people are required to work.

The passage of people and /or vehicles whether on a defined gangway or not, unless permission is obtained from the designated safety officer

Access for emergency apparatus such as firefighting equipment's

Contractors and subcontractors shall nevertheless provide adequate fencing, lighting and warning signs to ensure safety at all time.

The contractor shall be responsible for keeping all its working and storage area clean, orderly and secure.

The contractor shall not, and shall ensure that its subcontractors do not, use , transport, or store hazardous material at the work site except with the prior approval of the Developer's representative. All hazardous material used transported or stored shall be dealt with in accordance with, and the contractor shall comply with, the law the contract and the policies,

During the performance of the work, the contractor shall comply fully with the contract and the Developer's safety and emergency guidelines regarding clean up.

The contractor shall clean up, remove and dispose of all surplus materials, containers, trash and debris resulting from the work.

Upon completion of the work, or earlier termination of the contract, the contractor shall promptly clean up and remove all equipment, tools and surplus materials from the work site as specified by the Developer and shall leave the work site clean and ready the Developer 's use and occupancy.

Hazard, accident & incident reporting

- The contractor should notify the project manager of the following hazards/accidents /incidents and a written report should be submitted to the project manager within 24 hrs.
- Accidents involving death or personal injury;
- Accident involving loss of time;
- All incidents, including those with potential to harm safety or the environmental or near misses.

Contractors &sub-contractors tools & equipment's

Portable powers tools are designed for a wide verity f uses the following safety rules are common to all power tools. In addition each type of tool has its own unique hazards, which must be taken in to account.

Read the manufacturer's manual to understand the tools proper applications, limitations, operation and hazards.

- Do not use electric power tools in the proximity of flammable vapors, dust or construction materials, also avoid using electric power tools in wet environments.
- Protect yourself from electric shock by insuring our tools are properly grounded; use a ground fault circuit interrupter for corded tools.
- Always check for hidden wires that may contact bladed tools.
- Select a tool based on the task for which it is designed.
- Only use attachments specifically recommended for your power tools, and ensure their proper installation
- Inspect tools for damage including the cord, presence of guards, correct alignment, binding of components, or any condition that would affect the operation of the tool.
- If a tool is damaged, or a condition develops while a tool is in use, have the tool fixed before using it again.
- Avoid excessive force to make cutting tools cut faster: feed material only as fast as the tool is designed to accept to prevent excessive were and decreased control.
- Keep others away from the work area, or provide shields to stop flying debris and other distractions.
- Always maintain tool control by keeping a tight grip on a tool.
- Maintain your balance and do not overreach.
- Do not operate a power tool if you are under the influence of medications or alcohol, or if you are tired or distracted.
- Secure your work in a vise or clamp for increased stability.
- Use the tools side handle, if available, for better control.
- Verify that all tools are unplugged or that the power source is removed when changing blades, performing maintenance or when tools are not in use.
- Be sure adjustment knobs are tightened and remove any adjustment keys before use.
- Keep tools in a secure location when not in use.
- Avoid unintentional tool start up by keeping your finger off of the power switch.

Hazardous materials

Ensure the contractor and subcontractors identify and implements the training required for the handling and disposal of hazardous materials.

Ensure the contractor and subcontractors obtain appropriate approval for those hazardous materials to be used at the site prior to their arrival on site.

Dust and fume control

The key to preventing silicosis is to keep dust out of the air; dust controls can be as simple as a water hose to wet the dust before it becomes airborne. Use the following methods to control dust.

Always use the dust control system, and keep it well maintained.

When sawing concrete or masonry, use saws that provide water to the blade.

Use good work practices to minimize exposures and to prevent nearby workers from being exposed. For example, remove dust from equipment with a water hose rather than with compressed air. Use vacuums with high efficiency particulate air filters, or use wet sweeping instead of dry sweeping.

Always use right personal protective equipment's and clothing.

Fire hazards and precaution

Contractor is to be committed to minimizing the threat of fire to employees, visitors, and property, complies with all applicable laws, regulations, codes, and good practices pertaining to fire prevention.

Plan implementation

To limit the risk of fires, employees shall take the following precautions:

Minimize the storage of combustible materials.

Make sure that doors, hallways, stairs, and other exit routes are kept obstructions.

Dispose of combustible waste in covered, airtight, metal containers.

Use and store flammable materials in well ventilated areas away from ignition sources

Use only inflammable cleaning products.

Perform "hot work" (i.e., welding or working with an open flame or other ignition sources) in controlled and well ventilated areas.

Keep equipment in good working order (i.e., inspect electrical wiring and appliances regularly and keep motors and machine tools free of dust and grease

Ensure that heating units are safeguarded.

Report all gas leaks immediately.

Repair and clean up flammable liquid leaks immediately.

Keep work areas free of dust, lint, sawdust, scraps, and similar material.

Do not rely on extension cords if wiring improvements are needed and take care not to overload circuits with multiple pieces of equipment.

Ensure that required hot work permits are obtained.

Turn off electrical equipment when not in use.

Housekeeping hygiene

Many injuries result from poor housekeeping, improper storage of materials, and cluttered work areas, to maintain a clean, hazard free workplace all groups management supervision and workers must cooperate.

General Regulations for safe housekeeping require

Disposal of rubbish

Individual cleanup

Duties for all workers

Materials piled, stacked, or otherwise stored to prevent tipping and collapsing

Materials stored away from overhead power lines

Keep stairways, passageways, and gangways free of material, supplies, and obstructions at all times.

Pick up store, or dispose of stools, material, or debris which may cause tripping or other hazards.

Do not throw materials or tools from one level to another.

Noise

Excessive noise is unwanted sound that may damage a person's hear, noise at the workplace is a major cause of hearing loss. It contributes to social isolation and reducedquality of life, career prospects, increased absenteeism, worker turnover and lowered work performance. It also contributes to workplace injuries and accidents.

Effective noise control measures have a positive effect on people. They increase a sense of well being and privacy which in turn results in a greater acceptance of the work environment.

Working at height

Contractors should follow proper height work equipment to work at height. All PEB / Structural steel / Electrical/ Firefighting and other vendors works erection at height will be done only with Boom lift/ Scissor lift. Sufficient number of equipment to be engaged to meet the Contract timeline.

There are a number of hazards associated with working at heights from working platforms (fixed, adjustable and automated) and some of them are listed below:

Falls

Slips and trips

Hit by falling object or knife injury (including access and egress) and manual handling.

The risk of injury from a fall from steps or a ladder increases with tasks that involve;

The use of power tools

Uneven surfaces

Pedestrian traffic

Windy and wet weather and overhead structures

Tasks at heights under 2 meters require safe work procedures to be developed and implemented to minimize the risk. The tasks that involve working from a height of 2 meters or more are considered high risk. These tasks must be identified and have controls put in place. As much of the task as possible should be completed on the ground prior to working at height.

It is important to note that ladder use should be subject to risk assessment, safe work procedures and training. When not in use, ladders should be stored horizontally on hooks at waist height in a secure area.

Working at height risks may be relevant when:

Working on roofs

Working with ladders

Erecting scaffolding

During construction work

For falls of less than two meters

Develop and document safe work procedures to outline the way in which the hazard shall be managed: and

Provide training to employees to provide them with the skills and knowledge to do their work safely.

If there is a risk of a fall of more than two meters, specific duties apply:

Perform the task on the ground if possible.

Use a passive fall prevention device

Use a work positioning system to ensure employees work within a safe area

Install a fall arrest system to limit the risk of injuries in the event of a fall

Use a fixed or portable ladder incorporating a risk assessment, safe work procedures and training; and if you are not able to work on the ground or on a solid construction prior to working at height then

Establish emergency procedures and first aid provision prior to undertaking the task

Review documented safe systems of work for contractors who are required to work at height.

Monitor the work at height practice of all employees and contractors to ensure they are working safely.

Machinery and equipment

In the primary industries, employees may work with or come in contact with a large range of machinery and equipment, including tractors, machinery, generators, power tools and equipment, loaders , prime movers and off road vehicles a large number of mechanical equipment injuries occur in the construction industry.

These injuries may result in lengthy periods of time off work and sometimes result in permanent disability.

Contractor must:

Have a maintenance program to make sure all equipment and machines are in safe working order and that appropriate guards are fitted.

Have a system in place for looking out and isolating machinery during maintenance, cleaning and repairs train you to operate any item of mechanical equipment before you use it, and make sure you are supervised when you use it.

Operation

When you are operating any equipment, you must follow safe work procedures as instructed by your Developer or his supervisor, this may include:

- wearing clothing that shall not catch in moving parts
- wearing any personal protective equipment provided by your Developer
- operating the machinery and equipment correctly and safely according to your training
- keeping all guards in place
- Making sure guards removed during adjustment cleaning maintenance or repair is replaced by an authorized person before you use the machine.
- Switching off machinery and equipment when not in use and locking out and isolating machinery before any adjustment cleaning maintenance or repair is done concentrating on the job, as distractions can contribute to injuries and keeping the area around the equipment or machinery clean.

Guarding

Manufacturer of machinery and equipment are legally required to make sure dangerous part are safely guarded so that operators and others are protected from injury. Examples of guards used in the primary industry include power take off guards on tractors and guards on belts, couplings, power saws and chain saws.

Contractor must make sure machinery and equipment is correctly guarded.

To reduce the risk of injury, the contractor must:

- Provide training instruction and supervision for all works task, such as cutting, welding, grinding, heating, and using aggressive power tools.
- Install safety switches or residual current devices (ELCB /RCCB)
- Store hazardous substances and dangers goods, tools and equipment safely.
- Provide suitable tools for the job.
- Provide firefighting equipment and smoke detector
- Provide suitable personal protective equipment. (PERSONAL PROTECTIVE EQUIPMENTS) and clothing.
- Make sure there is enough working place for each job.

- Provide good lighting and ventilations
- Make sure walk ways and exits are kept cleared to reduce slip and trip hazard, and
- Make sure that fuel compressed air steamed equipment electrical or other services are installed correctly and in safe working order.

Electrical safety

Carrying out electrical work

Safety procedures for working with electricity might require:

Before starting work Plan and discuss the job consider the hazards and think about what is to be done. Confirm permission to isolate (use a permit system if relevant) Isolate the electrical equipment or circuit Fit a "DANGER –DO NOT OPERATE" tag Put up safety barriers when required Use the correct earthing equipment Cover and insulate live apparatus nearby Check test instruments, and Get authorization to do the work Avoid working on live equipment whenever possible. You should not wear bracelets, rings, neck chains, exposed metal zips or watches while carrying out electrical work near live electrical equipment, if in doubt, ask your supervisor, when working Use safety observers when required Never use two pin plug top use always three pin plug. Use always double insulated three core cables. Do not over load the DB Check the isolation points before resuming work after a break. Use approved safety belts when working at height. Regularly check and clean the tools that you use. Use non conducting tape measures.

On completion of work

- Check that no tools are left on (or in) the job.
- Remove your own earthing equipment
- Check that the work is complete and the equipment.
- Check that the work is complete and the equipment can be energized.
- Notify all personnel involved that the equipment shall be energized.
- Hand in your work permit (if relevant)
- Remove "DANGER - DO NOT OPERATE" tags.
- Energize power supply, and
- Remove and store all safety barriers

Safety practices

- Know electric shock and resuscitation procedure
- Keep a first aid kit handy
- Check the first aid kit regularly
- Know where the fire extinguishers are located, and how to operate them
- Know the correct type of fire extinguisher for the various types of fire.

- Keep your work place clean and orderly, and
- Report all electrical accidents.

Warning signs and notices

These construction warnings are specifically designed to be easily visible and easily understood. Generally, they use bright colors like orange and red and contrast then with black and white to make them easily readable. Some of them can also be color coded depending on the type of warning being issued.

Housekeeping plan

Housekeeping plan to be submitted by the contractor

Designated housekeeping team to be deployed as per the requirement of site

Monthly or weekly site activity safety plan

Monthly or weekly site activity safety plan to be submitted with attached risk assessment and other document as per the requirement of the job.

Daily / Monthly safety report

Daily report to be updated on Safety board before submitted to the concern.

Monthly report to be submitted on the last day of the month or as per the requirement of the Client

Weekly safety observation rounds by project heads.

Weekly site safety rounds shall be conducted by project heads, the raised points / safety issues to be closed within 24 hours

Weekly EHS meeting shall be conducted on every Wednesday

Weekly EHS meeting shall be conducted on every Wednesday all the safety team and project team to be present without fail.

Site instruction

Daily site instructions on safety issues shall be closed within 24 hours

Construction Site

Safety Manual



Construction Safety Manual

The following safety policy is provided only as a guide to assist contractors in complying with the Safety requirements as well as to provide other helpful information. It is not intended to supersede the requirements of the any standards/Statute. The contractor should review the safety norms for particular requirements which are applicable to his scope of work/contract.

Construction Safety Manual

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Construction Activities Safety Manual

1. OBJECTIVE

The objective of this manual is to provide practical guidance on a legal, administrative, technical and educational framework for safety in construction activities with a view to

(a) The Safety Policy of Developer is designed to comply with the Safety and Health norms, and to Endeavour to maintain a safe and injury/illness free workplace. Preventing accidents and harmful effects on the health of workers arising from employment/working in construction

(b) Providing means of analyzing from the point of view of safety, and working conditions, construction processes, activities, technologies and operations, and of taking appropriate measures of planning, control and enforcement

(c) These Norms shall be available in the office at all times and will be sent to the jobsite on request.

(d) Providing a framework for continuous improvement and progressively higher standards of work health and safety during construction activities

2. POLICY

It is Developer's policy that accident prevention be a prime concern of all employees/contract labours. This includes the safety and well-being of our employees, Contractors, subcontractors, and customers, as well as the prevention of wasteful, inefficient operations, and damage to property and equipment.

3. APPLICABILITY:

(a) This Policy applies to Construction Activates,

- Civil Engineering and Building, including excavation and the construction, structural alteration, renovation, repair, maintenance (including cleaning and painting) and demolition of all types of buildings or structures
- Civil engineering, including excavation and the construction, structural alteration, repair, maintenance and demolition
- The erection and dismantling of prefabricated buildings and structures, as well as the manufacturing of prefabricated elements on the construction site;

(b) Compliance with the Safety Policy and all items contained therein is mandatory for all employees/workers regardless of position within the company and contract workmen working in the Company or at designated site of the Company.

4. IMPLEMENTATION

Contractor appointed by the Developer, is primarily responsible for identifying all site safety issues and providing and maintaining the proper systems to ensure the safety of workers, visitors and the public and Training of security /safety measures.

This Safety Policy supports six fundamental means of maximum employee involvement:

(a) Management commitment to safety.

(b) Weekly safety meetings at all sites.

(c) Effective job safety training for all categories of employees.

- Work activity based training. It should be appropriate for the work to undertake on a construction site. This includes training in the use of construction equipment and substances and in work practices including safe work method statements and job safety analyses.
- Site specific training should be introduce to the site to inform workers about site rules and safety procedures, making sure they understand them before commencing work,

(d) Audio and/or visual safety presentations given at sites by Engineer**.**

(e) Various incentive awards for exemplary safety performance including for contract workmen.

The contractor will meet Developer/Engineer at least once a month to evaluate all areas of safety.

5. BASIC SAFETY RULES

(a) All employees working at construction site should follow basis personal protective equipment (PPE) and clothing rules.

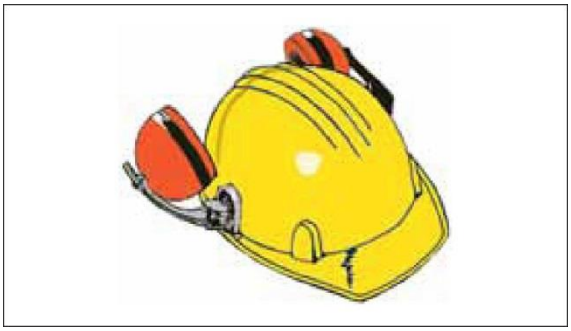
- Contractor is responsible for providing the PPE and Engineer is responsible for enforcing the use of personal protective equipment (PPE) and clothing rules. This includes fall, respiratory, eye, and hearing protection and any other specialized protective equipment required by the Occupational Health and Safety Regulation. Engineer needs to make sure that the appropriate personal protective equipment is identified for various phases of construction and is being used by workers.
- All workers must equip themselves with suitable clothing, shirts, and long pants for protection against both the weather and workplace hazards. Avoid loose fitting or frayed clothing, which may get caught. Remove accessories such as rings, dangling neckwear, loose-fitting bracelets, and

watch bands. Shirts must have at least a tee sleeve. No shorts are to be worn on projects. Burners and welders will not be permitted to wear polyester or nylon clothing.

- Footwear must protect the ankle, sole, and toes. Safety footwear meets these requirements. It is the worker's responsibility to keep personal safety footwear in good repair. Keep laces tied up at all times to avoid snagging or tripping.



- When entering a construction site, workers must wear approved helmets. Construction workers are often exposed to on-the-job noise that can permanently damage hearing. Ear plugs/ear-muffs must be worn in designated areas and wherever high noise levels are present to monitor the effectiveness of hearing protection, construction workers must have their hearing tested every year. Alterations or modifications of the Helmet or liner are prohibited.



- Safety glasses or goggles are compulsory in designated eye protection areas and when using power or machine tools and pressure equipment. Face shields should be worn when handling acids and chemicals Suitable welding goggles must be worn for gas welding and cutting. Welding

helmets are to be worn for electric arc welding. Use welding screens to protect the eyes of other persons from welding flashes



(b) Firearms, alcoholic beverages or illegal drugs are not allowed on company property or in company vehicles at any time. When drugs are prescribed by a physician, the Engineer must be informed. The use or possession of illegal drugs or alcoholic beverages on the jobsite will result in immediate termination

(c) Excavation work

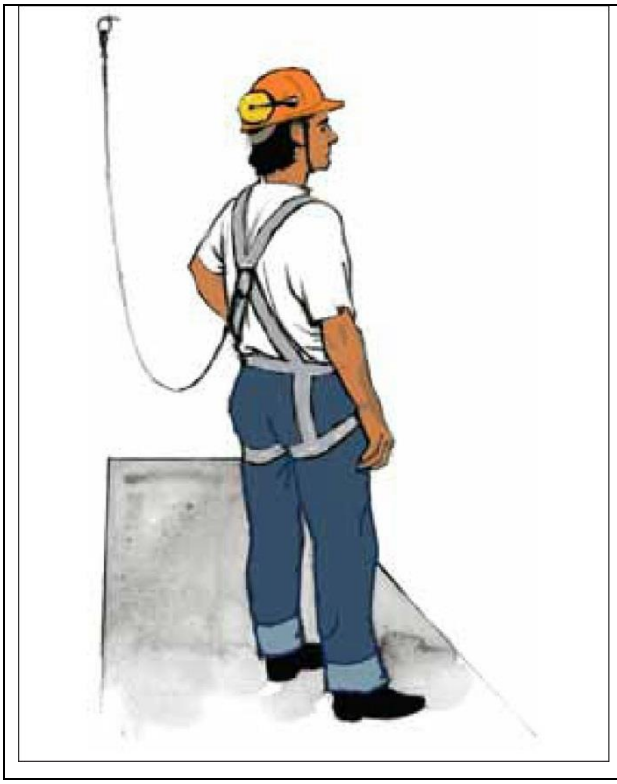
An “excavation” means any cut, cavity, trench, or depression in the earth’s surface resulting from rock or soil removal. It is generally applied to a cavity of any length over 1.2 m (4 ft.) deep and over 3.7 m (12 ft.) wide at the bottom.

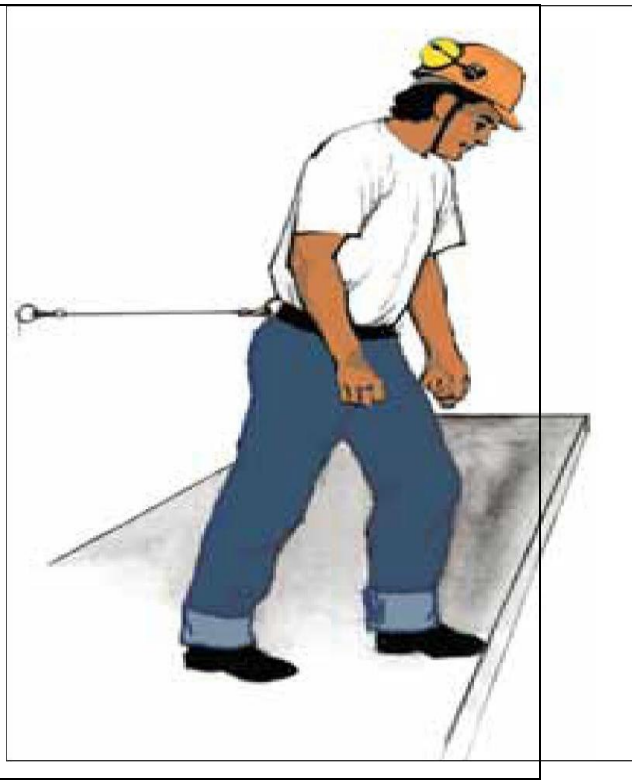
- The stability of the ground should be verified by a competent person.
- Before beginning to excavate, locate and identify all utility services, such as electrical, gas, steam, water, and sewer in the area.
- Pointed tools cannot be used to probe for underground gas and electrical services
- Excavated material must be kept back at least 600 mm (2 ft.) from the edge of any trench excavation and 1.2 m (4 ft.) from any other excavation
- A ladder must be provided when workers are required to enter excavations over 1.2 m (4 ft.) in depth. The ladder must extend from the bottom of the excavation to at least 1 m (3 ft.) above ground level and be placed so that it is protected by the shoring.
- A contractor’s Engineer should check that the excavation will not affect adjoining buildings, structures or roadways;
- All floor openings or excavations shall be barricaded on all sides to ensure employees are aware of the hazards. Floor holes shall be covered, with the covers secured and clearly marked.

(d) Fall Protection Requirements

Falls from ladders, roofs, floor, and scaffolding are a common cause of injury in the residential home building industry. Pre-planning for fall protection is required by all contractors and sub-contractors.

- Fall protection systems must be used when there is the possibility of a fall from 3 m (10 ft.) or more. Fall protection system means (a) a fall restraint system- a system to prevent a worker from falling from a work position, or travelling to an unguarded edge from which the worker could fall (b) a fall arrest system- a system that will stop a worker's fall before the worker hits the surface below.





- Scaffolding must be built and erected according to acceptable standards
- Guardrails will be placed in the following areas and Sign boards should installed if there is a possibility of any tools or materials falling
  - ✓ On all open sided floors.
  - ✓ Around all open excavations or pits.
  - ✓ On leading edges of roofs or mezzanines.
- Walls can be framed with a guardrail system prior to being raised, to prevent workers from walking on top plates
- Work to be done at 7.6 m (25 ft.) or more above grade will require a site-specific written fall protection plan and training of the workers at risk.
- All scaffolds must be inspected before use by those who will use them, regardless of who erected them. No damaged or weakened scaffold may be used until it has been effectively repaired.

- Full body harnesses and lanyards shall be worn and secured any time there is a fall hazard of more than six (6) feet.
- Lifelines shall be erected to provide fall protection where work is required in areas where permanent protection is not in place. Horizontal lifelines shall be a minimum of 2-inch diameter wire rope. Vertical lifelines shall be 3/4 inch manila rope or equivalent and shall be used in conjunction with an approved rope grab.
- Structural steel erectors are required to "hook up" with full body harness and lanyard.
- Employees/workers including contract workmen using lanyards to access the work or position themselves on a wall or column, etc., must use an additional safety lanyard for fall protection.
- Man lifts must be used properly. As soon as Employees/workers including contract workmen enter an articulating boom lift and before the lift is started, the employee must put on the harness and attach the lanyard to the lift. Employees are not required to wear harnesses on scissor lifts.

(e) Electric Safety

- Scaffolding work above 33,000 volts, the electricity supply authority should be consulted, and all special conditions imposed by them should be complied.
- The cables of portable electrical lighting equipment should be of adequate size and characteristics for the power requirements and of adequate mechanical strength to withstand severe conditions in construction operations
- When earth-moving or materials-handling equipment is required to operate in dangerous proximity to live electrical conductors, adequate precautions should be taken, such as isolating the electrical supply or erecting overhead barriers of a safe height
- The connection or disconnection of the electric cable supplying power from the transmission line to or from the electric shovel should only be done by competent persons duly authorized.
- Electrical connectors and relays on the shovel should be inspected daily if in operation.
- Only insulated or non-conducting tools should be used on or near live electrical installations if there is any risk of electrical shock.
- Portable electrical tools should generally be used on reduced voltage to avoid as far as possible the risk of a lethal shock.
- All electrical tools should be earthed, unless they are "all insulated" or "double insulated" tools which do not require an earth. Earthing should be

incorporated in metallic cases and as a safeguard against damaged cables where wires enter the tool.

- All electrical tools should receive inspection and maintenance on a regular basis by a competent electrician, and complete records kept
- all electrical equipment including hand lamps should be flameproof
- Electrical motors, switches, connections and all instrumentation should be dust and moisture proof.
- All extension cords, drop cords, and electrical tools shall be checked, properly grounded with ground fault interrupters (GFI's), and colour-coded by a designated competent person each month. This shall be part of the assured grounding program. Cords and equipment that do not meet requirements shall be immediately tagged and removed from service until repairs have been made.

(f) Fire Prevention and Fire Fighting

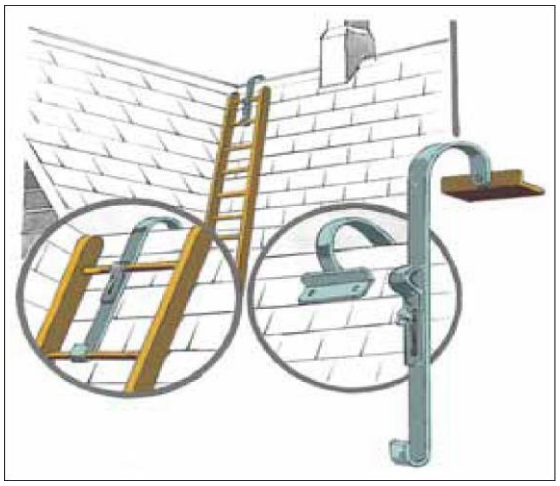
- All appropriate measures should be taken by the Developer to:
  - ✓ Avoid the risk of fire
  - ✓ Control quickly and efficiently any outbreak of fire
  - ✓ bring about a quick and safe evacuation of persons
- Secure storage areas should be provided for flammable liquids, solids and gases such as liquefied petroleum gas cylinders, paints and other such materials in order to deter trespassers.
- Smoking should be prohibited and "No Smoking" notices be prominently displayed in all places
- Regular inspections should be made of places where there are fire risks. These include the vicinity of heating appliances, electrical installations and conductors, stores of flammable and combustible materials, hot welding and cutting operations. Fire extinguishing equipment shall be no further than 50 feet away from all hot work.
- Fire-extinguishing equipment should be properly maintained and inspected at suitable intervals by a competent person. Suitable and sufficient fire-extinguishing equipment should be place at site.
- Fire extinguishers should always be available next to welding or cutting kits. These should preferably be attached to each welding and oxyacetylene kit
- An adequate water supply at ample pressure should be easily available to all area of site.
- All supervisors and a sufficient number of workers should be trained in the use of fire-extinguishing equipment, so that adequate trained personnel

are readily available during all working periods

- Where appropriate, suitable visual signs should be provided to indicate clearly the direction of escape in case of fire. Escape routes should be frequently inspected particularly in high structures. Fire signs advise the location of fire alarms and firefighting facilities. They comprise a red rectangular sign with a white board and white wording and/or a white symbol
- Notices should be posted at conspicuous places indicating:
  - ✓ The nearest fire alarms
  - ✓ Place at people can gather in case of fire/emergency
  - ✓ The telephone number and address of the nearest emergency services.

(g) Ladders

- Ladders should be inspected before use.
- Damaged ladders shall be removed from service. Ladders with loose, broken, or missing rungs, split or bent side rails or other defects, must be removed from service.
- Metal ladders with steel reinforcements must not be used around electrical work.
- A step ladder shall never be used as an extension ladder. Ladders must be tied, blocked, or otherwise secured to prevent them from slipping.
- Ladders should never be used as scaffolding planks. Stepladders must not be used for trestle scaffolds
- Ladders should not be placed in doorways, passageways, or other areas where they might interfere with other work activities.
- Tools and materials must not be carried when climbing ladders.
- Ladders, used for roof work, must be securely fastened over the ridge of the roof or must be otherwise effectively anchored



(h) Scaffold Tag System,

- ✓ Green tags are to be placed on 100% complete scaffolds with all braces, locks and hand, mid, and toe rails in place before use.
- ✓ Yellow tags indicate incomplete scaffolds. If scaffold is missing a hand, mid, or toe board, it must have a yellow tag and employees on it must be tied off at all times.
- ✓ Red tags indicate scaffolds that are in the process of either being erected or disassembled. These scaffolds are not to be used at any time.
- ✓ Scaffold tags should be placed in a highly visible location on the scaffolds for all employees to see.

(i) Contractor/Sub Contractors

- ✓ All Contractors/Sub Contractors should submit required licenses/Govt approval to work as contractor and no of contract labour he has employed (Labour License)
- ✓ Valid age proof and ID proof of contract employee working at site.
- ✓ Contractors Supervisor is responsible for use of safety equipment (Helmet, Gloves etc) to all his contract labour.

(j) Housekeeping shall be an integral part of every job. Supervisors\foremen\leadmen and employees are responsible for keeping their work areas clean and hazard-free. Clean-up is required when a job is finished at the end of the day.

(k) Burning and cutting equipment shall be checked daily before being used. Flash back arresters shall be installed at the regulators on both oxygen and LP bottles. All gas shall be shut off and hoses disconnected from bottles and manifolds at the end of the work day. Caps shall be replaced on bottles when gauges are removed. Makeshift field repairs will not be allowed.

(l) All tools whether company or personal, must be in good working condition. Defective tools will not be used. Examples of defective tools include chisels with mushroomed heads, hammers with loose or split handles, guards missing on saws or grinders, etc.

(m) The jobsite speed limit is 10 MPH. No employee is permitted to truck standing up or sitting on the outside edges of a truck. Employees must be sitting down inside the truck or truck bed when the vehicle is in motion. Riding as a passenger on equipment is prohibited unless the equipment has the safe capacity for transporting personnel.

(n) Safety meeting should be held once in month. All personnel will be required to attend safety meetings as stipulated by project requirements in order to meet Developer's policy/guidelines set time to time basis.

(o) Glass containers or bottles of any kind are not permitted on jobsites or in company vehicles.

(p) Drinking water containers are to be used for drinking water and ice only. Tampering with or placing items such as drinks in the water cooler will result in immediate termination. The "common drinking cup" is not allowed. Only disposable cups will be used.

(q) Individual should be identified for immediate First Aid Treatment.

(r) Availability of Ambulance services at Site on 24X7 bases.

(s) Any vehicle coming inside site should be attached with smoke arrester and driver with safety measures.

6. REPORTING OF INJURIES

All employees will be held accountable for filling out a "Notice of Injury Form" immediately after an injury occurs, even if medical treatment is not required. (Notice must be made at or near the time of the injury and on the same day of the injury.) Employees/contract workmen must report the injury to their supervisor/leadman/foreman/superintendent/Engineer, etc. A casual mentioning of the injury will not be sufficient. Employees/contract workmen must let their supervisor know:

- How they think they hurt themselves.
- What they were doing at the time.
- Who they were working with at the time.
- When and where it happened.
- Other pertinent information that will aid in the investigation of the incident.

Failure to report an injury immediately (meaning at or near the time of the injury and on the same day of the injury) is a violation of the Safety Policy, and may result in immediate termination, in accordance with Developer's company policy.

7. NOTIFICATIONS

(a) In Case of Serious Injury or Death After the injured has been taken to the hospital, the Contractor's lead man/foreman/supervisor shall notify the main office and Engineer as soon as possible. Statements from witnesses shall be taken. Statements are to be signed by witnesses and should include the time and date. Photographs of the area where the incident occurred and any other relevant items are to be taken. Engineer will assist in the investigation. The completed accident report form will be sent to the main office.

(b) In Case of Inspection by Govt official, the Contractor's lead man/foreman/supervisor must notify Engineer that a person is on the jobsite. It is the responsibility of Contractor to make the inspector's visit on the jobsite as pleasant and timely as possible.

(c) All injuries, regardless of how minor, must be reported to your supervisor and the Safety Office immediately. An employee who fails to fill out a "Notice of Injury Form" and send it to the Safety Office can be issued a safety violation notice and may be subject to termination, in accordance with Developer's company policy. In the event of an accident involving personal injury or damage to property, all persons involved in any way will be required to submit to drug testing.

(d) In case of Accident, Site In charge will inform to HR/IR Department of the company, HR/IR department will liaison with government authorities and complete required formality.

8. ENFORCEMENT OF SAFETY POLICY

Safety violation notice(s) shall be issued to any employee, Contractor, subcontractor, or anyone on the jobsite violating the safety rules or regulations by Engineer.

- Any violation of safety rules can result in suspension or immediate termination.
- Any employee receiving three (3) written general violations within a six (6) month period shall be terminated.
- Issuance of a safety violation notice for failure to use fall protection or for failure to report a job injury (at the time of the injury) may result in immediate termination, in accordance with Developer's company policy.

It is understood that Developer / Engineer are not restricting themselves to the above rules and regulations. Additional rules and regulations as dictated by the job will be issued and posted as needed.

Emergency Contact No

Name	Mobile No	Other Contact Details

ATTACHMENT A
SAFETY EQUIPTMENT CHECKLIST

The following is a list of Safety Equipment that should be on the job, if required, or available from the **Engineer** at all times. Equipment should be checked at intervals in accordance with the Safety Standards to ensure that all required equipment is present and in good condition.

_____Safety goggles, shields, and glasses.
_____ Hearing protection.
_____ Respirators.
_____ Helmet.
_____ Fire extinguishers (properly charged).
_____ First aid kit (check list inside kit).
_____ Stretcher or stroke litter (tool room).
_____ Welding masks and goggles.
_____ Storage racks for compressed gases.
_____ Guards on all power tools.
_____ Trash barrels.
_____ Company "Safety Policy" packet posted.
_____ Emergency vehicle (vehicle designated to carry injured to hospital).

ATTACHMENT B
SAFETY MEETING REPORT

A safety meeting report is signed to indicate attendance. The form has room for employees to sign after attending their weekly safety meeting. This form shall be filled out for each jobsite safety meeting that is held. After completion of the form, make a copy to maintain at each jobsite and return the signed original copy to the main office.

Safety Meeting Date:_____

Topic:_____ Safety Meeting Conducted By:_____

Employee/worker name	Sign	Job title

ATTACHMENT C
EMPLOYEE/WORKERS ACKNOWLEDGEMENT

I state that I have attended the safety orientation, and have read and received a copy of the **Company Name** safety rules and regulations.

I further state that I understand these rules and acknowledge that compliance with the safety rules and regulations is a condition of employment. If I violate the safety rules or fail to report an injury to my supervisor immediately, I understand that I am subject to termination, in accordance with Developer's company policy.

CONTRACTOR / EMPLOYEE SIGNATURE

_____

DATE _____

Engineer SIGNATURE _____

DATE_____

Construction Safety SOP Checklist

Category	Sub-Category	Checklist	Complied (Yes / No)
Implementation		Appointing of primary Responsible for implementing Safety SOP	
		Appointment of responsible person for day to day implementation and review of Safety SOP	
Basic Safety Rules	Personal Protective Equipment	Is responsible Person is providing and enforcing the use of personal protective equipment	
		Is all workers equip themselves with suitable clothing, Full leanth shirts and long pants for protection against weather and workplace hazards	
		Burners and welders will not be permitted to wear polyester or nylon clothing.	
		Is safety shoes provided and Safety foot wares must protect the ankle, sole, and toes.	
		Is safety helmet wear by construction worker at site	
		Ear plugs/ear-muffs worn in designated areas and wherever high noise levels	
		Is Safety glasses or goggles use for designated eye protection areas and using at power or machine tools and pressure equipment.	
		Is suitable welding goggles worn during gas welding and cutting work	
		Is Welding helmets worn for electric arc welding work	
		Is welding screens use to protect the eyes of other persons from welding flashes	
	Excavation	IS stability of the ground should be verified by a competent person before start of Excavation work	
		Excavated material kept back at least 600 mm (2 ft.) from the edge of any trench excavation and 1.2 m (4 ft.) from any other excavation	
		A ladder provided when workers are required to enter excavations over 1.2 m (4 ft.) in depth. The ladder must extend from the bottom of the excavation to at least 1 m (3 ft.) above ground level	

		and be placed so that it is protected by the shoring.	
		All floor openings or excavations shall be barricaded on all sides to ensure employees are aware of the hazards. Floor holes shall be covered with the covers and clearly marked.	
	Fall Protection Requirement	Using of fall protection systems when there is the possibility of a fall from 3 m (10 ft.) or more	
		Is Scaffolding built and erected according to acceptable standards norms	
		Guardrails will be place on all open sided floors, Around all open excavations or pits and on leading edges of roofs or mezzaninesin and Sign boards should installed if there is a possibility of any tools or materials falling	
		Walls can be framed with a guardrail system prior to being raised, to prevent workers from walking on top plates	
		Work at 7.6 m (25 ft.) or more above grade will require a site-specific written fall protection plan and training of the workers.	
		All scaffolds must be inspected before use by those who will use them, regardless of who erected them. No damaged or weakened scaffold may be used	
		Full body harnesses and lanyards shall be worn and secured any time there is a fall hazard of more than six (6) feet	
		Lifelines shall be erected to provide fall protection where work is required in areas where permanent protection is not in place.	
		Structural steel erectors are required to "hook up" with full body harness and lanyard.	
		Employees/workers including contract workmen using lanyards to access the work or position themselves on a wall or column, etc., must use an additional safety lanyard for fall protection.	

		Man lifts must be used properly. As soon as Employees/workers including contract workmen enter an articulating boom lift and before the lift is started, the employee must put on the harness and attach the lanyard to the lift.	
	Electric Safety	Scaffolding work above 33,000 volts, the electricity supply authority should be consulted and all special conditions imposed by them should be complied.	
		Earth-moving or materials-handling equipment is required to operate in dangerous proximity to live electrical conductors, adequate precautions should be taken, such as isolating the electrical supply or erecting overhead barriers of a safe height	
		The connection or disconnection of the electric cable supplying power from the transmission line to or from the electric penal should only be done by competent persons.	
		Only insulated or non-conducting tools should be used on or near live electrical installations.	
		All electrical tools should be earthed, Earthling should be incorporated in metallic cases	
		All electrical tools should receive inspection and maintenance on a regular basis by a competent electrician, and complete records should kept tools maintenance	
		Electrical motors, switches, connections and all instrumentation should be dust and moisture proof.	
		All extension cords, drop cords, and electrical tools shall be checked, properly grounded with ground fault interrupters (GFI's), and color-coded by a designated competent person on each month.	
	Fire Prevention & Fire Fighting	Secure storage areas should be provided for flammable liquids, solids and gases such as liquefied petroleum gas cylinders, paints and other such materials	

		Smoking should be prohibited and "No Smoking" notices be prominently displayed in all places	
		Fire extinguishing equipment shall be no far than 50 feet away from all hot work.	
		Fire-extinguishing equipment should be properly maintained and inspected at suitable intervals by a competent person. Proper Records should me maintain for maintenance	
		Suitable and sufficient fire-extinguishing equipment should be place at site.	
		Fire extinguishers should always be available next to welding or cutting kits. These should preferably be attached to each welding and oxyacetylene kit	
		An adequate water supply at ample pressure should be easily available to all area of site.	
		All supervisors and a sufficient number of workers should be trained in the use of fire-extinguishing equipment,	
		Where appropriate, suitable visual signs should be provided to indicate clearly the direction of escape in case of fire	
		Escape routes should be frequently inspected particularly in high structures.	
		Notices should be posted at conspicuous places indicating, The nearest fire alarm, Place at people can gather in case of fire/emergency , The telephone number and address of the nearest emergency services.	
	Ladders	Ladders should be inspected periodically before use. Ladders with loose, broken, or missing rungs, split or bent side rails or other defects, must be removed from service.	
		Metal ladders with steel reinforcements must not be used around electrical work.	
		A step ladder shall never be used as an extension ladder.	

		Ladders must be tied, blocked, or otherwise secured to prevent them from slipping.	
		Ladders should never be used as scaffolding planks.	
		Ladders should not be placed in doorways, passageways, or other areas where they might interfere with other work activities.	
		Ladders, used for roof work, must be securely fastened over the ridge of the roof or must be otherwise effectively anchored	
	Scaffold Tag System	Green tags are to be placed on 100% complete scaffolds with all braces, locks and hand, mid, and toe rails in place before use.	
		Yellow tags indicate incomplete scaffolds. If scaffold is missing a hand, mid, or toe board, it must have a yellow tag and employees on it must be tied off at all times.	
		Red tags indicate scaffolds that are in the process of either being erected or disassembled. These scaffolds are not to be used at any time.	
	Contractor/Sub-Contractor	All Contractors/Sub Contractors should submit required licenses/Govt approval to work as contractor and no of contract labour he has employed (Labour License)	
		Valid age proof and ID proof of contract employee working at site.	
		Contractors Supervisor is responsible for use of safety equipment (Helmet, Gloves etc.) to all his contract labour.	
	Other	Housekeeping shall be an integral part of every job. Supervisors\foremen\leadmen and employees are responsible for keeping their work areas clean and hazard-free. Clean up is required when a job is finished at the end of the day.	
		Burning and cutting equipment shall be checked daily before being used.	
		Firearms, alcoholic beverages or illegal drugs are not allowed at site	

		All gas shall be shut off and hoses disconnected from bottles and manifolds at the end of the work day.	
		All tools whether company or personal, must be in good working condition. Defective tools will not be used.	
		The jobsite vehicle speed limit is max 10 KPH.	
		No employee is permitted to standing up or sitting on the outside edges of a truck.	
		Drinking water containers are to be used for drinking water. Only disposable cups will be used.	
		Individual should be identified for immediate First Aid Treatment, Details to be published at various place	
		Availability of Ambulance services at Site on 24X7 bases	
		Any vehicle coming inside site should be attached with smoke arrester and driver with safety measures.	
Reporting of Injuries		All injuries, regardless of how minor, must be reported to your supervisor and the Safety Office immediately	
		All employees will be held accountable for filling out a “Notice of Injury Form" immediately after an injury occurs, even if medical treatment is not required. Records to be maintained for all injury by responsible person	
		In Case of Serious Injury or Death After the injured has been taken to the hospital, the lead man/foreman/supervisor shall notify the main office and Responsible Person(s) as soon as possible. Statements are to be signed by witnesses and should include the time and date. Photographs of the area where the incident occurred and any other relevant items are to be taken. The completed accident report form will be sent to the main office.	
		All injuries, regardless of how minor, must be	

	reported to your supervisor and the Safety Office immediately	
	Responsible person should report to the management atelaset once in month about safety recommendation and total accident status during period	
	In case of Accident, Site In charge will inform to HR/IR Department of the company,	
	HR/IR department will liaison with government authorities and complete required formality.	

ANNEXURE- 1

Timeline for Scope of Works Completion

Sr No	Description	Timeline
PHASE-1		
1	Vendor Finalization / Issue of LOI	0th Day
2	Mobilization	7th Day from Issue of LOI
3	Supply of Dock Leveller	45th Day from Issue of LOI
4	Installation of Dock Leveller	60th Day from Issue of LOI
PHASE-2		
1	Vendor Finalization / Issue of LOI	0th Day
2	Mobilization	7th Day from Issue of LOI
3	Supply of Dock Leveller	30th Day from Issue of LOI
4	Installation of Dock Leveller	45th Day from Issue of LOI

ANNEXURE-2

ARTICLES OF AGREEMENT

This Agreement made on ….. Day of …….. 2019

Between

M/s. SAME DEUTZ- FAHR INDIA (SDF), a company incorporated under the Companies Act 1956 having their registered office at No. 72M, SIPCOT Industrial Complex, Ranipet-632403, Tamil Nadu, hereinafter called the `**Owner**' (which expression shall unless repugnant, to the subject or context mean and include its successors and assigns) of the **ONE PART**;

AND

M/s. ……..., a company incorporated under the Companies Act 1956 having their registered office at …… …… hereinafter called the `Contractor' (which expression shall unless repugnant to the subject or context mean and include its successors and assigns) of the **OTHER PART**;

Whereas the Owner has engaged the Contractor for undertaking Site Grading & General Excavation works of its Proposed Residential Apartments Project at No. 72M, SIPCOT industrial Complex, Ranipet, Tamil Nadu- 623 403, hereinafter called the Work for a Contract Value of Rs. ……/- (Rupees ……Only)

including all Taxes and Excluding GST.

Now this Agreement witnessed as follows:

1. Words and expressions in this Agreement shall have the same meanings as are respectively assigned to them in the Conditions of Contract hereinafter referred to.

2. The Following documents shall be deemed to form and be read and constructed as part of this Agreement and they shall have the following order of preference:
    a. The Agreement
    b. Tender Drawings
    c. BOQ-Unit rate specifications.
    d. Technical specification.
    e. Payment Conditions.
    f. General Conditions of Contract.
    g. Any other document forming part of the contract.

3. In consideration of the payments to be made by the Owner to the Contractor as hereinafter mentioned, the Contractor hereby covenants with the Owner to execute and

complete the Works and remedy any defects therein in conformity with the provisions of the Contract.

4. The Owner hereby covenants to pay the Contractor in consideration of the execution and completion of the Works and the remedying of defects therein the Contract Price or such other sum as may become payable under the provisions of the Contract at the times and in the manner prescribed by the Contract.

In Witness whereof the parties hereto have caused this Agreement to be executed the day and year first before written in accordance with their respective laws.

M/s……,	M/s. ……...
Signature.....	Signature.....
Name:	Name:
Designation: Managing Director	Designation: Managing Director

ANNEXURE-3

FORM OF BANK GUARANTEE FOR MOBILISATION ADVANCE PAYMENT

(ON NON JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

THIS BANK GUARANTEE made on this day of 2019 between (**Bank's Name & full address**) , hereinafter referred to as the Guarantors, in favour of **M/s. SAME DEUTZ- FAHR INDIA (SDF),** a company incorporated under the Companies Act 1956 having their registered office at No. 72M, SIPCOT Industrial Complex, Ranipet-632403, Tamil Nadu, (Hereinafter referred to as Owner).

WHEREAS, ……..(Name of the Contractor)…….. (Hereinafter called the Contractor), has agreed vide Contract dt._____ with the Owner to carry out Site Grading & General Excavation works of the Owner's Proposed Residential Apartments Project at No. 72M, SIPCOT Industrial Complex, Ranipet-632403, Tamil Nadu, and has agreed to complete the above mentioned work in accordance with the agreed time lines..

WHEREAS the Owner has agreed to release Rs._____ /-(Rupees _____Only) as Mobilisation Advance to the Contractor on its furnishing a bank guarantee for an equal sum.

WHEREAS, the Contractor has requested the Guarantor and the Guarantor has agreed to Guarantee the repayment of Mobilisation Advance by the Contractor to the Owner.

NOW THIS GUARANTEE WITNESSETH AS FOLLOWS:

1. In consideration of the Owner having agreed to Contractor's request for the release of Rs…… (Rupees ……..), as Mobilisation advance against Contract dt. _____ (& Amount on furnishing Bank Guarantee for Rs…… (Rupees ……..), we, the Guarantors, do hereby unconditionally and irrevocably agree and undertake to pay to M/s. SAME DEUTZ-FAHR INDIA (SDF), on demand and without demur, dispute or reference to the Contractor, an amount not exceeding Rs…… (Rupees ……).

2. Any such demand on the Bank shall be conclusive as regards the amount due and payable by the Bank under this Guarantee. However, our liability under this Guarantee shall be restricted to any amount not exceeding Rs……. (Rupees ……. ……).

3. We further agree that the Owner shall be the sole judge of and as to whether the said Contractor has committed any breach of any of the terms and conditions of the Contract and as to the extent of the loss or damage caused to or suffered by the Owner on account thereof. We further agree that the guarantee herein contained shall remain in

force and effect during the period that would be taken for the performance of the said Work Order between the Owner and the Contractor, and it shall continue to be enforceable till all the dues of the Owner under or by virtue of the said Contract have been fully paid and its claim satisfied or discharged or till ……., Vellore, certify that terms and conditions of the said Contract have been fully and properly carried out by the said Contractor and accordingly discharge the guarantee provided, however, that unless a demand or claim under the guarantee is made on us in writing or before (Date), we shall be discharged from all liabilities under this Guarantee thereafter.

4. We further agree that the Owner shall have the fullest liberty with or without our consent and without effecting in any manner our obligation hereunder, to vary any of the terms and conditions of the said Contract or extend time of performance by the said Contractor from time to time, postpone for any time or from time to time any of the powers exercisable by the Owner against the said Contractor and to for or enforce any of the terms and conditions relating to the said Contract and we shall not be relieved from our liability by reasons of any such variation/waiver, or extension being granted to the said Contractor or for any forbearance, act or omission on the part of the Owner , or any indulgence shown by it to the said Contractor or by any such matter or thing whatsoever, which under the law relating to guarantee would but for this provision have the effect of so relieving us from such liability.

5. We lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Owner, served on us in writing by the Owner.

6. In order to give effect to this Guarantee the Owner will be entitled to act as if the Bank were the principal debtor and the Bank hereby waives all and any of its rights of surety ship.

7. IN THE EVENT OF force majeure, according to the Contract the validity of the present guarantee shall be extended for period to be mutually agreed upon by the Owner and the Contractor.

The Bank hereby declares that it has the power to issue this Guarantee and the undersigned has full power to do so. Notwithstanding anything-contained hereinabove our liability under this guarantee is restricted to ` ……. (`……..).

This guarantee is valid up to …….. Any claim arising out of the guarantee must be lodged with the bank at its office at …….. on or

before …… , after which the liability of the bank would be extinguished.

In witness thereof the Bank has executed these present the day and year first above written.

Signed and delivered for and on behalf of the above named.

Note:

1. The term Owner / Sub-Contractor / Contract may be suitably changed whenever considered necessary.
2. The blanks shall be filled in on the basis of Contract before issuing the proforma to Sub-Contractor.

IMPORTANT NOTE

Following points shall be taken care of while submitting the Bank Guarantee:-

1. The Bank Guarantee shall be on non-judicial stamp paper having a value of Rs.300/- or as per requirement.
2. The stamp paper should be purchased in the name of the Bank, who give the guarantee and not in the name of the supplier / sub-Contractor.
3. The bank Guarantee shall be strictly as per the pro-forma.
4. The Bank Guarantee should be from any of the Nationalized Banks or its subsidiaries only.
5. Correction made on the Guarantee should be endorsed by the Bank with it official seal.

ANNEXURE-4

FORM OF BANK GUARANTEE FOR PERFORMANCE GUARANTEE

(ON NON JUDICIAL STAMP PAPER OF APPROPRIATE VALUE)

1. In consideration of ……..., hereinafter called Owner, which expression unless repugnant to the context or meaning thereof include its successors, and assigns), having agreed to exempt …… . hereinafter called the Contractor, (which expression unless repugnant to the context or meaning thereof include its successors and assigns), from demand under the terms and conditions of Work Order No. ……. dated _____("**Contract**")made between the Owner and Contractor for the due fulfilment and performance by the said Contractor of the terms of conditions contained in the said Contract on production of Bank Guarantee of Rs…… (Rupees……Only), We, (insert the name and address of the Bank), hereinafter referred to as 'the Bank' (which expression unless repugnant to the context or meaning thereof include its successors and assigns) at the request of Contractor do hereby guarantee the due and proper fulfilment and performance by the Contractor of the terms and conditions contained in the said Contract and undertake to pay to the Owner an amount not exceeding Rs……(Rupees ……..only) on demand and interest thereon at …… percent per annum from the date of demand till payment for non-fulfilment and/or non-performance of any of the terms and conditions of the said Contract by the Contractor and/or on account of any loss or damage caused to or suffered by or that would be caused to or suffered by the Owner, by reason of any breach by the said Contractor of any of the terms and conditions contained in the said Contract. The decision of the Owner as to any breach and/or non-fulfilment or non-performance committed by the Contractor and the loss suffered by the Owner shall be binding on the Bank.)

2. We do hereby unconditionally and irrevocably undertake to pay to the Owner an amount to the extent of Rs …… (Rupees ……..) only and interest thereon at ……percentage per annum from the date of demand till payment without any demur, reserve, contest or protest or without any reference to the Contractor, merely on a demand from the Owner stating that Contractor has committed breach of the terms/s of the said Contract and/or the amount claimed is due by way of loss or damage caused to or suffered or would be caused to or suffered by the Owner by reason of breach by the said Contractor of any of the terms and conditions contained in the said Contract or by

reason of Contractor's failure to perform the said Contract. Any such demand made on the Bank shall be conclusive and binding notwithstanding any difference between the Owner and the Contractor as regards the amount due and payable by the Bank under this Guarantee. However, our liability under this Guarantee shall be restricted to an amount not exceeding Rs. …… (Rupees…… ……only) and interest thereon as mentioned above from the date of demand till payment.

3. Our liability under these presents is absolute and unequivocal and we undertake to pay to the Owner the amount so demanded notwithstanding the Contractor raising any dispute and/or disputes or filing any suit or proceeding before any Court or tribunal or other Authority. The payment so made by us under this Guarantee shall be valid, discharge of our liability for payment there under and the Contractor shall have no claim against us for making such payment.

4. We, further agree that the Guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract and that it shall continue to be enforceable till all the dues of the Owner under or by virtue of the said Contract have been fully paid and its claims satisfied or discharged or till the Owner certifies that the terms and conditions of the said Contract have been fully and properly carried out by the said Contractor and accordingly discharges this Guarantee.

5. This Guarantee shall not be revocable by us except with the written consent of the Owner and shall continue to be enforceable till……. should it be necessary to extend this Guarantee beyond the said date, we undertake to extend the validity of this Guarantee for such further period as may be required by the Owner, and such extension shall be given one month before the expiry of this Guarantee failing which the amount covered under this Guarantee shall become forthwith payable, notwithstanding that the Contract is continuing and/or the Owner has or has not terminated the Contract or preferred any claim against the Contractor.

6. We, further agree with the Owner that the Owner shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the Contract or to extend time or performance by the said Contractor from time to time or to postpone for any time or from time to time exercise of any of the powers exercisable by the Owner against the said Contractor and forbear or enforce any of the terms and conditions relating to the Contract and we shall not be

relieved from our liability by reason of any such variation, or extension being granted to the said Supplier(s) or for any forbearance, act or omission on the part of the Owner or any indulgence shown by the Owner to the said Contractor or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.

7. This Guarantee shall not in any way be affected due to change in our constitution or by your taking or varying or giving up any securities from the Contractor or any other person, firm or Owner on its behalf or by the change in the constitution, winding up, dissolution, insolvency or death as the case may be of the Contractor.

8. In order to give full effect to the Guarantee herein contained you shall be entitled to act as if we are your principal debtors in respect of all your claims against the Contractor hereby Guaranteed by us as aforesaid and we hereby expressly waive all our right of surety ship and other rights if any which are in any way inconsistent with the above or any other provisions of this Guarantee.

9. We, also undertake not to revoke this Guarantee during its currency except with the previous consent of the Owner in writing.

Dated this the day of 2019

For (Indicate the name of Bank)

Annexure 5

FORM OF BANK GUARANTEE FOR RELEASE OF RETENTION MONEY

(On Non-judicial stamp paper of appropriate value)

Reference: ***Bank Guarantee No.:*** ***Date:***

1. In consideration of M/s. SAME DEUTZ- FAHR INDIA (SDF)hereinafter referred to as "Owner") having agreed to exempt M/s Contractor name (hereinafter referred to as the Contractor) from deduction of __% of the Contract Value as Retention Money from the Running Account Bills under the terms and conditions of PO/ Contract No. _____ dated _____ made between M/s M/s. SAME DEUTZ- FAHR INDIA (SDF) and M/s. Contractor Name for Excavation and Rock cutting works (hereinafter referred to as the Contract) on production of Bank Guarantee for INR _____ for the due fulfillment by the Contractor of the terms and conditions contained in the said contract and to ensure rectification of defects identified in the Defects Liability Period by the Contractor, We, (Name of Bank) (hereinafter referred to as the "Bank") hereby guarantee the payment to the Employer an amount not exceeding INR _____ (INR _____ only) against any loss or damage caused to or suffered, would be caused to or suffered by the Employer by reason of any breach by the said Contractor of any of the terms and conditions contained in the said Contract.

2. We, Name of the Bank, do hereby unconditionally and irrevocably undertake to pay to the Employer to the extent of INR _____ (INR _____ only) without any demur merely on a demand from the Employer stating that the amount claimed is due by way of loss or damage caused to or suffered or would be caused to or suffered by the Employer by reason of breach by the Contractor of any of the terms and conditions contained in the said Contract. Any such demand made on the bank shall be conclusive as regards to the amount due payable by the bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding INR _____ (INR _____ only)

3. Our liability under this present guarantee is absolute and unequivocal and we undertake to pay to the Employer the amount so demanded without seeking the consent of the Contractor and not withstanding the Contractor raising any dispute and / or disputes or filing any suit or proceeding before any court or tribunal authority. The payment so made by us under this guarantee shall be a valid discharge of our liability for payment hereunder and the Contractor shall have no claim against us for making such payment.

Notwithstanding anything to the contrary, Employer's decision as to whether the Contractor has made any default or defaults and the amounts to which Employer is entitled by reason therefore shall be binding on us and we shall not be entitled to ask the Employer to establish the claims under the guarantee but will pay the same on demand without objection.

4. We, Name of Bank, further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract and that it shall continue to be enforceable till all the dues of the Employer under or by virtue of the said contract have been fully paid and its claims satisfied or discharged and till the Employer certifies that the terms and conditions of the said Contract have been fully and properly carried out by the said Contractor and accordingly discharges this guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before _____, we shall be discharged from all liability under this guarantee thereafter.

5. This guarantee shall not be revocable by us except with the written consent of the Employer and shall continue to be enforceable till _____. Should it be necessary to extend this guarantee beyond the said date, we undertake to extend the validity of this guarantee for such further period as may be required by the Employer, subject to the Employer giving in writing to Contractor the request for extension, and such extension shall be given before the expiry of the guarantee failing which the amount covered under this guarantee shall forthwith become payable to the Employer, not withstanding that the contract is continuing and / or the Employer has or has not terminated the contract or preferred any claim against the contractor.

6. We, Name of Bank, further agree with the Employer that the Employer shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said contract or to extend time of performance by the said Contractor from time to time or to postpone for any time or from time to time exercise any of the powers exercisable by the Employer against the said Contractor and to forbear or enforce any of the terms and conditions relating to the said Contract and we shall not be relieved from our liability by reason of any such variation, or extension being granted to the said Contractor or any indulgence by Employer to the said Contract or by any such matter or thing whatsoever which under the law relating to sureties, would but for this provision, have effect of so relieving us.

7. This Guarantee shall not in anyway be affected due to change in our constitution or by your taking or varying or giving up any securities from the Contractor or any other person, firm or Employer on its behalf or by change in the constitution, winding up, dissolution, insolvency or death as the case may be of the Contractor.

8. In order to give full effect to the Guarantee herein contained you shall be entitled to act as if we are your principal debtors in respect of all your claims against the Contractor hereby guaranteed by us as aforesaid and we hereby expressly waive all our right of suretyship and other rights if any which are in any way inconsistent with the above or any other provisions of this guarantee.
9. We, Name of Bank, also undertake not to revoke this guarantee during its currency except with the previous consent of the Employer in writing.

10. We agree that the Employer shall be entitled to enforce this Guarantee against us as a Principal Debtor, without proceeding against the Contractor and not withstanding any security or other guarantee the Employer may have in relation to the Contractor's liabilities.
11. Our obligations under this Guarantee shall be continuing obligations and shall not be satisfied, discharged or affected by any intermediate or on-account payment.
12. Any enforcement or failure to enforce by the Employer of any other such security or guarantee, shall in no way relieve us from our obligations under this Guarantee.
13. Any disputes concerning or under this Guarantee shall be subject to the jurisdiction of courts located in _____.
14. Notwithstanding anything contained herein above :

    d. Our liability under this guarantee shall not exceed INR _____ (INR _____ only)

    e. This Bank Guarantee shall be valid upto and including _____ and

    f. We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this Bank Guarantee.

Dated this the **_____ day of _____ 20__.**

SIGNATURE AND SEAL OF BANK

FULL ADDRESS OF THE BANK

ANNEXURE-6

LIQUIDATED DAMAGES

Amount: 0.5% per week up to maximum of 5% of the Contract value as per the agreed milestone for Supply & Erection

- To be finalized with milestone after the finalization of the contract